



Council

An Ordinary Meeting of Lismore City Council will be held at the Council Chambers on Tuesday, 9 November 2021 at 6pm

Members of Council are requested to attend.

Lismore City Council acknowledges the people of the Bundjalung nation, traditional custodians of the land on which we meet.

Michael Donnelly
General Manager

2 November 2021



ETHICAL DECISION MAKING AND CONFLICTS OF INTEREST

A guiding checklist for councillors, staff and community committees

Ethical decision making

- Is the decision or conduct legal?
- Is it consistent with Government policy, Council's objectives and Code of Conduct?
- What will the outcome be for you, your colleagues, the Council, anyone else?
- Does it raise a conflict of interest?
- Do you stand to gain personally at public expense?
- Can the decision be justified in terms of public interest?
- Would it withstand public scrutiny?

Conflict of interest

A conflict of interest is a clash between private interest and public duty. There are two types of conflict:

- Pecuniary – an interest that you have in a matter because of a reasonable likelihood or expectation of appreciable financial gain or loss to yourself or another person or entity defined in part 4 of the Lismore City Council Code of Conduct with whom you are associated.
- Non-pecuniary – a private or personal interest that you have that does not amount to a pecuniary interest as defined in the Lismore City Council Code of Conduct. These commonly arise out of family or personal relationships, or out of involvement in sporting, social, religious or other cultural groups and associations, and may include an interest of a financial nature.

The test for conflict of interest

- Is it likely I could be influenced by personal interest in carrying out my public duty?
- Would a fair and reasonable person believe I could be so influenced?
- Conflict of interest is closely tied to the layperson's definition of "corruption" – using public office for private gain.
- Important to consider public perceptions of whether you have a conflict of interest.

Identifying problems

- Do I have private interests affected by a matter I am officially involved in?
- Is my official role one of influence or perceived influence over the matter?
- Do my private interests' conflict with my official role?

Disclosure and participation in meetings

- A Councillor or a member of a Council Committee who has a pecuniary interest in any matter with which the Council is concerned and who is present at a meeting of the Council or Committee at which the matter is being considered must disclose the nature of the interest to the meeting as soon as practicable.
- The Councillor or member must not be present at, or in sight of, the meeting of the Council or Committee:
 - a. at any time during which the matter is being considered or discussed by the Council or Committee, or
 - b. at any time during which the Council or Committee is voting on any question in relation to the matter.

No Knowledge - a person does not breach this clause if the person did not know and could not reasonably be expected to have known that the matter under consideration at the meeting was a matter in which he or she had a pecuniary interest.

Non-pecuniary Interests - Must be disclosed in meetings.

There are a broad range of options available for managing conflicts & the option chosen will depend on an assessment of the circumstances of the matter, the nature of the interest and the significance of the issue being dealt with. Non-pecuniary conflicts of interests must be dealt with in at least one of the following ways:

- It may be appropriate that no action be taken where the potential for conflict is minimal. However, Councillors should consider providing an explanation of why they consider a conflict does not exist.
- Limit involvement if practical (eg. Participate in discussion but not in decision making or vice versa). Care needs to be taken when exercising this option.
- Remove the source of the conflict (eg. Relinquishing or divesting the personal interest that creates the conflict)
- Have no involvement by absenting yourself from and not taking part in any debate or voting on the issue as of the provisions in the Code of Conduct (particularly if you have a significant non-pecuniary interest)

Whilst seeking advice is generally useful, the ultimate decision rests with the person concerned.

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Notice of Motions



Notice of Motion

Councillor Vanessa Ekins has given notice of intention to move:

That Council:

1. write to Premier The Hon Dominic Perrottet, Treasurer The Hon Matt Kean MP, Minister for Emergency Services The Hon David Elliott MP, Member for Lismore Janelle Saffin MP and the Auditor General outlining Council's concerns that recognising assets Council has no control over, rural firefighting equipment, including red fleet vehicles, will place an unfair financial burden on Council.
2. forward these concerns to the Local Government NSW conference to lobby on this matter for regional and rural councils.

Councillor Comment

Outcome Sought

It has come to the attention of Northern Rivers Councils and the Northern Rivers Joint Organisation that this unquantifiable financial impost is being placed on regional and rural councils. We expect consultation on this matter and resources to assess the impact on our budgets and ensure appropriate and ongoing funding is made available from the State Government.

The audit of our financial statements suggested that rural fire-fighting equipment, specifically the red fleet vehicles, is controlled by the Council and should be recognised in financial statements. This is supported by the requirements of the *Rural Fires Act 1997* and service agreements between councils and the RFS.

The Department of Planning, Industry and Environment (inclusive of the Office of Local Government) confirmed in the 'Report on Local Government 2020' (tabled in Parliament on 27 May 2021) its view that rural firefighting equipment is not controlled by the NSW Rural Fire Service.

Cost of Implementing

Staff time

Funding Source

Not required

Staff Consulted

Manager Finance

Staff Comment

Manager Finance

The estimated value of the Rural fire-fighting equipment that is required to be recognised by Lismore City Council is approximately \$3.3 million gross and (\$2.08) million in accumulated depreciation (this will need to be confirmed as Council does not maintain these records). The estimated depreciation impact will be (\$177,000) per year. There are approximately 60 Councils within NSW that currently do not recognise these assets within their financial reports. It is expected that the recognition of these assets will be mandated by the Office of Local Government within their Code of Accounting Practice and Financial Reporting for 2021/22. Council is required to prepare its accounts in accordance with these guidelines and the Accounting Standards.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP21/893:EF19/25-03

Notice of Motion

Councillor Eddie Lloyd has given notice of intention to move:

That staff include in the annual budget and the annual audited financial statement to Council a separate schedule which includes the amounts cost shifted onto Council each year and that the schedule is itemised into the areas cost shifted, as categorised in the LGNSW survey, and the amounts.

Councillor Comment

Outcome Sought

Cost shifting is where a higher level of government transfers the responsibility and/or cost of providing a service, concession, asset or function to a lower level of government without the corresponding funding.

Council participate in any future cost shifting surveys conducted by LGNSW.

Cost of Implementing

Staff time

Funding Source

Not required

Staff Consulted

General Manager & Manager Finance

Staff Comment

Manager Finance

The information requested will be included as an attachment to the Council business papers for the 2021/22 Financial Reports and the 2022/23 Operational Plan and/or budgets.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP21/894:EF19/25-03

Matters Arising



Matters Arising

Subject	Amendment to Development Control Plan Part A Chapter 6 - Village, Large Lot and Rural Subdivision to include 528 Caniaba Road Structure Plan and amended public lighting provisions
TRIM Record No	BP21/756:EF17/226-03
Prepared by	Strategic Planner
Reason	To report outcomes of public exhibition of amendments to the DCP Part A Chapter 6 to include a Structure Plan for 528 Caniaba Road, Caniaba and additional provisions for public lighting for village and large lot residential subdivisions.
Strategic Theme	Our built environment
Strategy	Our land-use planning caters for all sectors of the community.
Action	Ensure land is available and serviced to meet population growth in locations that are accessible, close to services and employment, and suitable for development.

Executive Summary

On 8 October 2019, Council adopted a Planning Proposal to rezone part of 528 Caniaba Road, Caniaba from Zone RU1 Primary Production to part R5 Large Lot Residential and part E2 Environmental Conservation to facilitate rural residential development and protection of biodiversity values. This LEP amendment was subsequently made on 18 June 2021.

On 8 October 2020, for the purposes of public exhibition, Council adopted a draft Structure Plan to guide the future subdivision of the land for inclusion in the Lismore Development Control Plan (DCP) Part A Chapter 6 – Village, Large Lot Residential and Rural Subdivision.

Changes were also proposed to Part A Chapter 6 (Element 4.15) planning provisions for public lighting in response to concerns raised by the public and Councillors regarding conditions placed on development consents for public lighting of rural residential subdivisions, particularly in the Nimbin locality. These changes are aimed at preventing and reducing artificial light pollution to minimise impacts on neighbouring properties and nocturnal wildlife.

In accordance with Section 18 of the *Environmental Planning and Assessment Regulation 2000*, the amended DCP Part A Chapter 6 including the Structure Plan and changes to Element 4.15 was placed on public exhibition from 4 October 2021 until 17 September 2021 during which time one (1) public submission was received in relation to the Structure Plan. Submissions regarding public lighting are discussed in the report in this Business Paper on the Nimbin DCP.

Table 1 of this report contains a summary of the issues raised in the public submission on the Structure Plan. A copy of the public submission is provided at Attachment 2. A copy of the amended DCP Part A Chapter 6 – Village, Large Lot Residential and Rural Subdivision is included at Attachment 1 of this report.

It is recommended that Council adopt the amendments to DCP Part A Chapter 6 and notifies its decision in Local Matters in accordance with Section 21 of the *Environmental Planning and Assessment Regulation 2000*.

Recommendation

That Council:

1. adopt the amended Lismore Development Control Plan Part A Chapter 6 – Village, Large Lot Residential and Rural Subdivision as provided at Attachment 1 of this report.
2. proceed to give public notice of its decision in Local Matters in accordance with Section 21 of the *Environmental Planning and Assessment Regulation 2000*.

Background

On 18 May 2017, a draft Planning proposal was received to rezone 528 Caniaba Road, Caniaba (Lot 2, DP 1073973) from Zone RU1 Primary Production to part R5 Large Lot Residential with no minimum lot size nominated.

On 8 October 2020, Council adopted the Planning Proposal including the Structure Plan for the purposes of public exhibition at its meeting and the documentation was forwarded to the Department of Planning Industry and Environment (DPIE) to make the LEP amendment under delegation. As Council did not have delegation to make the amendment due to the unresolved objection from the Biodiversity and Conservation Division of DPIE and the proposed E3 Zone being applied, the LEP Amendment was subsequently made on 18 June 2021.

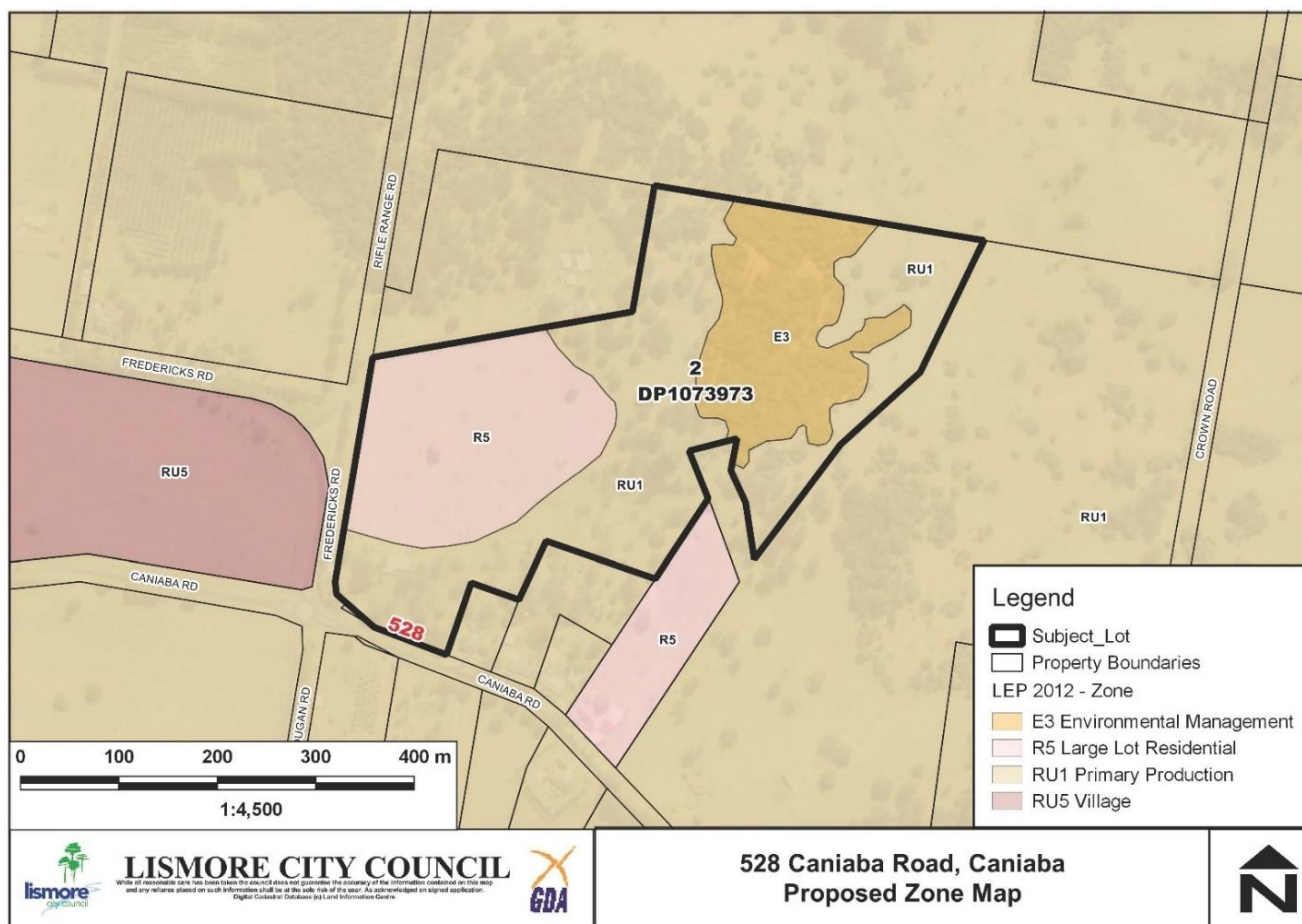


Figure 1: Zone Map for 528 Caniaba Road, Caniaba

The amended Lismore DCP Part A Chapter 6 was placed on public exhibition from 14 August to 17 September 2021 during which time one (1) public submission was received regarding the Structure Plan to guide the future subdivision of 528 Caniaba Road, Caniaba.

Lismore City Council

Meeting held 9 November 2021 - Amendment to Development Control Plan Part A Chapter 6 - Village, Large Lot and Rural Subdivision to include 528 Caniaba Road Structure Plan and amended public lighting provisions

Public submissions on the public lighting changes were made as part of the review of planning controls regarding Nimbin village and are addressed in a separate report in this Business Paper on the review of the Nimbin DCP.

Structure Plan and associated amendments

The Structure Plan is provided at Figure 2. The purpose of the Structure Plan is to guide the future subdivision of the subject site and ensure that a Vegetation Management Plan (VMP) accompanies the future development application. The Structure Plan identifies a future pedestrian / cycling link along Fredericks Road to connect with the planned footpath along Caniaba Road that was a condition of the adjacent Perradenya Estate development consent. The inclusion of the Structure Plan in Chapter 6 of the DCP will give the plan the necessary statutory weight to give effect to its objectives.

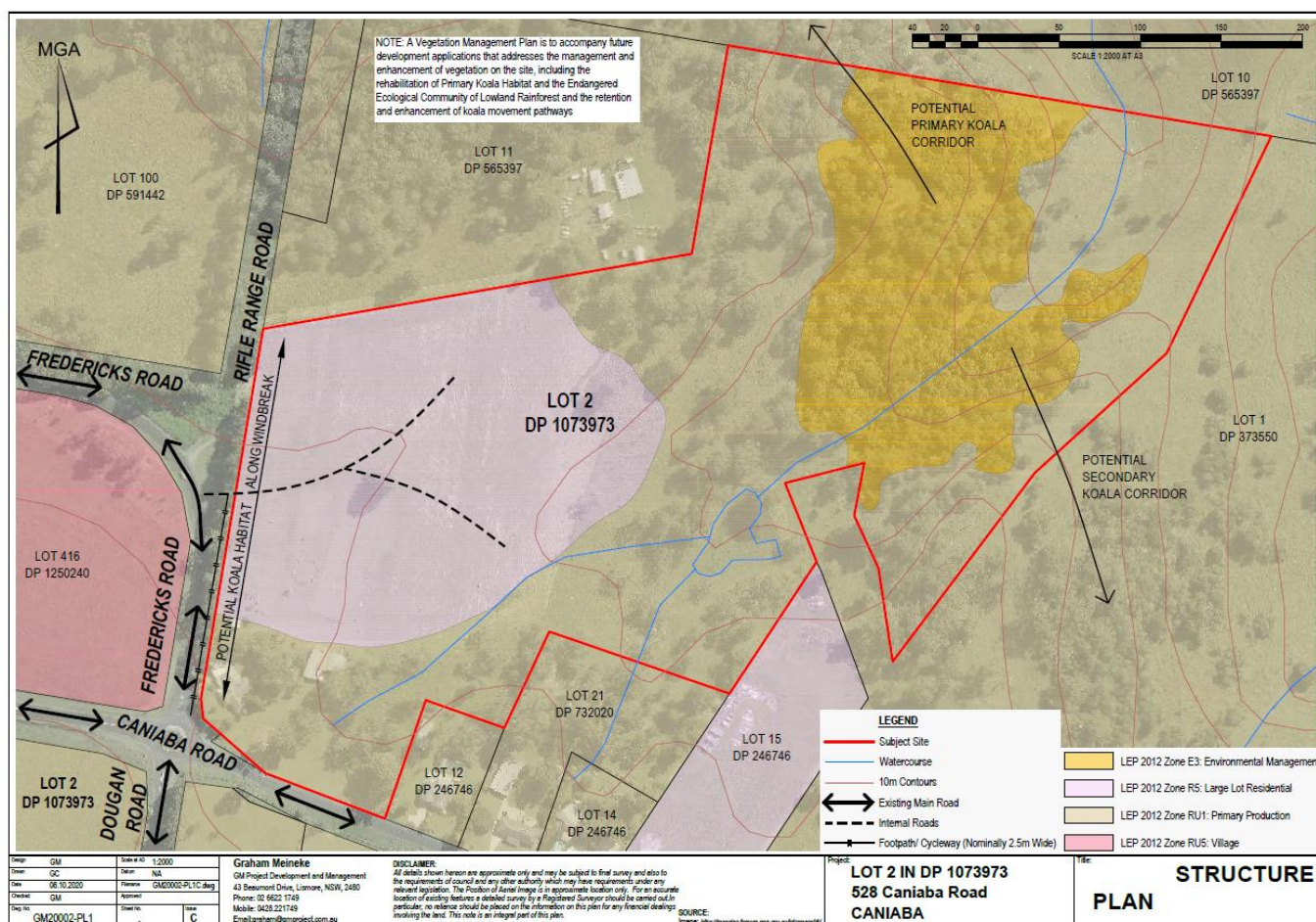


Figure 2: Structure Plan for 528 Caniaba Road, Caniaba

An amendment to Element 4.14 – Biodiversity Conservation was also proposed by including additional provisions at A.38.8 to ensure that a Vegetation Management Plan (VMP) accompanies any future development application for subdivision at 528 Caniaba Road, Caniaba. In particular, an Acceptable Solution at A38.9 requires that the VMP addresses specific issues such as the rehabilitation of Primary Koala Habitat, the enhancement of koala movement pathways and the restoration of Dry Rainforest Endangered Ecological communities.

Public Submission

The public submission to the draft amendment to the DCP is summarised in Table 1 below and provided at Attachment 2 of this report.

Table 1: Summary of Public submission – 528 Caniaba Road

Issues raised	Staff response
The submitter has supplied two plans to develop the site at 528 Caniaba Road, Caniaba. The site plan shows a 1200m² site of commercial and retail development on the corner of Caniaba and Fredericks Roads. The site plan shows 25 house sites plus an additional 21 smaller house sites across the R5 and RU1 land.	This site plan is inconsistent with the Structure Plan with regard to: - the zoning of the site - the supplied site plan shows commercial development on RU1 land which is prohibited in this zoning (the LEP definition 'Commercial premises'). - the proposed lot yield – the proposed lot yield of the site is only approximately 14 lots. No changes to the Structure Plan are recommended.

Street lighting in Village and Rural Residential subdivisions

The necessity for street lighting to be provided as part of development consents for rural residential subdivisions surrounding the Nimbin village has been raised with staff by the Nimbin Neighbourhood and Information Centre (NNIC) and Councillors on behalf of the Nimbin community. The issues of concern are that the lighting provisions are out of character with and unnecessary in the rural residential setting with detrimental impacts on the nocturnal wildlife.

To address these concerns, changes to the part of DCP Chapter 6 (*4.15 Element: Electricity, telecommunications and public lighting*) that outline the requirements for public lighting at the subdivision stage were drafted and adopted by Council for public exhibition purposes at the Ordinary meeting in July 2021. These provisions were drafted following research into best practice planning controls designed to address light pollution and eliminating light spill in dark night skies in other jurisdictions including Waverley Council in NSW and the Western Australian Planning Commission and in consultation with Council's Compliance Co-ordinator.

The additional provisions aimed at preventing and reducing artificial light to minimise impacts on neighbouring premises and nocturnal wildlife are shown underlined in Table 1 below and apply to subdivisions in Zone RU5 Village and Zone R5 Large Lot Residential. Public submissions on these changes were raised as part of the review of planning controls regarding Nimbin village and are addressed as an issue in a separate report in this Business Paper on the review of the Nimbin DCP.

In response to the submissions and following further internal consultation with development assessment staff, some post-exhibition additions are proposed as shown in Table 1 underlined in italics below that are aimed at differentiating between the required provisions in Zone RU5 Village and Zone R5 Large Lot Residential development settings and clarifying the intent for street lighting. These additions also respond to issues raised by the community and clarify the rationale for public lighting.

Table 1: Proposed new provisions relating to public lighting

Element 4.15 Electricity, telecommunications, and public lighting

Performance Criteria	Acceptable Solutions
Public lighting P40 Adequate arrangements are to be made for the provision of public lighting <u>to increase safety for pedestrian and vehicular travel.</u> <u>In the R5 Large Lot Residential zone, street light installations are required at intersections, cul-de-sacs and any potential points of vehicular / pedestrian conflict to ensure a high level of safety.</u>	Public lighting A40 The design of public lighting is in accordance with: • The relevant Australian Standards; • NSW Public Lighting Code.
P41 Public lighting will prevent, limit and reduce artificial light pollution to minimise nuisance to neighbouring premises and disturbance to nocturnal wildlife.	A42 Installation of public lighting will comply with the principles of AS4282: <u>Control of the Obtrusive Effects of Outdoor Lighting.</u> A43 Public lighting will be designed and selected to eliminate light spill in the night sky and avoid over-lighting through measures such as bulb shielding, projecting light downwards, directing lights away from reflective surfaces and using energy efficient bulbs and warm white colours.

Comments

Finance

Not required.

Other staff comments

Technical staff provided input into the Planning Proposal and Structure Plan and public lighting provisions for inclusion in DCP Chapter 6.

Public consultation

DCP Part A Chapter 6 – Village, Large Lot Residential and Rural Subdivision was placed on public exhibition in accordance with Section 18 of the *Environmental Planning and Assessment Regulation 2000* during which time one (1) public submission was received in relation to the Structure Plan. Submissions on public lighting have been addressed in a separate report in this Business Paper on the draft Nimbin DCP.

Conclusion

On 8 October 2020, Council adopted the draft Structure Plan for 528 Caniaba Road, Caniaba (Lot 2, DP 1073973) for the purposes of public exhibition which occurred in accordance with the *Environmental Planning and Assessment Regulation 2000*. The issues raised in the submission received has been addressed adequately in this report.

Changes have also been included in Chapter 6 for public lighting provisions based on concerns raised about street lighting in rural residential subdivisions, particularly surrounding Nimbin.

It is recommended that the amendments to DCP Part A Chapter 6 are adopted by Council and notified in Local Matters.

Attachment/s

1.  Attachment 1 Chapter 6 Village, Large Lot Residential and Rural Subdivision and Infrastructure (Over 7 pages)
2.  Attachment 2 - Public Submission

Sally Slater

From: Ian Cleland [REDACTED]
Sent: Friday, 17 September 2021 8:41 AM
To: Sally Slater
Subject: The development application was due today 17th Sept LOT 2 DP 1073973 528 Caniaba CANIABA
Attachments: 20210813 LOT DP1073973 528 Caniaba Rd CANIABA-R04.pdf

CAUTION: This email was sent from outside our organisation. Be cautious, particularly with links and attachments unless you recognise the sender and know the content is safe.

Sally,

I am submitting application to develop the land is enclosed that **LOT 2 DP 1073973 528 Caniaba CANIABA**. It closes today we have not finished yet.

We would like include the payment for whole of rates **Lismore** paid by **rate payers**, the payment will not exclude for development and normal fees for the development **LOT 2 DP 1073973 528 Caniaba CANIABA**. One payment **31st Dec 2023 - \$46,000,000**. Conditional that we pay the amount if all condition is met.

We will negotiation if we are awarded the development **LOT 2 DP 1073973 528 Caniaba CANIABA**. We need time to gather all resources and financial are in place at **30th Nov 2021**. If have not got act together. One or both parties can have **agreement cancelled** with **no cost** to either party.

Regards
 Ian Cleland

E.O. E.

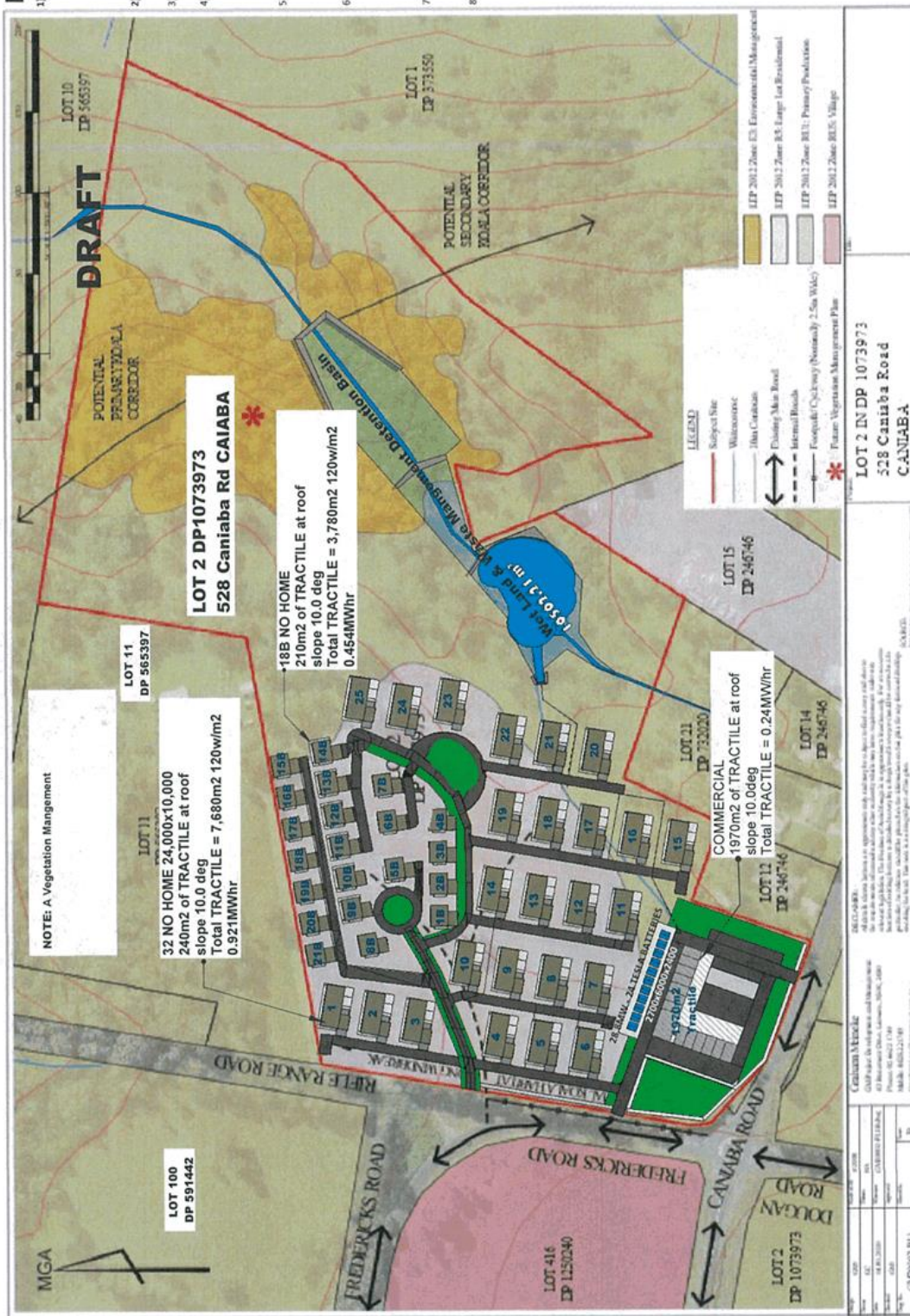


Sustainable Urban Community Homes

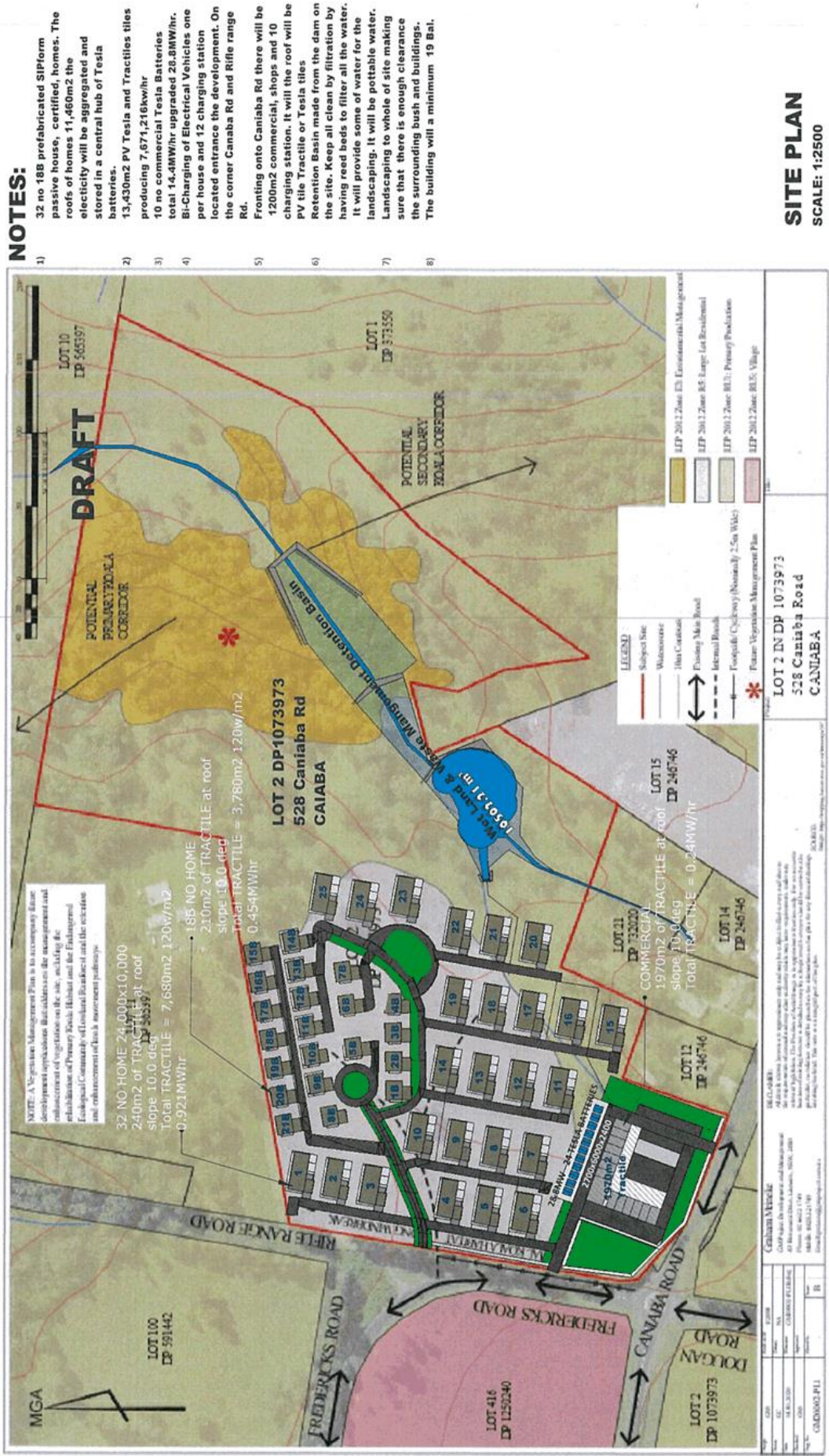
Ian Cleland
Fully Charged LIVE Australia
 29th to 30th October 2022 – Sydney –2000

NOTES:

- 1) 32 no 18B prefabricated SIPform passive house, certified, homes. The roofs of homes 11,460m² the electricity will be aggregated and stored in a central hub of Tesla batteries.
- 2) 13,430m² PV Tesla and Tractiles tiles producing 7,671,216kw/hr
- 3) 10 no commercial Tesla Batteries total 14.4MWhr upgraded 28.8MWhr.
- 4) Bi-Charging of Electrical Vehicles one per house and 12 charging station located entrance the development. On the corner Caniaba Rd and Rifle Range Rd.
- 5) Fronting onto Caniaba Rd there will be 1200m² commercial, shops and 10 charging station. It will the roof will be PV tile Tractile or Tesla tiles
- 6) Retention Basin made from the dam on the site. Keep all clean by filtration by having reed beds to filter all the water. It will provide some of water for the landscaping. It will be potable water.
- 7) Landscaping to whole of site making sure that there is enough clearance the surrounding bush and buildings.
- 8) The building will a minimum 19 Bal.

**SITE PLAN**

SCALE: 1:2500



Revision		Project	
A	23-08-21	Preliminary - Draft	PROPOSED DEVELOPMENT
			LOT 2 DP 1073973 528 Caniaba Rd CANIABA
			1 OF 2
			</

Matters Arising

Subject	Submissions to draft Nimbin Village Development Control Plan (DCP).
TRIM Record No	BP21/825:EF20/174
Prepared by	Strategic Planning Coordinator
Reason	Report to Council on submissions received during the public exhibition of the draft Nimbin Village DCP and related development issues and obtain a resolution to adopt an amended DCP for Nimbin.
Strategic Theme	Our built environment
Strategy	Our built environment is managed and enhanced to meet the needs of our growing community.
Action	Ensure new development enhances the area in which it is located.

Executive Summary

Concerns expressed by the Nimbin community in the last 5 or more years about the pace and impact of new developments in or near the village have led to the current review of the planning controls that guide future development, in particular the development control plan (DCP) that applies to the Nimbin village. The DCP has also been the focus for some of the community concerns in recent years and its review is identified as a short-term action in the Local Strategic Planning Statement adopted by Council in 2020.

Rather than confine the review to the DCP it was felt that any consideration should be given to all planning controls and development issues. Following meetings with the Nimbin Advisory Group and Chamber of Commerce regarding the preferred process to review the DCP and other controls, staff prepared a discussion paper to accompany a community survey in late 2020. 111 surveys and 9 written submissions were received.

This feedback led to Council approving amendments to the Nimbin chapter of the DCP for the purposes of public exhibition at its Ordinary meeting on 13 July 2021. Council also approved an amendment to street lighting requirements in Part A Chapter 6 of the DCP and the Growth Management Strategy and resolved to review annually the secure yield of the Nimbin Water Supply.

The draft DCP amendments were on public exhibition from 4 August to 1 October 2021. 23 submissions were received. A community briefing was held on 9 September 2021 by zoom prior to the end of the public exhibition period – 30 attended. A councillor briefing was held on 26 October 2021.

This report provides a summary and discussion about the issues raised in the submissions along with recommendations for amendment of the DCP.

Recommendation

That Council:

1. Adopt the amended Lismore Development Control Plan Part B Chapter 6 – Nimbin Village as outlined in this report and provided at Attachment 1 of this report.
2. Proceed to give public notice of its decision in Local Matters in accordance with Section 21 of the *Environmental Planning and Assessment Regulation 2000*.

Background

Nimbin experienced very little development activity from the 1990s to the early 2010s but more recently, has seen a (comparatively) significant increase in development applications and activity. Since 2010 several significant subdivisions that are residential or include residential have been approved. Since 2015 (to April 2021) 50 new dwellings (village, rural and large lot residential) have been approved, 34 in the village.

The Nimbin community has expressed concern that new developments in and near the village are leading to a loss of the qualities loved by village residents and visitors. The community is also concerned about the cumulative impact on roads and other infrastructure of new development and the high numbers of visitors and tourists to the village. In the longer-term Council is committed to undertaking a detailed master planning exercise for Nimbin when resources are available.

Review of the Nimbin DCP was identified as a short-term action in the Local Strategic Planning Statement adopted by Council in 2020. Following meetings with the Nimbin Advisory Group and the Chamber of Commerce regarding the preferred process to review the DCP and other controls, staff prepared a discussion paper to accompany a community survey.

The scope of the review was focused on the village as defined by the area in Zone RU5 Village as shown in Figure 1 below, which also shows the areas zoned for large lot residential development.

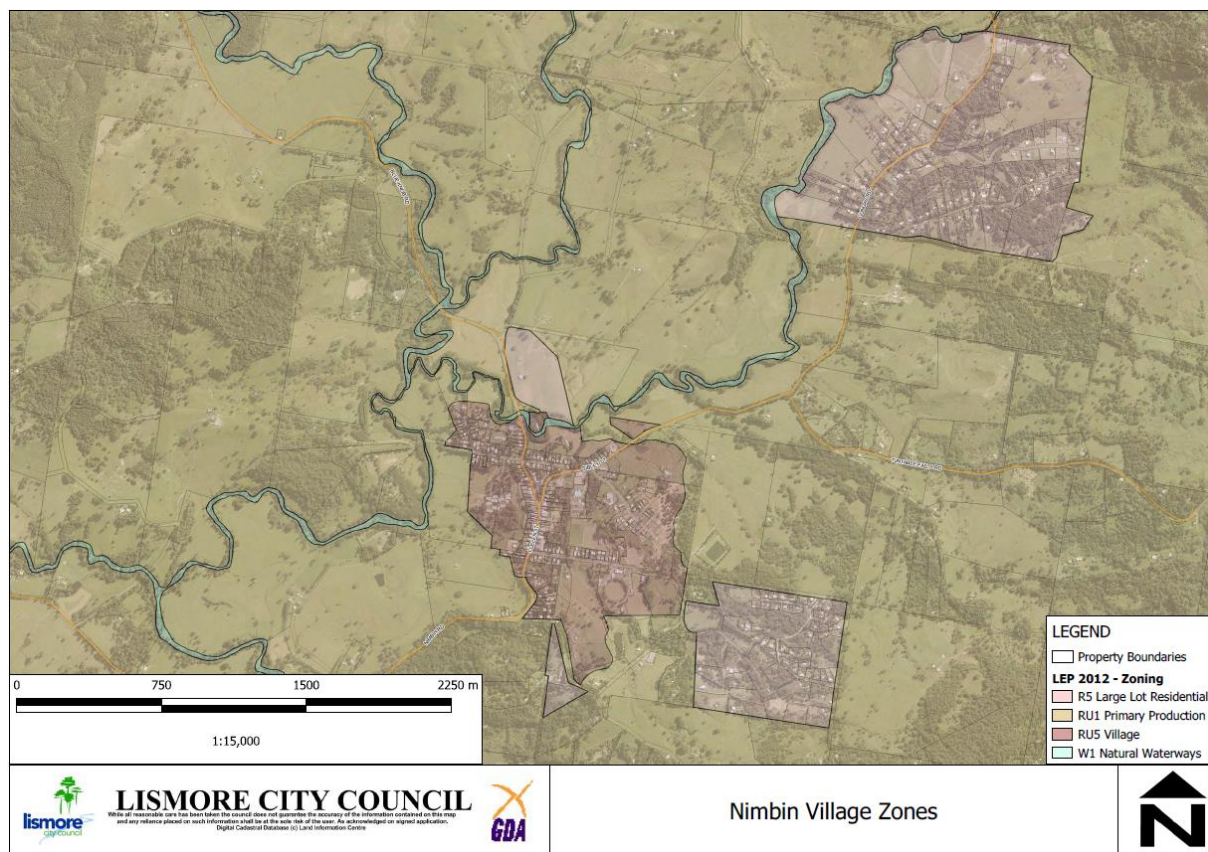


Figure 1: Area of review – Nimbin and surround zone map

Feedback received in response to the community survey led to Council approving amendments to the DCP for the purposes of public exhibition at its Ordinary meeting on 13 July 2021. The resolution of Council was:

1. Council support Amendment No. 32 of the Lismore Development Control Plan to:
 - a) Amend Part B, Chapter 6 – Nimbin Village as described in this report and detailed in Attachment 3; and

- b) Amend Part A Chapter 6 – Village, Large Lot Residential and Rural Subdivision to insert the following Performance Criterion and Acceptable Solutions under Public Lighting in Element 4.15: Electricity, Telecommunications and Public Lighting

Public Lighting	Public Lighting
P41 Public lighting will prevent, limit and reduce artificial light pollution to minimise nuisance to neighbouring premises and disturbance to nocturnal wildlife.	A41 Installation of public lighting will comply with the principles of AS4282: Control of the Obtrusive Effects of Outdoor Lighting. A42 Public lighting will be designed and selected to eliminate light spill in the night sky and avoid over-lighting through measures such as bulb shielding, projecting light downwards, directing lights away from reflective surfaces and using energy efficient bulbs and warm white colours.

- Council approve the public exhibition of Amendment No. 32 to the Lismore Development Control Plan as detailed in 1 above and in accordance with the Environmental Planning and Assessment Regulation 2000;
- A report be presented to Council with the outcomes of public exhibition and any proposed changes as a result of submissions received;
- Council remove the potential large lot residential land in Gungas Road/Tuntable Falls Road in the upcoming review of the Lismore Growth Management Strategy and amend the Local Strategic Planning Statement to exclude the same land from Planning Priority 1;
- Council review annually the situation with regard to secure yield of the Nimbin Water Supply and the need or otherwise for additional measures to be employed in regard to ensuring future water demand within the village of Nimbin can be met whilst ensuring adequate environmental flows downstream of the weir.

The draft DCP amendments were on public exhibition from 4 August to 1 October 2021. 23 submissions were received. These are provided in the second attachment to this report. A community briefing initiated by the Chamber of Commerce and attended by Council staff was held on 9 September 2021 by zoom prior to the end of the public exhibition period. It is understood that over 37 people attended the briefing.

Submissions and Recommendations

Issues Raised

Table 1 below provides the summary of the issues raised in submissions along with staff responses and recommendations for amendment to the DCP.

Table 1: Summary of submissions to draft Nimbin DCP

Issue	Staff response
<u>Need for a 'master plan'</u> A more expansive master planning exercise is required for Nimbin to cover climate resilience & adaptation, traffic management, public facilities, failing infrastructure, impact of population growth in rural areas, housing, footpath trading & the impacts of tourism.	- It is agreed there is a need for a 'master plan' as the DCP cannot address many of the issues of concern. The Local Strategic Planning Statement contains an action to complete a Masterplan for the Nimbin village as a short-term priority. - This project is not currently funded in the budget for the 21/22 financial year but can be considered for funding in the 22/23 Council budget.
<u>Minor changes to Precinct map</u> Various submissions requested minor changes to the Precinct map based on land being owned by community organisations (ie. Tennis Courts at 106 Cullen Street), the School of Arts, the Nimbin	- Changes are recommended to the Precinct Map to include 7 Sibley Street & the tennis courts in the community precinct. - It is not recommended that the map is changed for the School of Arts or the Environment Centre

Issue	Staff response
Neighbourhood & Information Centre (7 Sibley Street), the Nimbin Environment Centre at 54 Cullen St). Rainbow Power and the Nimbin Community Centre have requested a minor change to reflect a recent boundary adjustment of their site in Alternative Way and identify the land uses as industrial and residential.	as these uses are in the core commercial precinct. However, their location in the commercial precinct is noted in the DCP text The Precinct map has been changed to reflect the recent DA for the boundary adjustment that will result in amended boundary for Rainbow Power and 1 new residential lot. The new areas are shown as 'industrial' and 'residential' rather than 'community'.
<u>Street lighting – Thorburn Street</u> - Request that Thorburn Street be allocated some more lights – only has 1 light. The street is busy, poorly lit, and dangerous. - Submitter objects to restrictions on streetlights in new developments as Nimbin has lack of night lights, making it dangerous. All residential streets should have streetlights for safety. - Preferred option is solar powered lighting	- Council does not allocate funds for new streetlights in existing residential areas as a routine practice. - Staff have registered this issue with the Assets team to consider the need for a budget submission to be made to the 22/23 budget so that funds are allocated for additional street lighting in Thorburn Street. - There will remain a requirement to provide street lighting in village zones with the proposed changes intended to limit the impact on fauna and the night sky not limit street lighting that provides greater safety.
<u>Street lighting – rural residential areas</u> - Eco-friendly street lighting to preserve amenity of night sky and to protect wildlife is welcomed - The installation of street lighting is not appropriate in some rural settings ie. Where an island of lighting in an otherwise unlit landscape is created - Council should decide on suitability of street lighting on case by case basis.	- New performance criteria and acceptable solutions are recommended for inclusion in DCP Part A Chapter 6 (Village, Large Lot Residential and Rural Subdivision) for street lighting in village / rural residential subdivisions in response to feedback received from the community on this issue. - The criteria will be used by DA staff when assessing the appropriate street lighting for future subdivisions. These requirements are proposed to be amended to make the intent for street lighting clear, which is aimed at safety for vehicle and pedestrian traffic. Note the changes recommended to the publicly exhibited criteria are included in another report in this Business Paper.
<u>Growth / Growth Management Strategy (GMS)</u> - Support for new housing estates as Nimbin suffers from lack of housing. - Nimbin should be a growth area and Council's role should be light not heavy-handed interference. - Education, health and sewerage services are available to cater for growth. - The availability of non-prime agricultural, flood free land adjoins the village and is ideally suited for subdivision. - The land south of Cecil Street is zoned RU5 and not developed. This land is serviced with sewerage, power and reticulated water. - This land would merge with the 'Aquarius Village' and 'Jarlanbah'. - Due to large number of approved developments, support is expressed to remove land in GMS at 50 Gungas Rd and 200 Tuntale Falls Road which is identified as potential large lot residential. - A long term sustainable plan should be developed	- There is still land available in the village for further growth. - There are some areas of Regionally Significant Farmland to the north east and north west of the Nimbin village that limit the ability of the village to grow. - There is flood prone land in and around Nimbin. The DCP contains a new map showing flood prone land in the village zone. - The land south of Cecil Street has been classified as 'Investigation' area in the precinct map due to constraints on reticulated water supply. - On 13 July 2021, Council resolved to remove the potential large lot residential land in Gungas Road / Tuntale Falls Road in the review of the GMS and amend the LSPS to exclude the land from Planning Priority 1. - The current GMS does focus future development

Issue	Staff response
within Lismore where the services are already in place, ie. transport, roads, police, health, shops, public land. • Medium high-rise building provides cleaner air, better standards of living, cheaper accommodation, where more people can live comfortably within the Lismore city, providing a better place for all stakeholders, business, employment, developers.	areas close to locations with services already in place. • Council has rezoned land for medium density housing in the Lismore Health precinct to promote more sustainable forms of development.
<u>Weeds</u> • Weed species should not be allowed to be planted as street trees. Woody weed species should be eradicated from the village zone. • Recent subdivisions such as Tulsi Lane should not have environmental weeds such as groundsel bush, privet or giant devil figs allowed to spread on roadsides or gullies. • Council should integrate roadside weed management with roads to avoid existing weed problems worse.	• Council adopted a Street Tree Masterplan (STM) in 2008. • The STM provides information regarding preferred native tree species for new plantings, and the types of trees to be used to replant the weed species planted decades ago. Street trees that are weed species are being removed gradually as resources allow. • Rous County Council is currently responsible for assessing and enforcing environmental weed compliance.
<u>Protection of trees</u> • Two mature eucalyptus on Tareeda Way do not have adequate barriers despite ongoing earthworks.	• The protection of the mature Eucalyptus Salignas is currently being investigated by Council's Compliance officer and appropriate action will be taken if needed. • These trees have also been included as significant vegetation on a map and in the table in the amended DCP.
<u>Developer contributions</u> • Development funds paid to Council don't appear to be going back into the community infrastructure. • Infrastructure is falling to bits under weight of new development and residents moving to the area. • There is no evidence of funds collected for community facilities and open space being spent in Nimbin – surely where the bulk of funds for the northern catchment would come from. Not a DCP issue but connected to growth and development.	• The section 7.11 contributions plan was adopted in 2014. It sets out the works program for infrastructure including community services and roads. The program drew substantially on the <i>Imagine Lismore (Ten Year Plan)</i>. • The only identified community facility specific to Nimbin is the community centre and funds collected remain to be spent. Other facilities are not in the village and include the CBD plaza/ art gallery / quad project, Lismore Park and Wilson River projects. The Plan anticipated all catchments (both urban and rural) will utilise community services and facilities and the whole LGA is therefore contributing towards the development of community services and facilities. • With respect to roads, contributions are 'pooled' for the rural areas and allocated based on matters such as road condition and traffic volumes.
<u>Intersection upgrades</u> • Intersections requiring upgrading were identified in the original DCP and extensive development has occurred yet not one intersection has been upgraded and there is no plan to do so. • The cumulative impact of development on Sibley Street within the light industry precinct and traffic generated from Alternative Way and new supermarket development will impact Thorburn Street. Council could consider making Thorburn Street one-way.	• Intersection upgrades occur when a development is of a size that generates sufficient traffic to necessitate an upgrade or are identified in a contributions plan. • The master planning exercise will take a holistic view of the village and test scenarios such as making Thorburn Street one way. This is not an issue that can be addressed in the DCP. • The developer of the Alternative Way subdivision has advised Council staff that a modification application will be lodged to amend the road

Issue	Staff response
Original DA plans of the Alternative Way subdivision road access to Cecil Street should be amended so that it intersects with Cecil Street at a T-intersection and that significant traffic calming devices are installed along Alternative Way.	design where it intersects with Cecil Street. The application has not yet been submitted.
<u>Mulgum Creek</u> - Mulgum Creek totally stops flowing and dries in sections most spring and summers. - Increasing problems due to town water being taken from upstream with prolonged dry spring/summer exacerbating the problem - Increased demand from increased connections (to the reticulated system) impacted heavily on native fauna including Platypus. - It is concerning that Council has planned for more connections from the totally decimated creek and that environmental flow was never considered when extracting more water. - Submitter has been regenerating creek banks with help from Council Rural Landholder Initiative. It is devastating to see creek sucked dry for months. - The only way to ensure more water for town is to increase storage in town and take less in dry times. - The fact that Council has not and still does not consider environmental flow is a crime, in this 'environmentally aware area', in the 21st century. - Considerations around future water supplies essential and seem to have been addressed. - Until shortfalls regarding a secure water supply and returning environmental flows to Mulgum Creek have been resolved, it would be detrimental to the Village for additional large lot residential development applications to be approved.	- Council has allocated funding to construct a new water treatment plant for Nimbin. This will allow Council to be more efficient in the way that water is used from Mulgum Creek. For example, the new treatment plant and supply main will remove the need for Council to flush its supply main to D E Williams Dam to clear out the dirty water this after long periods of rain, or heavy rain. Council is also looking at alternate water supply options such as through the licence to extract water from a bore near the swimming pool. - Council is not the regulatory authority for waterways in NSW and therefore has no ability to directly regulate how/if or when water is extracted from Mulgum Creek. - Council has a licence to extract water from Mulgum Creek for the purposes of supplying water to Nimbin and follows the terms and conditions of that licence. - What Council can do is seek to minimise the amount of water it does extract from Mulgum Creek, thus leaving more water available for environmental flows. - The construction of the new water treatment plant will allow Council to remove or modify some inefficient maintenance practices and therefore reduce the amount of water extracted from the creek. - Staff will also explore other opportunities to reduce the need for extraction from Mulgum Creek as the water treatment plant project progresses. - Large lot residential subdivisions are required to provide rainwater tanks for residents' water supply.
<u>Water supply issues</u> - Council staff should be immediately tasked with seeking an effective means to increase water storage capacity. - Acknowledge & appreciate the restrictions on water recommended through the DCP but question the optimism of staff. - Do not advocate bore extraction as a solution to additional water source; Council should investigate other options either near the existing storage or on Falls Road. - The DCP provides no clarity around which developments will be eligible for the remaining reticulated water allotments eg is there reticulated water for investigation precincts or not? Is it first in best dressed? - Performance criteria for all relevant precincts should include water conserving garden design. Swimming pools reliant on reticulated water should	- Investigations are currently being undertaken into means by which the secure yield of the Nimbin water supply could be increased. This could be achieved either through identifying an additional water source or increasing storage within the water supply system. - At this stage, the focus of these investigations is to determine if an existing groundwater bore, located on Council property at the caravan and swimming pool site, can provide additional secure yield to service additional demand arising from projected growth. Preliminary flow tests undertaken from this bore have been positive and further tests are now being organised. - It is not possible to specify which developments will be eligible as Council does not have the ability to require developments to proceed at specified times. This means it is 'first in best dressed', which is the reason for conducting

Issue	Staff response
not be a permissible use. • Dual occupancies should be disallowed in the village. • Detailed technical information about the potability of water for human use, monitoring of bore flows, size and boundaries of the Water Basin, and the likely adverse effects from increased bore activity in the Lismore LGA.	annual surveys. Applicants for development would typically discuss their proposals with Council prior to submitting a DA at which time the availability of secure yield can be addressed. The Council report of 13 July 2021 advised that <i>'based on the secure yield calculation methodology, there is sufficient reserve capacity within the water supply to provide for approx. an additional 45 'equivalent tenements', or ET. An ET corresponds to the water demand from a typical detached single dwelling. The use of 'equivalent tenements' provides a means of measuring water demand from different forms of development using a common unit of measure.</i> • Additional words are proposed to the performance criterion on landscaping to ensure that water conservation principles are factored into the design of gardens and landscaped areas for development in all precincts. • It is not considered necessary to make dual occupancy a prohibited use in the village as the DCP contains provisions requiring sufficient rainwater tank supply where no reticulated supply is available. • Many of the issues about potable water fall outside the scope of a DCP.
<u>Water Security Plan</u> • Strongly urge Council to organise a community engagement process to fully explore options for the future, educate the community about the severity of the water situation & implement options for demand management. • The water rate should increase above a set amount of water use to penalise large users, such as pool owners, and encourage people to think about their water usage. • Extend rebates for on all water tanks to existing residences that can connect to the reticulated system. • Implement more conservative targets when announcing water restrictions during droughts. • Stop water tankers from using the Cecil Street, Nimbin filling station to supply rural residential households with tank water.	• In 2016, Council commissioned Hydrosphere Consulting to prepare a Drought Management Plan for Nimbin. This Plan will be reviewed in the next financial year. • The suggestion for a Water Security Plan that would include community engagement and education programs has merit but is not in Council's current Delivery Program. However, it would be an important issue to consider in a master planning exercise and could also link to the Nimbin Disaster Plan, which focuses on resilience to disasters including drought. • Demand management measures such as increasing the water rate is an issue to be considered in the review of the Strategic Business Plan for Water & Wastewater, which will occur later in this financial year. • Council does not currently administer a rebate scheme for water tanks; however, in the past Rous Water has been the responsible authority for administering such a scheme. • The timing of water restrictions during droughts, including access to filling stations, is addressed by the Drought Management Plan, which will be reviewed next financial year.
<u>Rainwater collection</u> • Would it not be prudent to mandate that all secondary dwellings on R5 Large Lot Residential blocks not be connected to the town's reticulated water supply but instead have rainwater collection tanks and further to that all houses approved, but not yet constructed, have rainwater collection tanks for watering gardens etc instead of using potable water? Further to that, when water is required by	• The DCP only applies to land within Zone RU5 Village so does not guide development in Zone R5. Regardless, development in the R5 zone does not connect to reticulated water but new housing is required to provide on-site water supply ie rainwater tanks. • With regard to using rainwater collection as an alternative water source, new Performance Criteria have been included in the DCP for the

Issue	Staff response
road works to keep dust down would it not be wise to also use not potable water? - Consider rainwater and greywater /sewage water runoff as urgent matters of concern in cases of existing and proposed developments to, or adding on to, Nimbin's "built up" zones. - Support the principle of dual occupancy providing tanks for the second dwelling but a more equitable approach might be for dwellings to provide tank storage dependent on density of development ie 2 1–2-bedroom dwellings could have the same or less impact than a 4-bedroom house with extensive gardens relying solely on reticulated water supply. The ET for both developments could be the same but one is required to provide on-site water storage.	Residential, Investigation, Live/Work Precincts as follows: <i>Where no reticulated water supply is available, the provision of sufficient rainwater tank supply for potable water is incorporated into the design. Rainwater tank storage with a minimum of 45,000 litres capacity per standard dwelling is to be supplied to provide an adequate potable water supply.</i> While this idea has merit when attempting to calculate the demand of new development on the water supply, an 'ET' (equivalent tenement) corresponds to the water demand from a 'typical detached single dwelling'. This definition does not specify the number of bedrooms or occupants that make up a typical single dwelling.
<u>Cullen Street Beautification</u> - It's positive to see the plan retained in the DCP. It would be great to see it further progressed as no work has been done on main street beautification for over 10 years. - There have been spontaneous and inappropriate plantings over the years, due to the absence of a coordinated approach, plantings which have subsequently involved expensive removal and generated objections as shade and ambience disappears with a chain saw.	- It is anticipated that the Masterplan for Nimbin would include an update of the Beautification Plan and a plan for its implementation. - Street tree plantings and location will also be part of the master plan.
<u>Western Car Park</u> - Pedestrian access from the car park to Cullen Street, formalising right of ways, properly retaining, and landscaping the eastern batter in the western car park and tree planting have been in the planning since the car park was constructed. - The car park is often the first encounter of Nimbin for many visitors. It is important to have a unified planning approach to landscaping architecture throughout the car park. - A preferred location to acquire land to meet future car parking needs has been identified and should be included in the DCP.	- This comment is noted and acknowledged. The DCP has been silent on who and how these matters will be undertaken. Implementation, including funding, would be an issue the Masterplan process along with appropriate landscaping embellishments for the Western Carpark. - The Nimbin Parking Strategy identifies an area to the south of the Western Car Park on School land. This area can be noted in the DCP. The funding for this extension remains an issue. The Department of Education is yet to advise of its disposal plans. The Parking Strategy also notes that car parking needs should be reviewed when developments such as The Cubes & the 'museum site' occur.
<u>Pedestrian and cycleway facilities</u> - There is no obvious integration for new or existing development. In fact, cycleways and footpaths do not seem to appear anywhere in the DCP. - If they are to be subject to future planning this should be mentioned by way of explanation. If not, preferred networks should be built in. - Cycling and walking pathways should be included along Alternative Way and Cecil Street and Sibley Street leading out of the village towards Gungas Road due to the proliferation of residences.	- A map showing existing pedestrian and cycling facilities was initially removed in the DCP that was placed on public exhibition; however, this map has been reinstated. - Council is currently preparing a Walking and Cycling Strategy that includes Nimbin. This Plan will contain an implementation plan for the future funding of walking and cycling trails.
<u>Commercial precinct</u> Entertainment facilities are a new inclusion under preferred land use. We would suggest that this needs some explanation given the impact on previous live music entertainment venues following complaints from neighbours.	The LEP definition of 'Entertainment Facilities' includes uses such as a theatre, cinema, music hall, concert hall, dance hall but not a pub or registered club. These uses appear to be appropriate in the commercial precinct and any DA would be placed on public exhibition to give

Issue	Staff response
The DCP also does not currently identify preferred use precincts for monthly and weekly markets. Currently they are held in the commercial precinct and the community precinct.	the community a chance to make a submission about any amenity impacts such as noise. In the LEP, 'markets' fall under the umbrella definition of commercial (and retail) premises which is listed in the preferred land uses for the commercial village precinct. Markets would be viewed as a preferred land use in this precinct and will be noted as a preferred use in the community precinct.
<u>Light Industry Precinct</u> - An objective of the light industry precinct should be minimising the impact of traffic movement on Thorburn Street by avoiding high traffic generating industry. - Preferred land uses identify water intensive uses such as garden centres and plant nurseries. While admirable uses water needs to be supplied from non-reticulated purposes.	- The light industry precinct is largely either developed or there is an approved development that would have considered traffic generation. - Water availability will be an ongoing issue for all uses. Additional words are recommended in the DCP to note that on-site water supply should be considered for water intensive uses such as nurseries.
<u>Investigation Precinct</u> - We support the principle of investigation zones providing their own water and this being spelt out in the DCP. - Within a new residential development is it an option for Council to prescribe that a certain percentage of a proposed development be set aside for low-cost housing? Or require collaboration with social housing NGOs? Or provide incentives for developing low-cost housing? Creative solutions need to be found given the housing crisis we are facing (compounded by Covid and rising prices) and the incredible need for social housing.	- This is noted. - Council is currently preparing an Affordable Housing Strategy that will investigate the options available to Council to encourage affordable housing options. The strategy will consider the merits of an Affordable Housing Contributions Scheme – this appears to be only way to prescribe contributions. - The DCP would not be able to prescribe collaboration with social housing NGOs; however, existing community housing providers are aware of the need for more social / affordable housing in Nimbin.
<u>Community uses</u> - Happy about the future of the Rainbow Road track, an emphasis on keeping the community feel of the village and a future vision for plantings and consideration of streetscape. - Preferred uses in the community precinct should recognise there are commercial uses conducted in the community precinct. - With regard to section 2.6 and 2.6.1, why is 'Religious' ruled out and 'Place of Worship' ruled out as a preferred use?	This is noted. The word 'Religious' has been removed from the land uses comprising the Community precinct because none of the existing churches are located in this precinct. Although the land use 'Places of public worship' was removed as a preferred use in the Community Precinct, this land use remains a permissible use in the Village Zone.
<u>7 Sibley Street</u> 7 Sibley Street (Nimbin's Sustainable Living Hub) is community owned so should be placed into the Community precinct. 7 Sibley should be removed from the Heritage Conservation Area for the aims of the Sustainable Living Hub to be included in the DCP so that ecologically sustainable development principles override heritage considerations. Alternatively, the aims of the Sustainable Living Hub should be referred to and considerations relating to ecological sustainability given the highest priority.	- A change has been made to show this site as 'community' rather than 'commercial' in the Precinct map. The Sustainable Living Hub is also referenced in new section 2.6.1. - To remove the property from the Heritage Conservation Areas there would require a heritage assessment to justify its removal. Then an LEP amendment would need to be undertaken. Staff do not recommend this course of action. Instead, staff agree with the alternative suggested in the submission that additional text

Issue	Staff response
	be included in the DCP in the Community Precinct ie. that sustainable development principles be given priority over heritage principles.
<u>Rainbow Road Walking Track</u> • Refer to 'Rainbow Road' as a track not a trail and include an objective that relates to the tourism value of the project and community land in general. • An objective should be added that relates to the tourism value of the project and community land in general e.g. to add to the visitor experience through the provision of a high-quality tourism product that showcases village culture. • Request support of LCC to extinguish an existing right of way as a new one will be established with the walking trail.	• The term 'trail' has been changed to 'track' on the Precinct map. • It is agreed that the tourism value of the project should be acknowledged and will be inserted as an objective in the community precinct. • Extinguishing the right of way is outside the scope of the DCP and will be considered during the implementation of the Rainbow Road Walking Track.
<u>Protection of Significant Vegetation</u> Should this table recognise the heritage listed grounds within Nimbin Community Centre, 81 Cullen Street? A botanical survey of 81 Cullen Street has identified and recorded all vegetation. There is also some significant vegetation on 11a Alternative Way, planted as part of a koala food corridor in the early 1990s.	• The table in the DCP has recently been updated; however, this did not include a survey of significant vegetation throughout the entire village. • 81 Cullen Street has been included on the map and the table. • It is considered that further community engagement during the Masterplan project will include an examination of significant vegetation in the village.
<u>Heritage</u> • Council's heritage study was undertaken in the 1990s and is due for review. • Two developments come to mind where strongly held community opinions were discounted by "experts" and Council staff. There is no point having a DCP that says subject to public exhibition when the opinions that are reflected in the public exhibition process reflecting community views are discounted. • Laneways – a point of contention. The fire site laneway redevelopment was requiring a heritage look to buildings along the laneway from staff whereas the proposed "Cubes" development saw glorified containers and fencing in full view on exiting the western car park approved alongside the removal of a very "cute" house on the main street. • At the rear of buildings on the western side of Cullen Street containers have been approved for cheap on-site storage. It's a dog's breakfast look approved by Council in a heritage conservation zone. The DCP needs to provide far greater direction around heritage provisions than is currently the case and community opinion needs to be given much greater sway.	• The Lismore Local Strategic Planning Statement contains action A4.5 to update the Lismore Heritage Study as a long-term action. The heritage provisions for Nimbin will be included in the scope of this project. • It is not proposed to provide a review of the 2 developments as these have been discussed at length elsewhere. • Council staff assess development in accordance with the provisions of the LEP, DCP and the <i>Environmental Planning & Assessment Act 1979</i>, which requires that public submissions are considered. • It is considered there is sufficient protection for heritage in the LEP and the DCP and no changes are proposed.
<u>Flood affected areas</u> • The flood hazard analysis gives only a broad indication. Some of the area of the Rainbow Road walking track identified as medium flood hazard is actually not directly affected by flooding. • Construction of a walking track across 11a Alternative Way should be guided by on ground observation at the time of recent flood rains which were close to the 1-in-100-year event (November	This is noted. The indicative flood hazard mapping will not restrict the ability of the Rainbow Road walking track to be constructed.

Issue	Staff response
2020) and not refined and expensive modelling plans. It is a small catchment and provision of the dam has the effect of slowing and controlling water release, which should be acknowledged.	
<u>Climate change and sustainability</u> - It is not clear how the DCP addresses climate change and sustainability. - Decision-making decision will be manifestly unreasonable if it does not take climate change into account. At a minimum, Council should minimise development in highly vulnerable areas. Nimbin has major issues within its catchment, as the ability of the soil cannot hold water, due to its unusual rhyolite rock deposition. - The area around Nimbin has over 14,000 inhabitants. Nimbin appears to be small but the number of people living in the area has placed great strain on the environment for water, energy, communications, ecosystems. - Development in Nimbin and greater Nimbin area should be stopped as the climate is no longer predictable varying from extremely hot and dry to wet cyclonic. The availability of water is intermittent and scarce at times. The populations in the village and surrounding areas support all the facilities and businesses in Nimbin village and there is no need for extra population to keep them viable. - Council must ensure they keep up to date with general climate change science and information related to mitigation and adaptation strategies and information particular to their specific local government area	- The role of a DCP is to provide specific development criteria to guide development. As such, the DCP contains broad objectives to encourage sustainable development including: - the conservation of environmental values - the avoidance of environmentally sensitive areas - the protection of significant vegetation - the promotion of ecologically sustainable development. - It is proposed to insert commentary regarding climate change in the introduction to the DCP and insert a new objective to promote development that will enhance climate change resilience. It is not clear at this time what other DCP provisions will address climate change impacts. - In March 2020, Council adopted a Climate Change Resilience Policy and has commenced preparing a Climate Resilience & Adaptation Strategy which will consider land use issues and the tools available to Council through the planning system. - As noted elsewhere, the master planning exercise should consider climate resilience as a key issue for the village.
<u>Non-preferred uses</u> It is suggested that a development application for a <i>non-preferred land use</i> should only be considered where it can be demonstrated that there is no suitable land available within the preferred precinct and <u>there is a community need for the development</u>.	- Each precinct contains objectives and a list of 'preferred uses'. A clause in the introduction to all precincts provides that 'a development application for a <i>non-preferred land use</i> should only be considered where it can be demonstrated that there is no suitable land available within the preferred precinct'. - It could be difficult to gauge whether there is a community need for a particular development because community views can vary significantly depending on the issues involved. The public exhibition process is the mechanism by which the community can raise issues with Council about particular development applications. - Rather than refer to 'community need', it is recommended that additional words are added to ensure that a 'non-preferred' use is still consistent with the objectives for a particular precinct.
<u>Rural Landsharing Communities</u> - Is council taking into account the large population growth outside the village precinct from future developments, sub-divisions and in particular Rural Landshare Communities and the cumulative impact they will have on the village infrastructure and amenities? - Rural Land share Communities according to the	- The GMS will be amended to remove a future area proposed in Gungas Road for the reasons highlighted in the submission. - The Growth Management Strategy contains a section regarding the demand and supply of Rural Landsharing Community housing and recommends that the land suitable for this type of development as identified in the corresponding LEP map be reduced.

Issue	Staff response
SEPP can be established anywhere within 4km of a school, hall, shop or other established community of certain size, which means pretty much anywhere.	- The amendment to the LEP was not progressed due to concerns from Councillors about the extent of the area. - There has been only 1 new DA approved for RLSC in the past 5 years.
<u>The Koala Plan of Management (KPoM)</u> The KPoM was always intended to be extended to the North Western part of the shire. The excuse of finances is not acceptable as it is not a financial exercise but a legislative change. We have already seen the loss of primary koala feed trees in Alternative Way for the spread of development. This is exactly what the KPoM was designed to stop and is far more effective than SEPP 44. When Councils don't have the will to act to help save Koalas then we have a legislative tool that will step in and do what is right. Please extend the KPoM to cover all of Lismore LGA, including Nimbin.	Lack of resources is not simply an excuse. Extending the KPoM beyond its current boundaries is a significant undertaking and Council simply does not currently have the resources. Additionally, there is a lack of clarity in current state legislation and this needs to be resolved before funding can be sought to prepare a new KPoM.
<u>Public toilet</u> Council must progress planning for an all-season toilet / change room block in the public park (known as Peace Park).	The Nimbin Advisory Group has raised the need for an amenity block in this location with Council's Assets section which is considering grant funding opportunities to fund this proposal.

Summary of recommended DCP amendments

Recommendations in response to the matters raised by submissions are included in the Table above. Some minor issues identified by staff relating to DCP editing or omissions have also been identified. For ease of review, the following provides a summary of all recommended changes. The amended chapter is provided as an attachment to the report.

Precinct Map

- Amend the Precinct Map to include 7 Sibley Street and the tennis courts at 106 Cullen Street in the Community Precinct as shown on Figure 2 below.
- Amend the Precinct map to reflect the recent DA for the boundary adjustment of two (2) existing lots to create three (3) lots, specifically: 1) to create an additional village (residential) lot; and 2) to increase the size of the Rainbow Power Company lot. The changes are included in Figure 2 below.
- Amend the Precinct Map to include the land north of Mulgum Creek in the Investigation Area. This land is not mapped in the existing DCP but is included in the RU5 Village zone. This land is highly constrained by flooding and is unlikely to support new development.

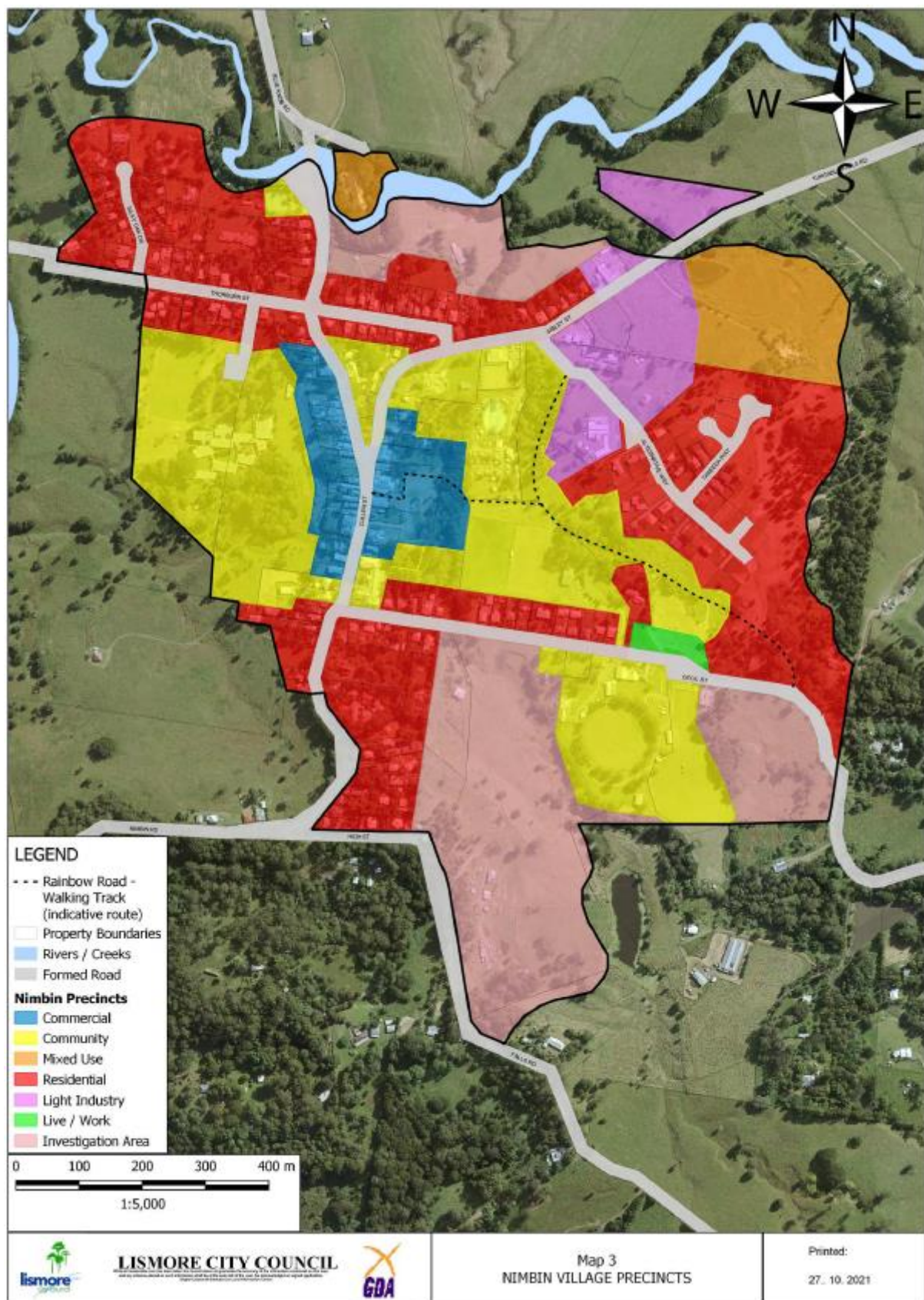


Figure 2: Proposed Amendment DCP Precinct Map

Map of pedestrian / cycleway links, significant vegetation & expansion of carpark

A map showing existing pedestrian and cycling facilities was initially removed in the DCP that was placed on public exhibition. It is recommended that the map is reinstated and in addition to showing pedestrian and cycleway links, it shows significant vegetation, the Rainbow Road Walking Track and the potential future expansion of the western carpark. Figure 3 below is the recommended amended map.

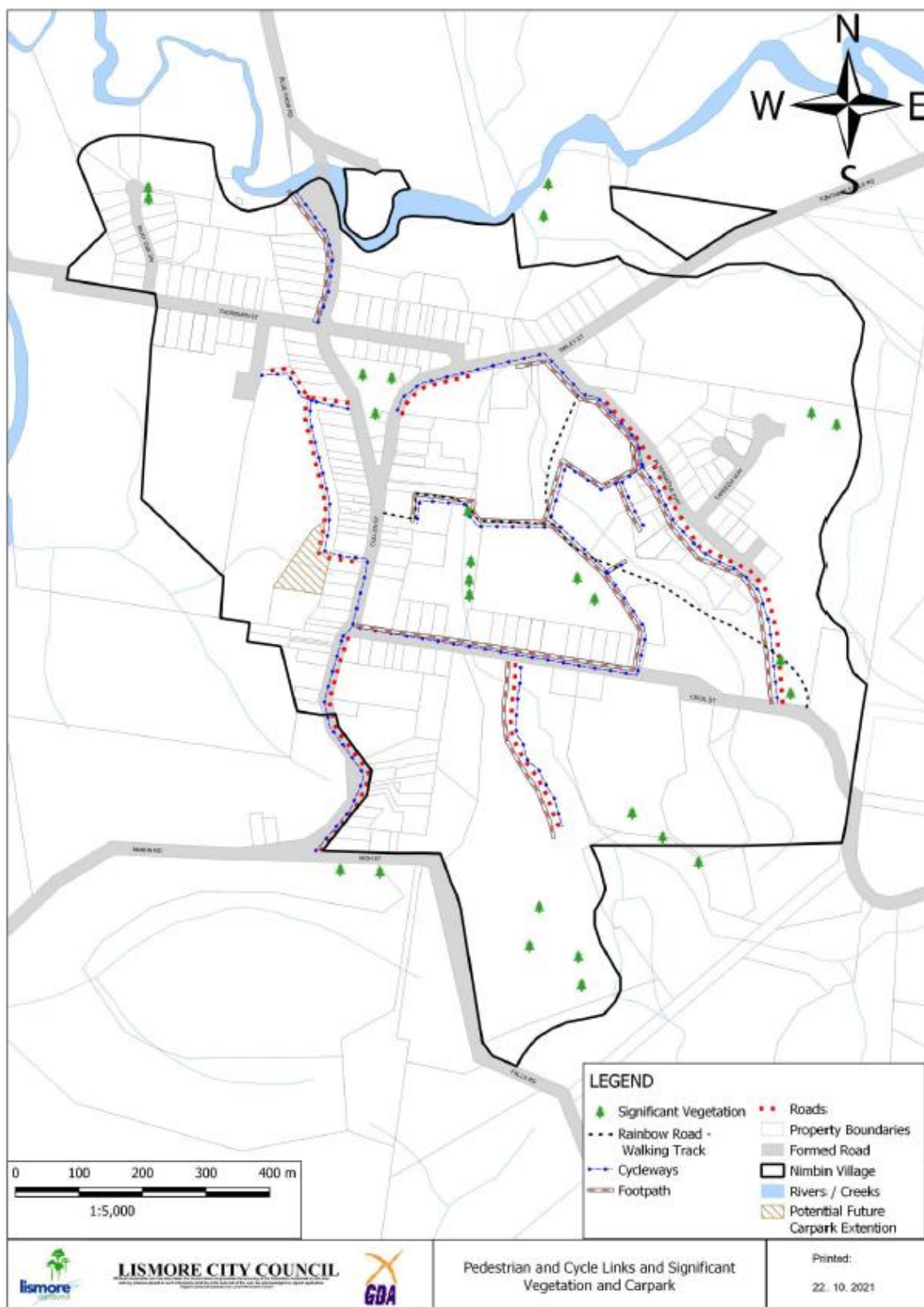


Figure 3: Proposed Map – links, vegetation, and carpark expansion

Amendments to DCP Text

Below are changes recommended to the DCP text.

- In the Introduction to the Chapter insert 'The Nimbin community is strongly committed to utilising the best available science to respond, adapt and build resilience to climate change risks and their impact on social, cultural and ecological systems and mitigating potential risks.'
- Insert a new objective in section 1.2, '*To promote development that will enhance climate change resilience*'.
- Amend section 2 Village Precincts to provide that, '*a development application for a non-preferred land use should only be considered where it can be demonstrated that there is no suitable land available within the preferred precinct, provided that the 'non-preferred' use is consistent with the objectives for the precinct.*
- Amend section 2.1.1 to provide that water conservation principles and measures are incorporated into garden and landscaping design.
- Amend section 2.2 Investigation Area to refer to the Investigation Area south of Mulgum Creek as highly constrained flood prone land that is unlikely to support new development.
- Amend clause 2.4 Commercial Precinct to note the location of the School of Arts and the Nimbin Environment Centre as community uses in the Commercial Precinct.
- In the section titled 'Cullen Street Beautification and Western Car Parking Area' note the potential future expansion of the western car park in accordance with the Nimbin Parking Strategy and as shown on Figure 3 above.
- In section 2.6 Community Precinct note that there are a range of established commercial uses conducted in the community precinct and include 'markets' as a preferred use.
- Insert a new section 2.6.1 as follows:

Section 2.6.1 Sustainable Living Hub

The Community Precinct includes land at 7 Sibley Street which is owned by the Nimbin Neighbourhood and Information Centre and being developed as a Sustainable Living Hub with the aim of sharing skills and promoting all aspects of affordable housing and sustainable living. A concept Masterplan for the progressive development of this Hub has been prepared for this land and part of the adjoining Peace Park at 9 Sibley Street. The scope of the Masterplan may change over time.

Sustainable Development Objectives

7 Sibley Street is included in the Heritage Conservation Area, which leads to heritage conservation considerations for future development. These considerations for the Sustainable Living Hub should reflect the evolution of the alternative lifestyle movement that has had and continues to have a substantial and positive influence on the Village. While the 'timber and tin' building on the land will be retained, it is intended that the heritage conservation objectives for development in the Commercial Precinct will not outweigh objectives for ecologically sustainable development in the Sustainable Living Hub that includes demonstrating the use of alternate building materials and technologies that are ecologically sustainable.

- In section 2.6.2 Rainbow Road Walking Track include an objective, '*To add to the visitor experience through the provision of a high-quality tourism product that showcases village culture through the Rainbow Road Walking Track and community precinct generally.*'
- Amend section 3.2 Table 1 to include additional vegetation nominated by the community at 81 Cullen Street and Tareeda Way and cross-reference to new Figure 6.
- In section 3.3 Village Infrastructure – All Precincts, insert reference to the new Figure 6 and include reference to the Walking and Cycling Strategy that is currently underway.

Comments

Finance

Not required.

Other staff comments

Development assessment staff were consulted during the preparation of the draft DCP.

Lismore City Council

Meeting held 9 November 2021 - Submissions to draft Nimbin Village Development Control Plan (DCP).

Assets Manager

Planning for relevant infrastructure to support future development is clearly an important part of the process in review of a DCP. The community responses, both written and at the community meeting held as part of the process, have included specific concerns about the need for appropriate infrastructure to support current and future development in the village.

There has been considerable feedback about water supply and water security into the future, including commentary about improving environmental flows in Mulgum Creek. Responses to the specific feedback received have been included in the table above.

The matter of secure water yield for the village has generated a lot of discussion and feedback from the community. Secure yield is a theoretical calculation and is a measure of how many properties can be supplied with water under severe drought conditions.

Whilst there is currently a theoretical predicted shortfall of approximately 40-50 ET should all approved development within the village proceed, it needs to be remembered that there is also approx. 45 ET still available. The rate at which this capacity is taken up is entirely dependent upon how quickly property owners choose to proceed with development on their land. Based on current and historical rates of development, this could be anywhere between 4-10 years.

Council will be reviewing the Strategic Business Plan for Water and Wastewater in 2022. An assessment of the issues around security of the water supply in Nimbin will be part of that process, including a review of the drought management plan for Nimbin. Matters to be considered as part of that process include:

- Continuing investigations into alternate water sources including ground water and connection to Rocky Creek Dam.
- Modifying the drought management plan to introduce water restrictions earlier than currently planned.
- Reviewing current practices around access to the Nimbin Water supply for bulk water suppliers and construction purposes.
- Increasing education activities to raise awareness of water conservation issues.
- Reviewing maintenance practices associated with the existing water supply network and proposed water treatment plant to identify and implement opportunities to reduce water usage from ongoing operational and maintenance activities.

Public consultation

This project commenced with a community survey in 2020, which led to amendments to Part B Chapter 6 of the DCP being drafted and publicly exhibited. The draft DCP amendments were on public exhibition from 4 August to 1 October 2021. 23 submissions were received. The matters raised by submitters are summarised in this report and staff responses and recommendations made.

Conclusion

The current review of the planning controls that guide future development in and near Nimbin, particularly the Nimbin Village DCP, commenced with the release of a discussion paper and community survey in late 2020.

The feedback received in the surveys and written submissions led to Council approving amendments to the Nimbin chapter of the DCP for the purposes of public exhibition at its Ordinary meeting on 13 July 2021. Council also approved an amendment to street lighting requirements in Part A Chapter 6 of the DCP and the Growth Management Strategy and resolved to review annually the secure yield of the Nimbin Water Supply.

The draft DCP amendments were on public exhibition from 4 August to 1 October 2021, during which time 23 submissions were received. This report has provided a summary and staff review of the issues raised in the submissions along with recommendations for amendment of the DCP.

It is recommended that the revised DCP Part B Chapter 6 Nimbin Village attached to this report is adopted by Council.

Attachment/s

1. [⇒](#) Attachment 1 - Nimbin Village DCP adopted (Over 7 pages)
2. [⇒](#) Attachment 2 - Public submissions (Over 7 pages)

Reports of the General Manager



Report

Subject	DA21/132 - To undertake a change of use from a service station to a neighbourhood shop comprising internal fitout, car parking, landscaping, and associated works.
TRIM Record No	BP21/802:DA21/132
Prepared by	Development Assessment Officer - Planning
Reason	Reported to Council for determination at Councillors' request
Strategic Theme	Our built environment
Strategy	Our built environment is managed and enhanced to meet the needs of our growing community.
Action	Ensure new development enhances the area in which it is located.

Executive Summary

Council has received a Development Application (DA) for a proposed *Change of Use* of a decommissioned service station for the purpose of a neighbourhood shop and associated fit out, car parking, landscaping and associated works.

The development proposes to be located across two parcels of land known as 426 and 428 Ballina Road Lismore Heights and or Lot 6 and 7 in DP17608. The site is zoned R1 General Residential, neighbourhood shops are permissible with development consent.

Due to the prior use as a service station, the site was declared significantly contaminated under the *Contaminated Land Management Act 1997* by the NSW Environment Protection Authority (EPA) in June 2016. A Voluntary Management Proposal (VMP) was entered into by the landowner with the EPA which has been substantially completed. The VMP coupled with proposed conditions, provide that the land is suitable for the proposed use and satisfies the requirements as specified under clause 7 of SEPP 55.

Following the public exhibition of the neighbourhood shop, correspondence to adjoining owners and those within the nearby vicinity, 4 submissions objecting to the proposal were received. The main issues of objection being land contamination, traffic generation and access, and social implications resultant of alcohol sales.

As a part of a *Community Impact Statement* undertaken by the applicant, a *Notice of Intention* was served to all properties within 100m and other stakeholders, with no submissions received as a result.

The assessment of the subject application has identified and addressed various elements including land contamination, traffic generation and access, and social implications under specific titles throughout the report.

The neighbourhood shop development upon conclusion, has been determined to generally be in accordance with the relevant legislation and accordingly is recommended for approval subject to the draft conditions of consent.

Recommendation

That Development Application No. 2021/132 for the *Change of Use* from a *Service Station* to a neighbourhood shop comprising an internal fitout, car parking, landscaping and associated works be **approved** subject to the imposition of draft conditions as found in *Attachment 1 - Proposed Conditions of Consent*.

Background

The site was previously operating as a Shell/Coles Express Service Station, Council's records provide the following Development Application history.

Description	Account	Description	Description
Development Application	005.2021.00000132.001	DA21/132 - 426 Ballina Road - Change of use to a neighbourhood shop	
Development Application	005.2018.00000424.001	DA18/424 - 426 Ballina Road - Demolition of service station canopy	Conditional Consent - Council
Development Application	005.2014.00000001.001	Replacement of signage at the existing Shell/Coles Express Service Sta	Conditional Consent - Council
Development Application	005.2013.00000050.001	Replacement of site identification sign	Conditional Consent - Council
Development Application	005.2005.00000715.001	Commercial alteration replace existing	Conditional Consent - Council
Development Application	005.2003.00000517.001	Relocation of two 2 advertising signs	Conditional Consent - Council
Development Application	005.1997.00000237.001	Commercial addition - carport	Conditional Consent - Council
Building Application	006.1997.00000494.001	Carport Addition	Approved

Since the closure of the service station in 2018, remediation works have been continuously undertaken to remediate the site contamination. The demolition of the service station canopy (DA18/424) was to facilitate suitable safe access to underground storage tanks which have actually been removed.

This application has been reported to Council for Determination following a request from Councillors.

Description of Proposal

The proposed development comprises the change of use of an existing decommissioned service station building for the purposes of a neighbourhood shop.

The proposed works comprise the demolition of an awning at the western side of the building and the removal of the eastern roller door and existing internal walls. Building renovations includes new walls and infill of the existing roller door for the installation of a cool room and partitioning from the shop.

13 car parking spaces are afforded incorporating 11 customer car parking spaces with an accessible space, plus another two for staff car parking.

The neighbourhood shop is intending to offer general merchandise to meet the *day to day* needs of residents, with 32m² or 28% of the total floor area of the store being allocated for the sale of alcohol products. See *Attachment 2 - DA Plans - 426 Ballina Road LISMORE HEIGHTS 2480* for detail.

The proposed neighbourhood shop is intended to operate from 10am to 11pm Monday to Saturday and 10am to 10pm Sundays.

The Site

The subject site is located on the northern side of Ballina Road Lismore Heights approximately 70 metres south-east of High Street and 2.7 km's east of Lismore Central and zoned as R1 General Residential. The subject site comprises two parcels identified as 426 and 428 Ballina Road Lismore Heights having a combined area of 1618m².

The site is a former service station which is currently declared as 'significantly contaminated' land under the *Contaminated Land Management Act 1997*. Management of site contamination via a Voluntary Management Proposal (VMP) was entered into by the property owner with the EPA, the VMP has been substantially completed.

Adjoining development consists of a Post Office and a dis-used general store to the west, with residential dwellings in all other directions. The topography of the site is flat. Access is proposed off Ballina Road.

Locality Map



Statutory Controls

Lismore LEP 2012

- Zoning – R1 General Residential
- Item of Heritage – No
- In vicinity of Heritage Item – No
- Flood Planning Mapping – No
- Acid Sulfate soils – No
- Drinking Water Catchment - Yes

Environmental Planning & Assessment Act 1979

Protection of the Environment Operations (Underground Petroleum Storage Systems) Regulation 2019

State Environmental planning policy No. 55 – Remediation of Land

State Environmental Planning Policy (Vegetation in Non-Rural Areas) 2017

State Environmental Planning Policy (Koala Habitat Protection) 2019

State Environmental Planning Policy No. 64 – Advertisement and Signage

State Environmental Planning Policy (Infrastructure) 2007

Lismore City Council

Meeting held 9 November 2021 - DA21/132 - To undertake a change of use from a service station to a neighbourhood shop comprising internal fitout, car parking, landscaping, and associated works.

Internal Referrals

Set out below is a summary of each of the relevant referral officer's comments. A full copy of each of the referral comment reports are included in *Attachment 3 - Council Referral Officers Reports*.

Building / Environmental Health / Engineering / Water and Sewer

The application has been reviewed by each of these sections and comments provided, with no objections raised subject to the imposition of appropriate conditions that are included in the draft conditions attached to this report.

The issues addressed within the referral comments from the respective officers included, but was not limited to building code requirements, fire safety measures, environmental aspects, land contamination, noise impacts, vehicular access, traffic impact, parking, stormwater, Section 64 Levies, sewer and water connection requirements.

Traffic Advisory Committee (TAC)

A referral to the TAC was provided in relation to the subject development application requesting comment on the proposal. Specifically, the TAC was requested to consider a request for a proposed *No Stopping Zone* between the ingress and egress of the site on Ballina Road to provide a safer egress from the site onto Ballina Road.

Committee Members determined at the April TAC meeting, this had merit and recommended that Council support the proposal to install a No Stopping Zone as part of the subject DA. In the May General Council Meeting, Council resolved that TAC39/21 4.3 Request for No Stopping Zone - 426 Ballina Road, Lismore Heights - DA21/132 for Neighbourhood Shop be deferred and included in the development application for this location when it comes to Council.

Community Services

Upon request the subject DA submitted a *Community Impact Statement* that was referred to Council's Community services Coordinator to provide further comment on the social consideration of the application. The following comments were provided:

- A neighbourhood shop would be a good addition to Lismore Heights. Lismore Heights historically had several small local shops, but over the past 6-13 years have since closed.
- Lismore Heights has University accommodation on Ross Street, Kellas Street and Dixon Place, with public housing in William Blair Drive and scattered through Lismore Heights. Access to alcohol would therefore be in walking distance from these locations which may not be ideal given the demographic.
- As mentioned in the Community Impact Statement there is in existence a number of takeaway liquor stores – Lismore Square, Dan Murphys and IGA in Goonellabah in reasonable proximity.
- The Community Impact Statement also cites the BOSCAR rate of alcohol related crime in Lismore Heights high in 2020 and 2021 either above or close to state average.
- I would be inclined to recommend trading hours for liquor be reduced by 1 hour per day.

Based on the above recommendation that trading hours for liquor be reduced by 1 hour per day, the hours that alcohol can be sold has been conditioned as follows:

10am to 10pm Monday to Saturday
10am to 9pm Sundays.

External Referrals

Set out below is a summary of the external referrals. A full copy of each response from the external referral bodies are included in *Attachment 4 – External Referral Responses*.

Transport for NSW (TfNSW)

A referral was sent to Transport for NSW (TfNSW) dated 23 March 2021 seeking comment in relation to the subject DA. The following comments were provided:

- TfNSW notes that vehicular access is limited to left-in and left-out movements by an existing central median and separate entry and exit driveways. A pedestrian footpath extends from the Eastern boundary of the site to existing pedestrian underpass and public bus stop facilities. The site is located within an existing residential catchment and is likely to attract patronage from the surrounding area.
- The site access driveways, internal manoeuvring, parking and servicing areas need to be designed and constructed in accordance with the relevant parts of AS2890 and Council's Development Control Plan. The internal layout should seek to minimise any potential for vehicles to queue from the site onto the classified road.
- Drawing no. TP02-244-20 dated 22 Feb 2021 proposes on-street parking restrictions within the verge of Ballina Road. The Local Traffic Committee should be consulted regarding the regulatory signage required to support the proposed arrangement. The Consent Authority should be satisfied that sufficient on-site parking is provided to meet demand generated by the proposed use.
- The design of the access driveways should incorporate a public footpath along the site frontage and reflect priority for pedestrian and cyclists travelling along Ballina Road. Additionally, the proposed landscaping along the site frontage should be designed and maintained to achieve clear sightlines between pedestrians, cyclists and vehicles. Where possible patrons should be informed and encouraged to use the existing underpass facility to cross Ballina Road.
- TfNSW understands that business and/or building identification signs will be consistent with the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*. All signage should generally be consistent with the road safety criteria in the *Transport Corridor Outdoor Advertising and Signage Guidelines*.

The above matters have been considered by both Council's Development Engineers and TAC, with appropriate conditions applied accordingly. The final design plans for the works to be undertaken in the roadway are to be finalised in an application pursuant to Section 138 of the *Roads Act 1993* (S138) which will be determined in detail by Council's Development Assessment Engineers in collaboration with the TAC and TfNSW.

TfNSW has not objected or raised concerns in relation to the safety, efficiency and ongoing operation of Ballina Road, however as noted, the consent authority (LLC) is to have consideration of these aspects which has been undertaken and expanded on under the *Traffic and Access* section of this report.

NSW Police

The application has been reviewed and comments provided by this department, with no objections raised. Recommendations provided by NSW Police have been included as Advisory Note in the consent.

NSW Environment Protection Authority (EPA)

A referral was sent to NSW Environment Protection Authority (EPA) dated 19 April 2021 seeking their comments. The EPA recommended that Council consider the following:

- The processes outlined in State Environmental Planning Policy 55 - Remediation of Land (SEPP55) must be followed in order to assess the suitability of the land and any remediation required in relation to the proposed use.

Lismore City Council

Meeting held 9 November 2021 - DA21/132 - To undertake a change of use from a service station to a neighbourhood shop comprising internal fitout, car parking, landscaping, and associated works.

- The Applicant must ensure the proposed development does not result in a change of risk in relation to any pre-existing contamination on the site so as to result in significant contamination [note that this would render the Applicant the 'person responsible' for the contamination under section 6(2) of CLM Act].

The appropriate assessment and conditions of consent have been included in relation to the EPA's recommendations requiring the applicant to submit a validation report prepared by a suitably qualified consultant and a 'Section A1 Site Audit Statement' certifying that the subject land is suitable for the proposed use.

Consideration

The relevant matters for consideration under Section 4.15 of the *Environmental Planning and Assessment Act 1979*, are assessed under the following headings:

State Environmental planning policy No. 55 – Remediation of Land

The subject site was declared significantly contaminated under the *Contaminated Land Management Act 1997* by the NSW Environment Protection Authority (EPA) in June 2016.

Under clause 7 of SEPP 55 A consent authority must not consent to the carrying out of any development on land unless—

- (a) it has considered whether the land is contaminated, and
 - (b) if the land is contaminated, it is satisfied that the land is suitable in its contaminated state (or will be suitable, after remediation) for the purpose for which the development is proposed to be carried out, and
 - (c) if the land requires remediation to be made suitable for the purpose for which the development is proposed to be carried out, it is satisfied that the land will be remediated before the land is used for that purpose.
- (2) Before determining an application for consent to carry out development that would involve a change of use on any of the land specified in subclause (4), the consent authority must consider a report specifying the findings of a preliminary investigation of the land concerned carried out in accordance with the contaminated land planning guidelines.
 - (3) The applicant for development consent must carry out the investigation required by subclause (2) and must provide a report on it to the consent authority. The consent authority may require the applicant to carry out, and provide a report on, a detailed investigation (as referred to in the contaminated land planning guidelines) if it considers that the findings of the preliminary investigation warrant such an investigation.

The subject development application is supported by the technical report '*Underground Petroleum Storage System Removal and Validation Former Coles Express Lismore Heights 426 Ballina Road Lismore Heights NSW*' prepared by Cavvanba Consulting Ref:19078 R02 V3 dated December 2020.

The technical report identifies that the proprietors of the property have entered into a Voluntary Management Proposal (VMP) with the NSW EPA. As a part of the VMP, a Remediation Action Plan (RAP) is in place which involves removal of fuel infrastructure and contaminated soils and groundwater in addition to having to undertake two years of groundwater monitoring. These works have largely been completed except for the two years of groundwater monitoring.

The report concludes that the site is suitable for the continuing commercial/industrial land use with the following considerations:

- the site buildings remain in the current configuration.
- monitoring in accordance with the VMP continues; and

- the risk to subsurface maintenance workers is managed, i.e., with an environmental management plan (EMP)

Conditions of consent have been included in the proposed conditions requiring the submission a validation report prepared by a suitably qualified land contamination consultant and a 'Section A1 Site Audit Statement' certifying that the subject land is suitable for the proposed use.

The reporting provided, coupled with the conditions relating to a Site Audit Statement certifying the subject land is suitable for the proposed use, satisfies the requirements as specified under clause 7 of the SEPP.

State Environmental Planning Policy (Vegetation in Non-Rural Areas) 2017

No clearing of existing vegetation is proposed, the development complies with the aims and objectives and relevant provisions of this plan.

State Environmental Planning Policy No. 64 – Advertisement and Signage

Approval for signage has not been sought. A development application is required for any future business identification or advertising signs unless they are deemed exempt under the *State Environmental Planning Policy No 64 - Advertising and Signage* or *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* or other relevant legislation at the time. A condition has been applied to this end.

State Environmental Planning Policy (Infrastructure) 2007

The application has been assessed against the requirements of clause 101 *Development with frontage to classified road* and the proposal is considered consistent with the objectives and provisions of this clause.

Clause 45 of the SEPP requires the consent authority to notify the electricity supply authority inviting comments under certain circumstances as listed in the clause, one of which being any development within 5m of an exposed overhead electricity power line. There is an exposed electricity power line along the boundary of 426 Ballina Road however this powerline exceeds 5m from the proposed works.

A Traffic Impact Assessment has been prepared which demonstrates the design of the vehicular access to the neighbourhood shop is adequate. The application has been referred to TfNSW, the TAC and assessed by Council's Development Engineer all of whom have not raised any objections to the proposed development and supported the notion that the nature, volume or frequency of vehicles using the classified road to gain access to the site is satisfactory. Further comment can be found under the heading of *Traffic and Access* contained in this report.

State Environmental Planning Policy (koala habitat protection) 2019

The site is partly identified as an area for a site investigation area for Koala Plans of Management. No clearing of existing vegetation is proposed as part of this development.

Lismore LEP 2012

Zone, Definition and Permissibility

The proposed development is defined as a *neighbourhood shop* which means:

A premise used for the purposes of selling general merchandise such as foodstuffs, personal care products, newspapers and the like to provide for the day-to-day needs of people who live or work in the local area and may include ancillary services such as a post office, bank or dry cleaning, but does not include neighbourhood supermarkets or restricted premises.

Neighbourhood shops are a type of shop —

Shop means premises that sell merchandise such as groceries, personal care products, clothing, music, homewares, stationery, electrical goods or the like or that hire any such merchandise, and includes a neighbourhood shop and neighbourhood supermarket, but does not include food and drink premises or restricted premises.

Neighbourhood shops are permissible with development consent in the R1 General Residential Zone. It is noted however that commercial uses other than those expressly listed as permitted with consent are prohibited. The only other commercial uses permissible in the R1 General Residential Zone are Kiosks, Restaurants and Cafes, 'Shops' (other than neighbourhood shops) are prohibited.

Considering the neighbourhood shop definition, and to be consistent with this definition, a *variety* of general merchandise should be provided for the day-to-day needs of people who live or work in the local area. This is to differentiate the Neighbourhood shop land use from a 'Shop' that may focus on a single product, such as a *bottle shop*, which is prohibited in the zone. It has therefore been conditioned that should the application be approved, the premises shall not dedicate more than the proposed 32m² or 28% of the total floor area for the sale of alcohol products.

Zone objectives and Zoning Control Tables

Having regard to the provisions of LLEP, it is considered that:

- (a) The proposed development is in accordance with clause 2.3 and promotes the specific aims of this plan, the objectives of the zone and the objectives of the controls, and
- (b) The proposal is consistent with the objectives of the zone particularly by providing land uses that provide facilities or services to meet the day to day needs of residents.

As such, consent to the development may be granted.

Part 4 – Principal Development Standards

1. Demolition Requires Development Consent (cl 2.7)

Consent is sought for the demolition of an awning at the western side of the building and the removal of the eastern roller door and internal walls.

Height of buildings (cl 4.3)

The prescribed building height for the subject site is 8.5m. The proposed development complies with this clause as there are no changes to the existing building height of 4.5m.

Part 5 Miscellaneous provisions

Controls relating to miscellaneous permissible uses (cl 5.4)

The development standard 5.4 (7) prescribes that, neighbourhood shops must not have a retail floor area that exceeds 200 square metres. The total retail floor area (grocery and liquor) is 74m² and complies with this clause.

Heritage Conservation (cl 5.10)

The subject site is not a known Aboriginal place of heritage significance nor does it contain a heritage item or is a site in a heritage conservation area.

Part 6 – Additional Local Provisions

Earthworks (cl 6.2)

No earthworks are proposed.

Drinking water catchments (cl 6.4)

It is considered the proposed development does not pose any risk to drinking water storage.

Essential services (cl 6.9)

Services are available and will be constructed / supplied to a satisfactory level of compliance.

Lismore Development Control Plan

The application has been assessed against the relevant controls in the Lismore DCP as indicated in the following compliance table.

Development Control Plan Compliance Table

LISMORE DEVELOPMENT CONTROL PLAN		
	Complies Yes/No	Relevant Comments
Chapter 7 Off-street Parking		
Design, Layout and Landscaping	Yes	
Car Parking Spaces Required	Yes	Schedule 1 of the DCP requires 5 car parking spaces per 100m² GFA. The proposed development has 116m² GFA and therefore is required to provide 6 car parking spaces. A total of 13 car parking spaces including 1 accessible car parking space are proposed for the development, exceeding the requirements of the DCP car parking rate. The parking spaces (including accessible spaces) and access aisles as shown on the plans meet the requirements of AS2890. The applicant has also demonstrated that a Medium Rigid Vehicle (MRV) will be able to enter and leave the site in a forward direction.
Chapter 13 Waste Minimisation		
Relationship with Legislation	Yes	
Handling Waste	Yes	
Development and Construction Certificate Application	Yes	
Chapter 13 Crime Prevention through Environmental Design		
Guidelines for Development Assessment	Yes	A crime risk assessment for the proposed development responding to CPTED principles has been provided, which generally meet the guidelines.
Chapter 22 Water Sensitive Design		
Development Controls	Yes	The proposal will not trigger the requirements of Chapter 22 – Water Sensitive Design Lismore Development Control Plan as no additional imperious area will be constructed. This is consistent with the pre-lodgement advice.

Section 7.11 Contributions Plan

The *Lismore City Section 94 Contributions Plan* provides that 7.11 contributions are calculated on GFA. As there is no proposed increase in commercial GFA the development does not attract additional developer contributions.

Section 64 Levies

The proposed use as a retail outlet based on GFA is a lesser demand on water & sewerage services than that established by the previous use as a service station. No additional demands are generated by this development proposal over and above the previous approved use of the site. Section 64 levies do not apply to this development

Applicable Regulations

The EPA Regulation 2000 requires that Council take into consideration AS 2601-1991: the demolition of structures, as in force at 1 July 1993. An appropriate condition has been applied.

Relevant Council Policies

These have generally been satisfactory considered as part of the development.

Public consultation

Notification/ Submissions

The application was notified to adjoining and surrounding property owners in accordance with the provisions of *Community Consultation Plan – Appendix 1 (Council's Community Engagement Strategy and Community Participation Plan) for the Notification and Advertising of Development Applications*.

As a result of the notification, 4 submissions were received, all of which objected to the proposed development. See a summary of the submissions below.

Name of submitter	Issues raised	Assessment staff comments
Robert Garbutt	- Sale of alcohol (another bottle shop is not something our neighbourhood needs) - The store should carry items a neighbourhood shop generally carries, not just alcoholic beverages - Licensing (you must sell alcohol in a separate area) - The plans do not clearly indicate the areas for general retail and for the sale of alcohol. - no assessment of harms related to the sale of alcohol in the Crime Prevention Report - Issues relating to the obtaining of a liquor license - Hours of operation	- See section following for discussion on the sale of liquor - The store will carry items a neighbourhood shop generally carries and not just alcoholic beverages - A condition has been applied that restricts the retail area for the sale of liquor to 32m² or 28%. The submitted plan has been amended to show a separate area for the sale of alcohol - A community Impact Statement has been provided, a liquor license will be required to be approved by the Liquor Administration Board, prior to the sale of Liquor - Hours of operation are considerably less than that are permissible under the Liquor Act and have been further reduced by one hour in the proposed conditions of consent
Dan Rose	- Land contamination / remediation - The site is zoned residential - The last use of this site was in 2017. The site is zoned residential. Existing use rights have expired. - Financial viability - Sale of Alcohol	- For discussion on land contamination see the EPA section and State Environmental planning policy No. 55 – Remediation of Land section of this report. - The site is in a residential zone that permits neighbourhood shops. - The application does not rely on existing use rights for the change of use, the use is permissible - Financial viability is not an EP&A assessment consideration, that is for the proponent to consider. - See discussion below regarding sale of liquor

Name of submitter	Issues raised	Assessment staff comments
Maree Santarossa	• Site contamination • Sale of alcohol (already enough bottle shops & it promotes drinking alcohol availability and violence) Intoxicated people will be in the immediate vicinity causing problems • Access dangerous • No consultation	• For discussion on land contamination see the EPA section and State Environmental planning policy No. 55 – Remediation of Land section of this report. • Antisocial behaviour will be managed through security measures including CCTV cameras and external lighting. • See section following for discussion on the sale of liquor • See section following for discussion on Access • The DA was notified in accordance with Council policy and a Notice of Intention was served on the occupiers of all buildings on land within 100 metres together with other stakeholders (see further comment below)
Paul Moretti	• Concerns that the site will be turned in to a bottle/liquor outlet and this will have a negative impact on residential amenity • Entry and exit of the property is dangerous – traffic/pedestrian safety • Noise that may occur after 10pm, shop hours 10am-11pm • No drainage works to be undertaken. • Remediation of site not complete or up to EPA standards. • Lack of consultation with other property owners in close proximity.	• See section following for discussion on the sale of liquor • See section following for discussion on Access • It is not anticipated that the shop will generate an unacceptable level of noise. • Council's development Engineer provides that 'There will be no change to the hardstand area on the site as a result of this development and therefore the existing stormwater arrangements will continue to be satisfactory'. • For discussion on land contamination see the EPA section and State Environmental planning policy No. 55 – Remediation of Land section of this report. • The DA was notified in accordance with Council policy and a Notice of Intention was served on the occupiers of all buildings on land within 100 metres together with other stakeholders (see further comment below)

Comments

Sale of liquor

As demonstrated in the 4 submissions above the sale of alcoholic beverages and the anticipated social harms as a result has been a contention regarding the development. For further assessment and to investigate potential social impact Council requested a *Community Impact Statement* be submitted. A Community Impact Statement undertaken by *Hatzis Cusack Lawyers* was submitted with noteworthy findings as follows.

The submitted Community Impact Statement recommended that on balance, Council can be satisfied that the overall social impact in granting the application will not be detrimental to the wellbeing of the local community and broader community and that the proposal meets all of the other requirements of the Liquor Act, in support of the same, the following is noted:

- i. The proposal is to establish a small liquor department wholly within a proposed neighbourhood shop.

- ii. The liquor department will also allow customers of the neighbourhood shop to purchase a range of liquor when purchasing grocery and other items from the shop.
- iii. There is not a supermarket or neighbourhood shop selling the range of grocery or other items proposed, presently operating in the suburb of Lismore Heights.
- iv. Further, there is not an operating bricks and mortar liquor store in Lismore Heights, with the nearest liquor stores being located a considerable distance from the proposed neighbourhood shop in adjoining suburbs.
- v. Various responsible service of alcohol practices will be implemented to ensure that liquor is sold and supplied responsibly. Practices will also be in place to ensure that minors do not gain access to liquor. This will include security measures such as CCTV surveillance, a Plan of Management, and a House Policy, which accompany the application.
- vi. The granting of a packaged liquor licence for a facility such as that proposed (i.e., wholly within and comprising a defined section of a neighbourhood shop), is less likely to result in any negative impacts.
- vii. Studies reveal that assaults on licensed premises principally occur at hotels and nightclubs and outside of the hours that the proposed packaged liquor licence will trade.
- viii. No neighbouring occupier, or other stakeholders or special interest groups provided with the Notice of Intention raised any concern in relation to the proposal.
- ix. BOCSAR statistics reveal that the rate of liquor-related crime in Lismore Heights has mostly been below the State average across all categories for the past 5 years.
- x. The granting of the application will provide substantial public interest positive benefits which include:
 - Convenience/One-Stop Shop.
 - Choice and introduction of new product lines.
 - Avoidance of special trips.
 - Reduce escape expenditure and strengthen viability of the business.
- xi. Public demands and expectations to purchase liquor in conjunction with other supermarket shopping are entitled to be accorded significant weight in the Authority's decision making and are made expressly relevant by s3(1)(a) of the Liquor Act 2007 Act.

As mentioned above, the nearest existing operating liquor stores are a considerable distance away comprising a BWS and a Liquorland Store situated within the Lismore Shopping Square, Brewster and Uralba Streets, Lismore, and the IGA Express Plus Liquor associated with the IGA Supermarket at Goonellabah.

At present there are no operating liquor stores in Lismore Heights. The sole licensed premises in the suburb is the Lismore Heights Sports Recreation and Community Club Limited situated at 181A High Street, Lismore Heights. The Club is located more than 750 metres from the neighbourhood shop. That premises is the subject of a club licence and only open to members of the club and their guests. The Club does not provide a dedicated liquor store.

The statement contended that a number of studies demonstrate, the most problematic licensed venues account for a grossly disproportionate share of assaults and alcohol-related harms. Such venues are typically hotels and nightclubs concentrated in late-night entertainment districts and not neighbourhood shops with ancillary alcohol sales.

As has been argued in respect of numerous other applications for packaged liquor licences granted since the new Liquor Act commenced, a well-managed liquor store forming part of a neighbourhood shop where robust responsible service of alcohol procedures and practices will be in place, is less likely to result in any adverse/negative social impacts. Such premises are not the types of venues where incidents of violence or assault are likely to occur.

The sale of liquor is regulated in NSW by the Liquor Act and associated regulation(s). The damage inflicted by alcohol abuse is a larger social problem that is best rectified by education and community health support.

Conditions have been applied to restrict the hours that alcohol can be purchased and is still subject to the granting of a liquor license being issued by Liquor and Gaming NSW. Those hours are less than the general standard hours permitted by the Liquor Act in relation to a *packaged liquor licence*. These are presently until midnight Mondays to Saturdays, and 10.00 pm Sundays.

Based on the recommendations of Council's Community Services, the hours alcohol may be sold has been further reduced by 1 hour and conditioned accordingly as follows:

10am to 10pm Monday to Saturday
10am to 9pm Sundays.

Consultation (Notice of Intention)

The required *Notice of Intention* was served upon the occupiers of all buildings on land within 100 metres of the proposed licensed premises together with various other stakeholders and special interest groups as listed on the document accompanying the Community Impact Statement.

In addition, the relevant Notice of Intention was displayed at the front of the property for a period of 30 days. The Notice invited anyone who had any concerns in relation to the proposal to provide written responses to the contact details as set out in the Notice. It is noted that no stakeholder or other person raised any concerns following the said service and or display of the Notice of Intention.

Traffic and Access

Another pertinent issue in the assessment of the subject DA is traffic generation and access onto Ballina Road. Ballina road forms part of the Bruxner Highway (HW 16) which is a classified (State) road under the *Roads Act 1993*.

It was recommended by Council, in the pre lodgement meeting, that the proponent contact Transport for NSW (TfNSW) prior to lodgement and seek comment in relation to the proposal. The proponent reportedly contacted TfNSW Land Use Planning Section (Grafton), and the proposed development was discussed. The TfNSW officer advised that the application was not considered a major traffic generating development & there was no need for pre-DA consultation. TfNSW would consider the application upon referral from Lismore City Council once the DA has been lodged.

The application was referred to TfNSW with the response provided in *Attachment 4 – External Referral Responses* and the commentary found in this report above. TfNSW has not objected or raised concerns in relation to the safety, efficiency and ongoing operation of Ballina Road, however as noted, the consent authority (LLC) is to have consideration of these aspects.

A Traffic and Parking assessment (TIA) undertaken by *Intersect Traffic*, dated February 2021, was submitted with the application and is available for public viewing on Councils Website in DA Tracker. The main traffic issues assessed in the report was the availability of car parking to meet the peak parking demand generated by the development, plus the suitability of the existing vehicular access of the site to service the available on-site car parking. The following information was provided in the TIA and was not rebutted or challenged by TfNSW, the TAC or Council's Development Engineer.

Due to a raised concrete central median on Ballina Road along the site frontage all access to the new premises will be *left in only and left out only*. The site access needs to service a car park with less than 25 car parks fronting an arterial road.

Table 3.1 of Australian Standard AS2890.1-2004 Parking facilities – Part 1 Off-street car parking identifies that for Class 3 parking for the above conditions that a Category 2 access is required.

Lismore City Council

Meeting held 9 November 2021 - DA21/132 - To undertake a change of use from a service station to a neighbourhood shop comprising internal fitout, car parking, landscaping, and associated works.

Table 3.2 of *Australian Standard AS2890.1-2004 Parking facilities – Part 1 Off-street car parking* states a Category 2 access as being a combined entry / exit driveway 6 to 9 metres wide. The existing accesses to be used by the development are described as separate entry and exit driveways 9 metres wide separated by 13 metres and is described as a Category 3 access in accordance with Table 3.2 of *Australian Standard AS2890.1-2004 Parking facilities – Part 1 Off-street car parking*.

Therefore, the proposed development access exceeds the requirements of Australian Standards.

Sight distance at the access points needs to be in accordance with Figure 3.2 of *Australian Standard AS2890.1-2004 Parking facilities – Part 1 Off-street car parking*.

Within a 60 km/h speed zone, the minimum sight distance requirement is 65 metres or a desirable 83 metres. By onsite observation, the sight distance at the entry and exit accesses exceed 100 metres (estimated to be 150 to 160 metres).

The visibility will be further enhanced should Council endorse the TAC39/21 4.3 *Request for No Stopping Zone* - 426 Ballina Road, Lismore Heights minutes recommending the installation of the no-stopping zone. Council resolved previously to consider this as part of the Development Application Determination.

The car parking proposed to be provided is more than what is required under Council's DCP.

Schedule 1 of the DCP requires 5 car parking spaces per 100m² GFA. The proposed development has 116m² GFA and therefore is required to provide 6 car parking spaces. A total of 13 car parking spaces including 1 accessible car parking space are proposed for the development, exceeding the requirements of the DCP car parking rate.

The parking spaces (including accessible spaces) and access aisles as shown on the plans meet the requirements of AS2890. The applicant has demonstrated that a Medium Rigid Vehicle (MRV) will be able to enter and leave the site in a forward direction.

It is therefore considered that the proposed development has demonstrated access and car parking requirements that comply and exceed the Australian Standards and Councils Carparking DCP controls

Councils TAC found that only one accident has been recorded Infront of what was the service station. They have provided comment that there is no objection to the development and agreed to impose a no standing zone in front of the development should the development be approved to further improve visibility entering and leaving the site.

Councils Development Engineer has assessed the application and also supports the application stating the existing accesses width will allow all proposed vehicles to safely enter and exit the site. No changes to the accesses are required, however they are in rather poor condition and require a new surface. In relation to traffic impact, the proposed neighbourhood shop can be considered as a similar use to what was previously on the site (service station and shop), consequently there will be minimal change to the traffic numbers with no adverse impacts being generated on the surrounding road network because of this development.

Roads Act Approvals

The final design plans for the works to be undertaken in the roadway are to be finalised in a more detailed on-ground construction application pursuant to Section 138 of the *Roads Act 1993* (S138), which will be determined by Council's Development Assessment Engineers, in collaboration with the Traffic Advisory Committee.

As the premise has frontage to Ballina Road / Bruxner Highway, a State listed classified road (State 16), concurrence from TfNSW will form part of the assessment process, ensuring a robust review.

Local Government Act Approvals

The proposal requires approvals under Section 68 of the *Local Government Act 1993* for stormwater works, and sewer and water connection. These requirements have been included within the draft conditions.

Road upgrades

The site has a 40m frontage onto Ballina Road, existing accesses to be upgrade by the development are separate entry and exit driveways 9 metres wide separated by 13 metres. The Ballina Road / Bruxner Highway frontage is in poor condition and will need to be rectified. This pertains to redundant lay-backs and vehicular crossings that shall be reinstated to conventional kerb and gutter, foot-paving or grassed verge as appropriate.

Servicing

The site will be serviced by mainly medium rigid vehicles (MRV's) with a frequency of approximately 3 deliveries per day with the major deliveries occurring early in the AM outside peak traffic and peak operating periods for the development. The delivery vehicle will enter in a forward direction and park under the canopy before unloading to the store through the existing roller door and will not impede any of the on-site car parks. On completion of unloading the delivery vehicle can exit the site through the exit driveway in a forward direction. Overall, it is concluded that the servicing arrangements for the proposed development are satisfactory and suitable for the development.

Pedestrian safety

As all vehicles will be entering and exiting the development in a forward direction, pedestrian safety will not be unfavourably affected.

Finance

Comments were not required with this development type.

All Likely Impacts of the Development

All likely impacts of the proposed development have been considered within the context of this report.

ENVIRONMENTAL APPRAISAL

CONSIDERED

1. Statutory Controls	Yes
2. Policy Controls	Yes
3. Design in relation to existing building and natural environment	Yes
4. Landscaping/Open Space Provision	Yes
5. Traffic generation and Carparking provision	Yes
6. Loading and Servicing facilities	Yes
7. Physical relationship to and impact upon adjoining development (Views, privacy, overshadowing, etc.)	Yes
8. Site Management Issues	Yes
9. ESD Principles and Climate Change	Yes
10. All relevant S4.55 considerations of Environmental Planning and Assessment (Amendment) Act 1979	Yes

Public interest

The proposed permissible redevelopment of the site is considered to provide public benefits to the locality by making convenience items available to meet the day to day needs of residents.

The proposed development would generate economic benefits via construction works and the employment of staff required to manage the stores activities. The proposed development would rejuvenate and or re-purpose an existing unsightly disused building & surrounds, with new footpaths, landscaping, and reinstated road reserve verges.

The proposed development is in the public interest.

Conclusion

When assessing a development application consideration must be provided holistically, weighing up the merits against concerns. The application has merits, it meets the criteria of the zone objectives by providing goods to meet the day to day needs of residents. The proposal is compatible with the character of the locality and anticipated to have an acceptable impact on the amenity of the residential area.

The site is visually prominent being situated on an arterial road at the gateway of the Lismore city limits. Development of the site would provide a sense of rejuvenation for this strategically important location for what is presently an unappealing abandoned service station.

As the prior use of the allotment was a service station, it has become contaminated, which has been remediated to an acceptable level for commercial land use. Due to prior contamination, the land is limited to commercial use and required to have the existing structures remain in situ.

Commercial uses in the zone are limited. Neighbourhood shops are permissible in the zone. The proposed Neighbourhood shop is a re-adaptive permissible land use of the premises that otherwise has a limited potential for future use.

The matters raised in the 4 submissions have been addressed and consideration been given to matters of concern, all of which as has been extensively discussed within the report.

Concerns have been raised in relation to the safety of the vehicular access for motorists and pedestrians. These concerns have been investigated by qualified professionals from both Council staff and TfNSW, together with the qualified professionals engaged by the applicant. These experts have supported the proposed development and assert that traffic safety under the existing and proposed circumstance shall exceed the requirements of applicable Australian Standards.

Concerns have been raised regarding the sale of alcohol and the negative health and social implications. The Community Impact Statement contends that a well-managed liquor store forming part of a neighbourhood shop where robust responsible service of alcohol procedures and practices are in place, is unlikely to result in any adverse/negative social impacts.

The DA if successful will still be required to obtain a liquor licence and trade in accordance with applicable standards. The sale of liquor is regulated in NSW by the Liquor Act and associated regulation(s) and reviewed by the Licensing police on a regular basis.

The proposed hours liquor can be available for sale will be less than the standard hours permitted by the Liquor Act. The hours that alcohol can be sold has been further reduced by 1 hour and restrictions have been imposed on the floor area that liquor products may occupy.

The application for infill development of a brownfield site for the purposes of a Neighbourhood Shop has been assessed under the heads of consideration provided by the *Environmental Planning and Assessment Act 1979*. The proposed development has and been determined as generally conforming with such matters, together with meeting the intent, objectives, and performance criteria of the local planning statutes and is therefore recommended to be approved.

Attachment/s

- | | | |
|----------------------|---|----------------|
| 1. ↗ | Attachment 1 - Proposed Conditions of Consent | (Over 7 pages) |
| 2. ↗ | Attachment 2 - DA Plans - 426 Ballina Road LISMORE HEIGHTS 2480 | (Over 7 pages) |
| 3. ↗ | Attachment 3 - Council Referral Officers Reports | (Over 7 pages) |
| 4. ↗ | Attachment 4 – External Referral Responses | (Over 7 pages) |

Report

Subject	Imagine Lismore End of Term Report 2017-2021
TRIM Record No	BP21/570:EF19/805
Prepared by	Corporate Planning & Engagement Coordinator
Reason	Requirement of the Integrated Planning and Reporting framework
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The Local Government Act requires that the outgoing elected body of Council must prepare a final end of term report detailing achievements in implementing the strategic direction of the Community Strategic Plan over the term of the Council.

This report is to be prepared and presented to the community in the same year as local government elections in accordance with section 428(2) of the *Local Government Act 1993* (NSW).

The End of Term Report is therefore presented at this Council meeting consistent with the timing of the Local Government Election that is scheduled to occur on 4 December 2021.

Preparation of an End of Term report is a legislated requirement and part of the Integrated Planning and Reporting framework.

Recommendation

That:

1. The Imagine Lismore Community Strategic Plan End of Term report be received and noted.
2. End of Term report be incorporated into the Annual Report for 2020-2021.

Background

The Imagine Lismore Community Strategic Plan 2017-2027 has provided the direction for the delivery of Council activities and projects over the last five years. Council has reported on its progress in meeting the community strategic direction through quarterly and half yearly reports during this period. In addition to the regular progress reporting outlined in the Local Government Act (NSW), there is a requirement that the outgoing elected body must prepare a final end of term report detailing achievements in implementing the strategic direction of the Community Strategic Plan, over the term of the Council. This report is to be prepared and presented to the community in the year in which an ordinary local government election is to be held in accordance with section 428(2) of the *Local Government Act 1993*.

Given the postponement of the scheduled local government election in September 2020, the Imagine Lismore End of Term report highlights progress, and achievements over a five year rather than a four-year period.

With the Local Government Election to occur on 4 December 2021, the outgoing Council is now required to prepare and table this report. Following the election of the Council in December 2021, the Integrated Planning and Reporting cycle recommences starting with a review of the Community Strategic Plan. The End of Term report will inform the new Council on the progress to date and achievements against the Community Strategic Plan.

The End of Term Report 2017-2021 is an account of the achievements in implementing the strategic direction of the Community Strategic Plan over the term of the Council, and aims at answering the following these questions:

- Did Council do what it said it would do towards achieving the objectives of the plan?
- Did other partners in the process do what they said they would do towards achieving the objectives of the plan?
- Were these actions effective? Did anything change or start to improve?

Note, this report has not been formatted for publication to Council's corporate standard. Desktop publishing will occur as part of the final preparation of the *Lismore City Council Annual Report 2020-2021*. As such, citation of sources, footnotes and formatting may change (e.g. data that has been included in this report may be presented graphically in the annual report).

Comments

Finance

Not applicable.

Other staff comments

This is in accordance with Section 428(2) of the *Local Government Act 1993* (NSW) and the existing Integrated Planning Framework suite of plans.

Public consultation

The Imagine Lismore End of Term Report will be an addendum to the 2020-2021 Annual Report and will be publicised on the Lismore City Council website by 30 November 2021.

Conclusion

This report has not been formatted for publication to Council's corporate standard. Desktop publishing will occur as part of the final preparation of the *Annual Report 2020-2021*. As such, citation of sources, footnotes and formatting may change (e.g. data that has been included in this report may be presented graphically in the annual report).

Attachment/s

1. [🔗](#) Draft Community Report - EOTR 2017-2021 (Over 7 pages)

Report

Subject	Request for part of Peace Park, Nimbin to be reclassified as Operational and transferred to Nimbin Neighbourhood & Information Centre.
TRIM Record No	BP21/779:EF21/201
Prepared by	Strategic Planning Project Officer
Reason	To obtain a Council resolution to progress the proposal.
Strategic Theme	A prosperous and vibrant city
Strategy	Our city, villages and riverbank precincts are vibrant and provide diverse activity that strengthens our social connections.
Action	Provide socially inclusive, vital and welcoming services that support the education, social and recreational needs of the community.

Executive Summary

Council has received a request from the Nimbin Neighbourhood & Information Centre (NNIC) that part of the land at 9 Sibley Street, Nimbin (Peace Park) be transferred to them through a boundary adjustment with the adjoining property at 7 Sibley Street to facilitate the Sustainable Living Hub project. Lismore City Council was involved in the development of a Master Plan for the site and advised NNIC that to address access and parking requirements, the Master Plan should include the adjoining land at Peace Park.

NNIC have requested that Council gift the land to them because of the community's involvement in the initial acquisition of Peace Park. NNIC has also been maintaining part of the land '*replacing weed-infested piles of rubbles and rubbish with gardens and caring for those areas*' and would retain the existing basketball court for community.

Transferring the land for anything less than market value would likely trigger section 356 of the *Local Government Act 1993* which states a Council can contribute money or otherwise grant financial assistance to third parties in accordance with a resolution, subject to public notification requirements.

This report recommends that Council support NNIC's proposal to gift them part of 9 Sibley Street through a boundary adjustment. If Council does support the disposal of public land, the land must first be reclassified from community to operational land through an amendment to the Local Environmental Plan 2012. A report would also need to come back to Council to formally endorse the sale or gifting of the land if/when the reclassification is gazetted.

Recommendation

That:

1. Council supports in principle the ongoing development of the Sustainable Living Hub at 7 Sibley Street, Nimbin by the Nimbin Neighbourhood & Information Centre (NNIC) over part of 9 Sibley Street, Nimbin (Peace Park).
2. A Planning Proposal to amend the Lismore Local Environmental Plan 2012 to reclassify part of 9 Sibley Street, Nimbin from Community to Operational is brought back to Council.
3. Upon reclassification of that part of 9 Sibley Street, Nimbin, a report be brought back to Council.
4. Council provides in principle support to:-
 - a. The Transfer of that part of 9 Sibley Street, Nimbin (Peace Park), (Lot1 DP 305607) to NNIC.
 - b. The land being gifted to NNIC subject to the requirements of the *Local Government Act 1993* in relation to financial assistance.
5. All costs associated with the transfer of the land be paid by NNIC including Council's legal costs (if any).

Background

Council has received a request from the Nimbin Neighbourhood & Information Centre (NNIC) that part of the land at 9 Sibley Street, Nimbin (Peace Park) be transferred to them through a boundary adjustment with the adjoining property at 7 Sibley Street. The request is included as Attachment 1.

The site and the area proposed to be reclassified from Community to Operational and transferred are shown in Plates 1 and 2. Plate 3 provides an aerial view of the land. NNIC has requested that Council gift the land to them due to the community's involvement in the initial acquisition of Peace Park, which is outlined below.

History of the Site

A summary of the key points regarding the ownership and classification of 9 Sibley Street from Council's records is provided below.

- Peace Park and the land on the other side of Sibley Street that is now the Nimbin Community Centre (81 Cullen Street) were sold by the Department of Education in 1998 after the completion of the Nimbin Central School. (Folios 1/305607 & 1/930808).
- Lismore City Council purchased the two sites for \$280,000 with Nimbin Community Development Association (NCDA) (which has since become NNIC), providing an initial contribution of \$140,000.
- A Deed of Agreement dated 31/1/98 provided that subsequent payments by NCDA were to be made over a 10-year period to repay the remaining amount of the purchase price.
- Two lots were subdivided from Lot 1 DP930808 to create unique sites for the Nimbin Rural Fire Brigade and Council-owned public toilets.
- NCDA fulfilled its loan obligation to Council in 2004/05.
- A new Deed of Agreement dated 28/7/2009 outlined the process for the transfer of title for the Nimbin Community Centre (Lot 11 DP1013827) and the lease of Peace Park with an option for Nimbin Community Centre Inc. to take a transfer of the title for Peace Park within 1 year.
- In December 2009 Nimbin Community Centre Inc. advised Council that they would not exercise their option to become owners of Peace Park because of ongoing public liability costs associated with the proposed development of the site as a skate park.
- It was requested at this time that Council reclassify the land from Operational to Community.
- In April 2012, Council resolved to reclassify 9 Sibley Street (Peace Park) as Community Land.



Plate 1: Subject Site Location

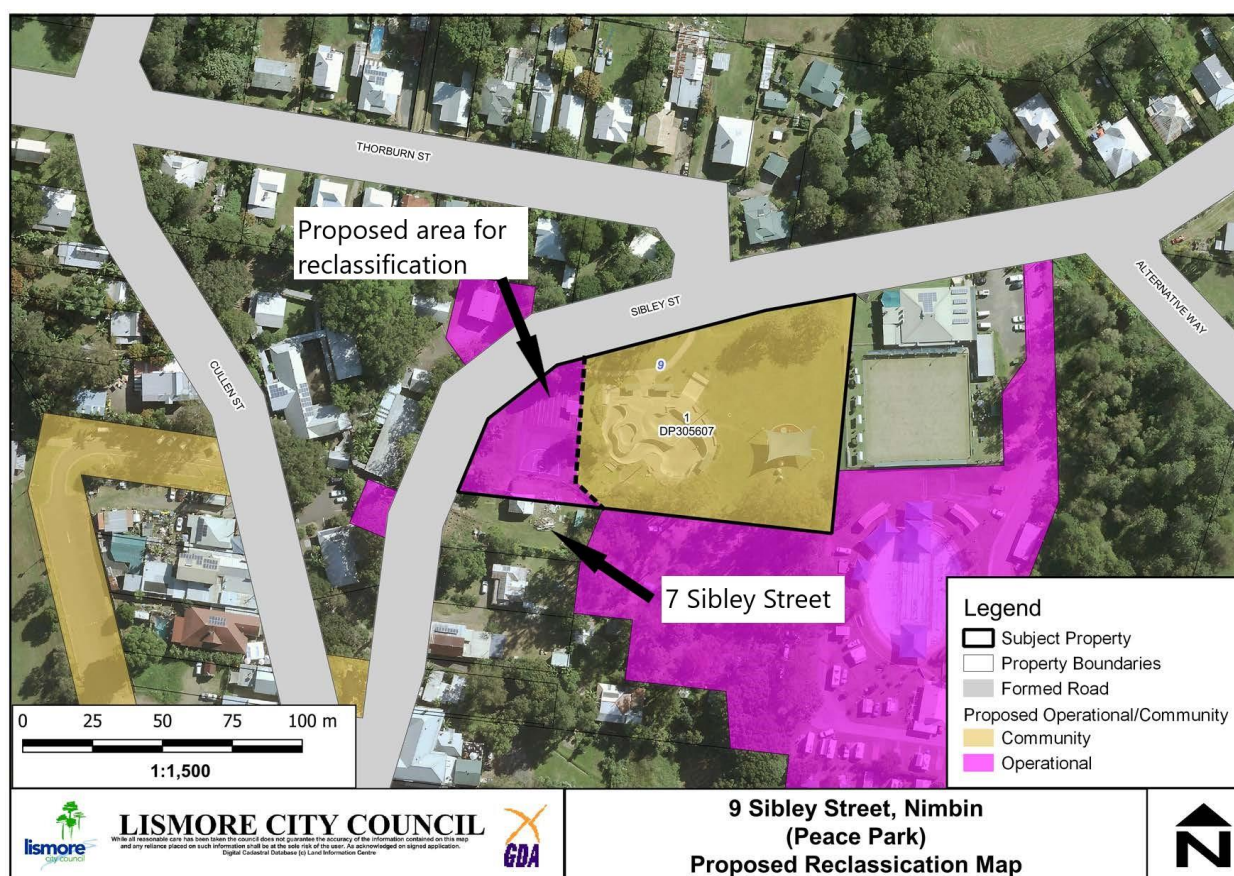


Plate 2: Area of land proposed for Reclassification and Boundary Adjustment



Plate 3: Aerial view of part of 7 Sibley and part of 9 Sibley Street, Nimbin

7 Sibley Street Masterplan

In 2012 NNIC and the Nimbin Community Centre Inc (NCCI) formed a partnership and undertook fundraising activities to purchase the land and the dilapidated house at 7 Sibley Street because of its strategic location adjacent to the Nimbin skate park. In 2013 a Concept Masterplan process was undertaken to develop 7 Sibley Street as a Sustainable Living Hub to share skills and promote all aspects of affordable housing and sustainable living. Extensive community input and consultation was undertaken through a series of workshops, including with Lismore City Council. Council advised that to address access and parking requirements, the Master Plan should include the adjoining land at Peace Park. The Master Plan is shown on Plate 4 below.

The project's aims and details of Council's input are included at Attachment 1. The Sustainable Living Hub is a key strategy in the 'Sustainable Nimbin Community Plan' which has involved several community planning forums that were most recently undertaken in 2015.

Stage 1 of the project, to relocate and renovate the existing house, was undertaken in 2018 and NNIC has taken full ownership of the site. NNIC is now seeking to take ownership of an area of approximately 1510m² on the western side of Peace Park that includes a basketball half court and shade structure so that future stages of the Sustainable Living Hub project can be undertaken.

NNIC has indicated that because of the time since the Masterplan was initially developed, further community consultation will be undertaken to refine the scale and scope of the project. Any future development will be subject to development consent from Council.

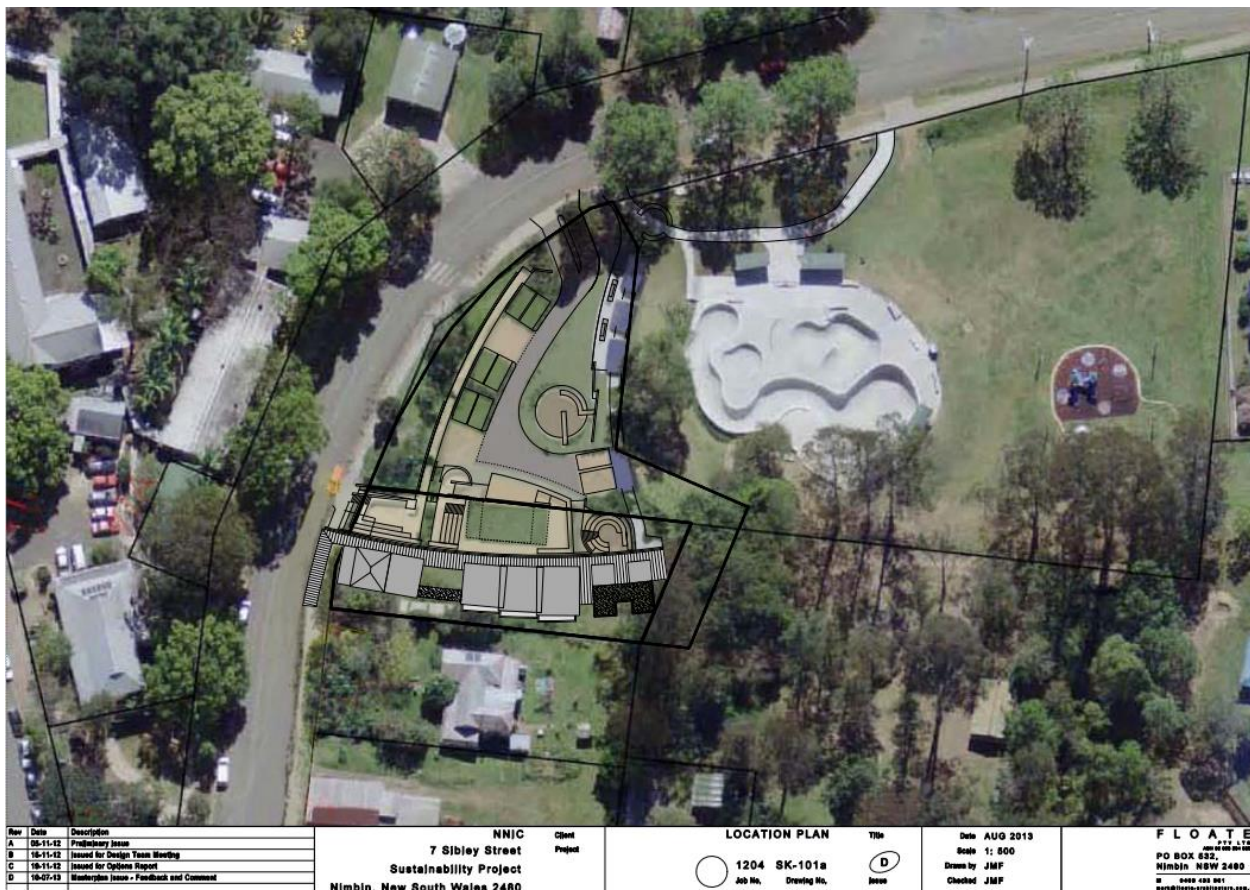


Plate 4: Location / Master Plan 7-9 Sibley Street

Options and Considerations for Council

Council is under no obligation to reclassify or dispose of the land and may elect to maintain the status quo. An alternative resolution (Option B) is provided if Council does not wish to support the request from NNIC.

Another option is to grant a lease of the land to NNIC through a Plan of Management and an Occupation Agreement. Council's Property Manager has provided comments in this report that this option is not preferable for either Council or a third party where infrastructure investment is proposed on Community land as it creates uncertainty for both parties and comes with significant State Government oversight, including a requirement for Ministerial approval for any lease exceeding 21 years. An alternative resolution for this option has not been included.

Alternatively, Council may be supportive of the proposal to reclassify and dispose of the land but wish to dispose of it at market value. NNIC is highly unlikely to be in a position to purchase the land at market value. However, an alternative resolution is provided if Council supports this option (Option A below).

This report supports the request made by the NNIC due to:

- the history of the land, which shows the community's previous acquisition and ownership of the land;
- the substantial community input into the Sustainable Living Hub Master Plan;
- Council involvement in the preparation of the Master Plan and advice about the need to extend the Plan to 9 Sibley Street;
- NNIC's work in contributing to the maintenance of the land '*replacing weed-infested piles of rubbles and rubbish with gardens and caring for those areas*', and their commitment to retain the existing basketball court for community use;
- No current Council plans for the land.

Additionally, there will be further community input during the reclassification of land process, which includes a Public Hearing. This process will allow further discussion about the future use of the land.

If Council supports the recommendation to reclassify the land to operational and gift it to NNIC, there are requirements under Section 356 of the *Local Government Act 1993* relating to the provision of financial assistance to others. This requires a resolution of Council and 28 days public notice. The recommendation as written requires a report to come back to Council post reclassification to determine the terms of disposal of the land.

Comments

Finance

The recommendation as printed is supported.

Property Services Manager

Power to dispose of land

If Council wish to support the disposal of public land, the land must first be reclassified from community land to operational land as recommended in this report. This is because Council has no power to sell, exchange or otherwise dispose of community land.

If Council support the proposal to dispose of the land it is recommended Council record that intention in the resolution. As Council does not have the power to sell community classified land, a report would need to come back to Council to formally endorse the sale of the land if/when the reclassification is gazetted.

Direct negotiations

Whilst a contract for the purchase or sale of land by a council is exempt from tendering requirements in the *Local Government Act 1993*, Council should consider whether it is appropriate to negotiate directly with NCCI in the context of its Unsolicited Proposal Policy and ICAC's 2018 publication *Direct Negotiations: Guidelines for Managing Risks*. Council should also consider the strategic value of this land for broader community needs.

Alternatives to Disposal of the Land

If Council does not support the disposal of public land, there are mechanisms to authorise third party development/use through the plan of management and an occupation agreement. Third party use of community land is firmly regulated and comes with significant community and state government oversight. This creates uncertainty for Council and the third party and can hinder access to funding opportunities. Reclassifying the land to operational land would be recommended if Council is supportive of any significant development, change of use or third-party investment in the site.

Land Disposal Costs

The report recommends all costs be borne by NNIC. From a property perspective, the costs involved with the disposal of land would/could include obtaining development approval for the subdivision, Council application fees, survey and plan registration fees, valuation and legal fees, stamp duty.

Land Value

Transferring the land for anything less than market value may trigger section 356 of the *Local Government Act 1993*. A Council can contribute money or otherwise grant financial assistance to third parties in accordance with a resolution. Where a proposed recipient acts for private gain Council cannot grant the assistance until at least 28 days' public notice of the council's proposal to pass the necessary resolution has been given. Public notice is recommended regardless of the profit status of NNIC.

The decision on whether or not to gift the land to NNIC should be deferred pending the outcome of the land reclassification process because:-

- a) the quantum of financial assistance should be determined by reference to the market valuation at the time the parties enter a Contract for the sale of land; and
- b) there is insufficient time before caretaker provisions come into effect to complete the public notice period.

If Council wants to record its intention to gift the land now, the resolution should be subject to the outcome of the section 356 process.

Manager Assets

The proposal is supported in principle. However at the time of writing this report, an assessment had not yet been made of the potential impacts on the process of the fact that NNIC had paid Council the full amount of the purchase price of the land under the previous deeds of agreement.

This is unlikely to change the legislative process that needs to be followed but is certainly a factor to be considered in Council's decision.

Public consultation

If Council supports the proposal, an amendment to the Lismore LEP 2012 would be required to reclassify part of the land from Community to Operational. This would require public exhibition and community consultation. A public hearing would also be required under Section 29 of the *Local Government Act 1993* and Section 57 of the *Environmental Planning & Assessment Act 1979*.

Alternative Resolutions

If Council is not supportive of the recommendation as written, alternatives and suggested resolutions are provided below:

Option A:

If Council support in principle the proposed boundary adjustment but wish to consider seeking market value for the land; an alternative resolution would be to delete 3(c) of the report's recommendation that Council provides in principle support to the land being gifted to NNIC.

Option B:

If Council does not support the request from NNIC and seeks to maintain the status quo, the alternative resolution is that:

1. *Council advises the Nimbin Neighbourhood and Information Centre that it does not support the request to transfer part of 9 Sibley Street, Nimbin to the NNIC through a boundary adjustment with the adjoining property at 7 Sibley Street, Nimbin and that the land remain classified as 'Community'.*

Conclusion

Council has been approached by NNIC to begin the process of reclassifying part of 9 Sibley Street, Nimbin in order that a boundary adjustment can be undertaken with the adjoining land at 7 Sibley Street. The purpose of the boundary adjustment is to facilitate the future development of the Sustainable Living Hub project. NNIC has requested that Council gift the land to them because of the community's involvement in the initial acquisition of Peace Park and past community support for the Sustainable Living Hub.

This report supports the request by the NNIC. If Council wish to support the disposal of public land, the land must first be reclassified from operational land to community land.

Two alternative resolutions have been provided for Council's consideration.

Attachment/s

1. [↓](#) Letter to LCC regarding Peace Park Boundary Adjustment

	NIMBIN NEIGHBOURHOOD & INFORMATION CENTRE INC. ABN: 18 607 837 325 www.nnic.org.au PO Box 20168, 71 Cullen Street Nimbin NSW 2480 Ph:(02) 6689 1692/1453 Fax: (02) 6689 1492 admin@nnic.org.au
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2nd September 2021

To: Michael Donnelly, General Manager
Cc: Mayor Vanessa Ekins
Cc: Scott Turner, Paula Newman

Dear Michael

RE: 7 Sibley Street – boundary adjustment request – Peace Park – section of land known as the former skate park/basketball court

As you are aware, Nimbin Neighbourhood and Information Centre (NNIC) is the owner and operator of 7 Sibley Street, Nimbin.

As set out in more detail below, since the purchase of 7 Sibley Street by the community, discussions have been held with Council staff and from the beginning it was identified that in order to progress the aims of the 7 Sibley Street project, it will be necessary to acquire the adjoining section of land known in the community as the old basketball court/skate park site.

Having completed Stage One of the Sibley Street project (relocating and renovating the old house), and finalised the ownership arrangements, NNIC now seeks to commence the process of adjusting the boundary between 7 Sibley Street and that section of Peace Park which adjoins 7 Sibley Street (the old skate park site) such that it becomes part of the 7 Sibley Street parcel of land and title.

The parcel of land which is the subject of this request is indicated in Attachment A. We acknowledge that a proper survey must be carried out to clearly identify the boundaries of the proposed adjustment.

SUMMARY OF PROPOSAL

The proposal is that Lismore City Council works with NNIC to achieve a boundary adjustment such that the parcel of land in question is returned to community ownership via its inclusion in the 7 Sibley Street title.

This proposal is **fully supported** by Nimbin Community Centre Inc (NCCI), who originally purchased the land on behalf of the Nimbin community and subsequently deeded it to Lismore City Council.

ADVANTAGES FOR COUNCIL

The main advantage to Council is that NNIC would take over the management of that piece of land and the maintenance of existing assets, thus reducing ongoing costs for Council. NNIC has already been dealing with some of the more difficult areas to maintain on the site boundaries, replacing weed-infested piles of rubbles and rubbish with gardens and caring for those areas, with the blessings of Council's parks and garden staff as we have made their job significantly easier.

It would also positively contribute to relations between Council and the community by returning the land to community ownership.

BACKGROUND INFORMATION – THE HISTORY OF THE OWNERSHIP AND ACQUISITION OF THE SUBJECT LAND

In 1904 Mr. Hugh Thorburn donated two acres of land to the Department of Public Instruction for the purpose of providing a secure site for a school in Nimbin. Mr Thorburn had housed the original school in his barn since 1891. In 1906 the first schoolroom (today's Bark Hut) was built on the donated land. By 1910 a new school building and residence for the teacher (today's Banksia House which is now the building occupied by us, NNIC), had been constructed.

In the late 1920s the Department bought two acres of land across the road from the school, for playing fields and paddocks for the students' horses. Originally this land was acquired for teaching animal husbandry and agriculture but became the school's playing fields and horse paddock, as many students came to the school on horseback. **This is the land now known as the Nimbin Peace Park.**

In 1987, due to increasing enrolments, the primary school was moved to temporary accommodation in the village. A new Primary School was constructed in 1995. In 1997 Nimbin Central School was completed to house both Primary and Secondary students, vacating the original school site in the middle of the village.

The Department of Education offered the two sites, the old school grounds and the now Peace Park, to Lismore City Council for \$280,000, approximately half their commercial value.

In August 1995 a community committee was established to explore the option of purchasing the site and in 1996 Council agreed to buy this land for Nimbin, provided that the community itself raised \$140,000 prior to purchase and undertook to repay the balance of the purchase price, plus any funds required for development of the site, over the following ten years.

By January 1998 the community had raised the \$140,000 required by Council and the committee became incorporated as the Nimbin Community

Development Association. The NCDA has since changed its name to the Nimbin Community Centre Incorporated (NCCI). NCCI took title to the property in 2008, the loan with Council having been paid in full.

We note that as part of the acquisition process, two sections of land were subdivided off to provide land for the Nimbin Rural Fire brigade and for the Council owned public toilets.

Eventually the Community Centre was regrettably forced to gift the Peace Park land to Council, in order to facilitate the insurance costs associated with the new skate park, and this process was completed in early 2012. The community was very disappointed at the loss of this land which everyone had worked so hard to secure.

Shortly afterwards 7 Sibley Street unexpectedly came onto the market. We had long identified the potential risk that a change of ownership of 7 Sibley Street may pose to the use of the skate park precinct, should it be acquired by an unsympathetic owner. It is unfortunate that the property did not come onto the market prior to the finalisation of the negotiations around Peace Park, because had we known at the time, the Community Centre would have sought to exempt the area of land which is the subject of this proposal, from the land gifted to Council.

As you are aware, in 2012 the community set about purchasing 7 Sibley Street, a task that was undertaken via a partnership between NCCI and NNIC and which was achieved by 2016 due to extensive fundraising and community donations. There was no grant funding involved in the purchase of 7 Sibley Street. In 2019 NNIC took full ownership and control over the property, having successfully completed Stage One of the Project.

DISCUSSIONS WITH COUNCIL

On 9th December 2012 myself and Dick Hopkins (then Secretary of NCCI) and Diana Roberts (Pres of NCCI) together with Mark Floate, Architect, met with several Council staff at Council Chambers, including Chris Watts Manager Developments and Assessments, Lindsay Walker, Sue Thatcher, Sandy Strachan, Mick Lacey and Matt Kelly, regarding the use and development of the site for the purposes of the Sustainable Living Hub project.

At that meeting we discussed parking and access issues and whether the adjoining old skate park site could be utilised as part of the plan. We had already identified that in order to develop the project we would need to address vehicle and disabled access and also provide additional car parking. Because of the limitations caused by the steep slope at front of the 7 Sibley Street (i.e. Western boundary) and the inadequate existing driveway access, we were advised by Council staff to develop a Master Concept Plan for 7 Sibley St which included the adjoining area of land to facilitate vehicle and disabled access and parking options.

We established a Design Team and the Master Concept Plan was subsequently developed by a process involving multiple community consultations at which Council staff including Gary Murphy, Peter Jeuken, Mitch Lowe, Annie McWilliam, Scott Turner, Sue Thatcher, Mark Batten, Brent McAllister, Matt Kelly, Rino Santin, plus Councillors Mayor Jenny Dowell, Simon Clough, Vanessa Ekins, Isaac Smith, Neil Marks and Gianpero Battista were present at one or more meetings. Altogether around 300 community members participated in the process.

The Master Concept Plan that was the outcome of this process has been submitted to Council on multiple occasions including as part of the Stage One Development Application process for Sibley Street.

Given the amount of time that has lapsed since the Master Concept Plan was developed, it will be necessary for us to return to the community for further consultations around the plans for the site and it is highly likely that changes will be made.

Nonetheless it is clear that any plans to further develop the 7 Sibley Street project, even if they are less ambitious or on a smaller scale than indicated in the Master Concept Plan, will still require the issues of access and parking to be resolved, and this will be almost impossible to achieve without acquiring the additional land via the boundary adjustment because of the constraints of the 7 Sibley Street site.

We note that there is currently a half basketball court located on the land in question and this is heavily used by the community. We have no intention of removing or compromising this or any other existing uses of the land by the community. Indeed we have basketballs available at 7 Sibley Street for people using the court. There is no intention to build any kind of structures on that land and our intention is to retain it as mixed recreational use open space. We will not undertake any major changes to that area of land without further community consultation.

We subsequently now seek to progress the matter of the boundary adjustment, in order to enable the future use of the site as is the intention. We are not at this time seeking to submit a DA in relation to the development of this parcel of land, rather only to acquire the land itself.

7 SIBLEY STREET – THE SUSTAINABLE LIVING HUB – PROJECT AIMS

The Sustainable Living Hub is a primary strategy identified under the Sustainable Nimbin Community Plan – now in its third version since first developed in 2009.

The project falls under most of the Key Focus Areas of the SNCP including Arts and Culture, Economic Development, Sustainable Energy, Food and Farming Security, Health and Well-being, Housing and the Built Environment and Transport.

The main aims of the project are attached to this letter at Attachment "A".

As you are aware, we have relocated and renovated the old house at 7 Sibley Street and it now houses our Community Tools and Equipment Library and is used for small skills share workshops. It has also become the home of community recycling efforts during major events such as Mardi Grass. The significant rubbish and weeds have been removed and replaced with gardens.

7 Sibley Street is also part of the proposed Rainbow Road walking track project.

COSTS AND WORK INVOLVED

Given the history of the ownership and acquisition of Peace Park, it is appropriate that the land in question is gifted back to the community and therefore it is not proposed that NNIC purchase the subject land from Council. The community already purchased the land through hard work over 10 years and it is only because of these efforts that it came into Council ownership at all.

Nonetheless we appreciate that there is significant work and costs involved to achieve the boundary adjustment, including, as we understand so far, land surveying, an LEP Amendment for a reclassification of the land and associated costs including advertising/exhibition costs. NNIC understands that Council undertakes periodic amendments of the LEP to reclassify Council owned land and requests that this land is included in the next 'round' of reclassification amendments.

NNIC undertakes to cover the costs involved from our limited reserve funds, and to prepare as much of the documentation as possible in order to keep the costs down. However, we will need some guidance and support as to exactly what documents will be required, plus information from Council as the current owner of the land. We are hoping we can collaborate around the costs to keep them as low as possible.

We anticipate that a land transfer may be involved in which case NNIC would seek a Stamp Duty Exemption from the OSR and prepare the Transfer documents. We have experience in both of these processes.

We seek Council approval of this proposal and a meeting with you to how we can jointly progress this matter. We are able to facilitate a Zoom meeting if necessary or convenient.

Please do not hesitate to telephone me with any queries.

Yours sincerely



Natalie Meyer
Manager
Encl:

- "A" Aims of the Sustainable Living Hub project
- "B" DPP plans showing 7 Sibley St plus the proposed area subject to the boundary adjustment highlighted in PINK
- "C" Drawing showing area of land in question highlighted in PINK
- "D" Current Aerial photo of the site
- "E" Master Concept Plan
- "F" Photos of the site taken on 1.09.2021

Attachment “A”**The aims of 7 Sibley Street – Nimbin’s Sustainable Living Hub**

The project aims to:

Promote Affordable and Sustainable Housing by:

- Helping home builders to access everything they need all in one place to build or modify a sustainable home
- Demonstrating/proving sustainable building design and technologies
- Providing opportunities to share and develop sustainable building and living skills
- Provide access to tools and equipment

Create Jobs by:

- Providing activities and products for visitors to Nimbin
- Providing a marketing platform and showroom for local sustainable enterprises
- Providing opportunities to share and develop skills and industry

Promote Energy Efficiency and Renewable Energy by:

- Demonstrating energy efficient building design and technologies and how to live without air conditioners
- Influencing local building to become energy efficient and sustainable
- Demonstrating renewable energy technologies and innovations

Enhance Local Food Security by:

- Providing teaching and learning space and commercial kitchen capacity
- Providing a Local Food Hub in the village
- Expanding the Nimbin Food Equipment library

Report

Subject	Delivery Program - Progress Report - Quarter 1 - July to September 2021
TRIM Record No	BP21/871:EF18/696
Prepared by	Corporate Planning & Reporting Officer
Reason	In accordance with the Local Government Act 1993, the General Manager is required to provide Council with a report on Delivery Program implementation at least every six months.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The attached Progress Report provides a summary of progress against each of the activities in the Delivery Program 2017 – 2021 and Operational Plan 2021-22 between July and September 2021. It also explains some changes that have been made to improve how information is presented.

Recommendation

That Council receive and endorse the attached Delivery Program Progress Report for the period July to September 2021

Background

The Local Government Act 1993 requires the General Manager to provide a report on the progress of implementing Council's Delivery Program at least every six months. The attached report covers the period 1 July – 30 September 2021 and includes a traffic light status update with supporting commentary for the Revised Delivery Program 2017-21/Operational Plan 2021/22.

Some improvements have been made to the design of this report and the new format is explained in detail on the first page of the report. In essence, we have developed a new set of status traffic lights (shown below) as well as measures, targets for each action.

Status Type and Colour Code	Explanation of Status
Not Updated	No update has been made for this action
On Track	This action is on track and things are progressing as they should
Taking action to address	This action is not on track and steps are being taken to address this. Responsible Officers need to articulate in their quarterly update comment what they are doing to address issues, in order to get this action 'back to green'
Needs critical attention	Responsible Officers select this status if they are 'putting their hand up' for assistance. They have done all they can to try and address issues with the action and it has not worked, so they are indicating that they need to escalate the matter

Not Due to Start	This action is not due to start until later in the financial year
Cancelled/Deferred	It has been formally agreed that this action will not happen at all or will be deferred to a later time
Completed	The action has been completed for the year and there will be no further resources needed to deliver it

Please also note that the wording of Action E4.1.18 has been amended from “Identify funding opportunities to develop a Business Continuity Plan” to “Develop a Business Continuity Plan.”

Comments

Finance

Not required

Other staff comments

Not required

Public consultation

The report will be placed on Council's website as well as the Your Say Lismore Engagement portal for community access.

Conclusion

This Progress Report details progress against the operational activities and projects as set out in the Imagine Lismore Delivery Program 2017-2021/Operational Plan 2021-22 for the period July to September 2021.

Attachment/s

1. [Progress Report - Quarter 1 - July to September 2021](#) (Over 7 pages)

Report

Subject	September 2021 Quarterly Budget Review Statement
TRIM Record No	BP21/899:EF09/580-03
Prepared by	Principal Accountant
Reason	In accordance with Clause 203, Local Government (General) Regulations, Council approval is required to amend the 2020/21 Budget to reflect the actual or anticipated result
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The forecast consolidated financial results and cash position reported in the QBRS are:

• Net Operating Result for the Year – Surplus	\$16,092,400
• Net Operating Result for the Year before Capital Grants & Contributions – Deficit	(\$20,138,600)
• Funding Sources (Consolidated) & Cash Position – Deficit	(\$240,000)

Major Movements on the Operating Result:

Unfunded Adjustments

The main movements are summarised as follows:

Movement	Amount
Additional cemetery income resulting from historical funeral plan policies being claimed	20,000
Additional Financial Assistance Grant received	117,300
Airport income	(52,000)
General rates & charges received - general fund	82,600
Increase in mayoral and councillor fees - impact on general fund	(5,800)
Lower consultant cost less drop in revenue (drill and blast delayed) at quarry	6,800
New Revenue from rentals	8,100
Total	\$177,000

- General Fund - Additional funding received in the form of Financial Assistance Grants \$117,300. This amount is not tied to specific activities, so it reduces the projected deficit.
- Lismore Regional Airport - Reduced income (\$52,000) from passenger numbers and car-hire kiosk due to COVID-19 lockdowns being extended into the 2021/22 year.
- General Fund - additional rates received above budget \$82,600. This is due to a re-calculation in properties that occurs each year and can not be quantified at the time of setting the annual budget.

The total unfunded amounts improve the budget deficit from (\$417,000) to (\$240,000).

Funded Adjustments

The main movements are summarised as follows:

Major Funded Movements	Amount
Flood Disaster Recovery Funding Arrangements - Roads & Bridges	\$9,684,700
Waste minimisation, Wastewater and Stormwater rates	(\$139,600)
Airport runup bay project - new funding - 100% external funding (Federal)	\$300,000
Total major funded movements	\$9,845,100
These transactions are all funded – reserves, reduced expenses, grants unexpended loans	
More detail is included in the September QBRS attachment	

New Grant and unbudgeted grant funds receive:

- Roads & Bridges - Flood disaster recovery additional grants of \$9,684,700 expected to be fully utilised on road and bridge repairs. This will show as an increase in Employee Benefits costs of (\$188,700) and Materials & Contracts of (\$9,496,000).

- Lismore Regional Airport - Federal grant funding \$300,000 has been awarded to undertake capital project at the Airport.

Major Movements – Capital:

Acquisition of Assets	Amount
Financial Assistance Grant - allocated to capital roads projects	(\$91,400)
Airport runup bay project - new funding - 100% external funding (Federal)	(\$300,000)
Major Movements	(\$391,400)

Commentary on all recommended changes is included in the September 2021 Quarterly Budget Review Statement.

Key Performance Indicators (KPI)

Of the seven KPIs included in the September quarterly report, three are unfavourable compared to benchmarks.

Operating Performance Ratio – The unfavourable variance for the current year is due mainly to the increase in depreciation expense as a result of the revaluation of roads assets in the 2019/20 financial year. In addition Council operating result has declined due to the recognition of \$801,000 in carried forward works from 2021.

Unrestricted current ratio- Council has undertaken considerable work during the 2021 Financial reports to increase its short term liquid assets (internally restricted cash) which will improve this ratio to a more satisfactory level.

Building & Infrastructure Renewals Ratio – more work is required to address this issue.

Long Term Financial Plan – Remediation

While Council's financial position as at 30 June 2022 is anticipated to be satisfactory, having regards to the adopted 2021/22 Operational Plan, however there are indicators that require immediate attention to ensure long-term financial sustainability.

Movements of categories within the existing budget for improved data analytics and reporting

As part of Council's ongoing improvement of processes and reporting, certain reporting categories in the General Ledger have been reviewed. It was determined that some of the categories being utilized were too broad to provide adequate data for reporting and analytics. Where additional reporting capability was required the broader categories were broken down into more specific accounts.

This will not have an overall impact on the quarterly or annual reports of Council. It does not represent a change to budget, strategy or Operational Plan however there will be some movement between categories as the project is completed.

Major Re-categorization	Amount
Employee Benefits & On- Costs	(\$44,400)
Materials & Contracts	\$44,400

Recommendation

That Council adopt the attached September 2021 Quarterly Budget Review Statement.

Background

The *Local Government (General) Regulation 2005* requires the annual budget to be monitored on an ongoing basis and a quarterly budget review statement prepared and reported to Council. The content is mandated by the NSW Office of Local Government.

The September 2021 Quarterly Budget Review Statement (QBRs) includes the recommended changes to the budget for the year-ended 30 June 2022. To meet financial reporting purposes, the QBRs has been prepared on a consolidated basis with internal transactions eliminated.

Only variations that can be reliably quantified or where there is substantial risk in meeting budget expectations have been reported.

For clarity, where an amount is 'favourable' to Council's financial result for the year or financial position as at 30 June, it will be shown as un-bracketed. Where an amount is 'unfavourable' to Council's financial result for the year or financial position as at 30 June, it will be shown as (bracketed).

September 2021 QBRs – Consolidated Summary

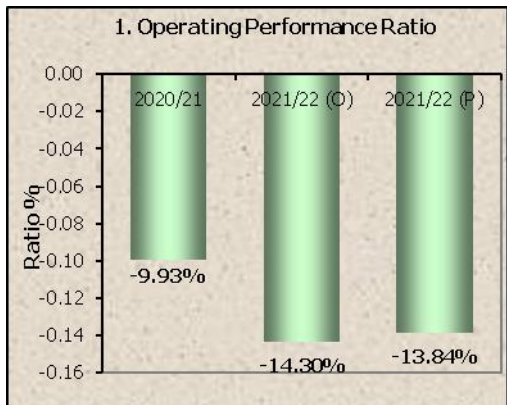
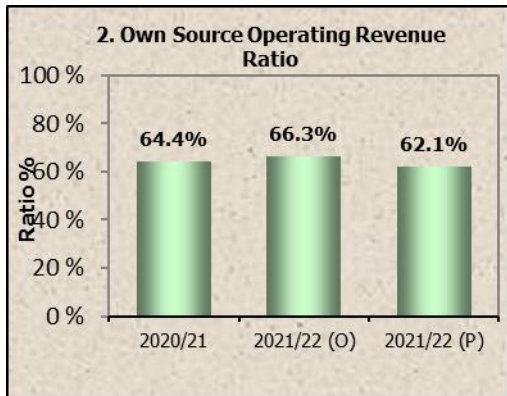
Financial Results

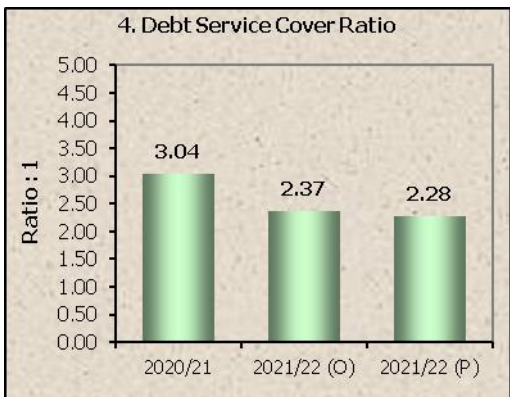
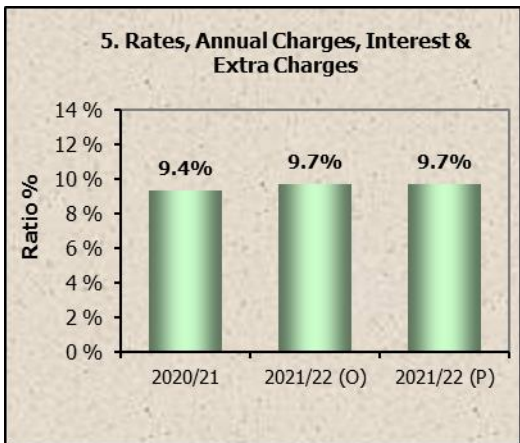
Item	Adopted 2021/22 Budget	Approved Carry Forward	<u>Recommended Changes September 2021 QBRs</u>	Revised 2021/22 Budget
Net Operating Result for the Year	\$16,502,000	(\$801,000)	<u>\$390,400</u>	\$16,092,400
Net Operating Result for the Year before Capital Grants & Contributions	(\$19,428,000)	(\$801,000)	<u>\$90,400</u>	(\$20,138,600)
Funding Sources (Consolidated) & Cash Position – Surplus	(\$417,000)	\$0	<u>\$177,000</u>	(\$240,000)

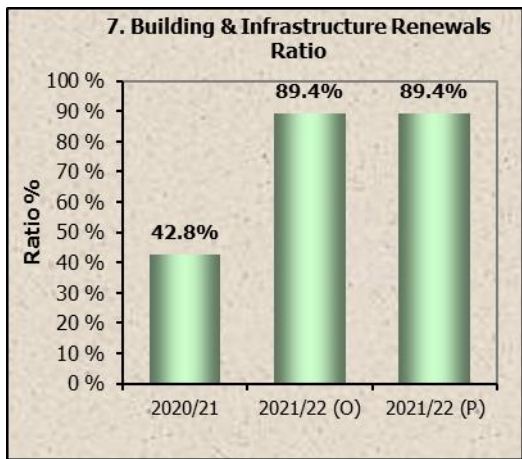
The Net Operating Result for the Year before Capital Grants & Contributions is considered the more appropriate result as it excludes income received for capital purposes and therefore not matched by a related expense.

For the above results, a deficit means Council is using more resources (including depreciation) than it is generating in income, and a surplus means Council is generating more income than resources used. An ongoing deficit result is not financially sustainable.

Key Performance indicators

Ratio	Commentary								
1. Operating Performance Ratio  <table border="1"> <caption>1. Operating Performance Ratio</caption> <thead> <tr> <th>Year</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>-9.93%</td> </tr> <tr> <td>2021/22 (O)</td> <td>-14.30%</td> </tr> <tr> <td>2021/22 (P)</td> <td>-13.84%</td> </tr> </tbody> </table>	Year	Ratio %	2020/21	-9.93%	2021/22 (O)	-14.30%	2021/22 (P)	-13.84%	This ratio measures the achievement of containing operating expenses within operating revenue. Net operating result from continuing operations (excluding capital items) as a percentage of operating revenue (excluding capital items). Consolidated: Benchmark is greater than (0) September 2021 – Unfavourable. The unfavourable variance for the current year is due mainly to the increase in depreciation expense as a result of the revaluation of roads assets in the 2019/20 financial year. In addition, Council operating result has declined due to the recognition of \$801,000 in carried forward works from 2021.
Year	Ratio %								
2020/21	-9.93%								
2021/22 (O)	-14.30%								
2021/22 (P)	-13.84%								
2. Own Source Operating Revenue Ratio  <table border="1"> <caption>2. Own Source Operating Revenue Ratio</caption> <thead> <tr> <th>Year</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>64.4%</td> </tr> <tr> <td>2021/22 (O)</td> <td>66.3%</td> </tr> <tr> <td>2021/22 (P)</td> <td>62.1%</td> </tr> </tbody> </table>	Year	Ratio %	2020/21	64.4%	2021/22 (O)	66.3%	2021/22 (P)	62.1%	This ratio measures Council's fiscal flexibility by reporting Council's reliance on external funding sources such as operating grants and contributions. Council's financial flexibility improves the higher the level of its own source of revenue. Consolidated: Benchmark is greater than 60% September 2021 – Favourable
Year	Ratio %								
2020/21	64.4%								
2021/22 (O)	66.3%								
2021/22 (P)	62.1%								
3. Unrestricted current ratio  <table border="1"> <caption>3. Unrestricted current ratio</caption> <thead> <tr> <th>Year</th> <th>Ratio : 1</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>1.84</td> </tr> <tr> <td>2021/22 (O)</td> <td>1.45</td> </tr> <tr> <td>2021/22 (P)</td> <td>1.45</td> </tr> </tbody> </table>	Year	Ratio : 1	2020/21	1.84	2021/22 (O)	1.45	2021/22 (P)	1.45	The 'unrestricted current ratio' represents a council's ability to meet short-term obligations as they fall due. Restrictions placed on various funding sources (e.g. Section 7.11 developer contributions) exclude these funds from being used in day to day operations. Consolidated: Benchmark is greater than 1.5x September 2021 – Unfavourable The ratio is below the required benchmark however this is expected to improve during the 2021/22 year. Council has undertaken considerable work during the 2021 financial year to increase its short term liquid assets (internally restricted cash) which will improve this ratio to a more satisfactory level.
Year	Ratio : 1								
2020/21	1.84								
2021/22 (O)	1.45								
2021/22 (P)	1.45								

Ratio	Commentary								
4. Debt Service Cover Ratio  <table border="1"> <caption>4. Debt Service Cover Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio : 1</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>3.04</td> </tr> <tr> <td>2021/22 (O)</td> <td>2.37</td> </tr> <tr> <td>2021/22 (P)</td> <td>2.28</td> </tr> </tbody> </table>	Period	Ratio : 1	2020/21	3.04	2021/22 (O)	2.37	2021/22 (P)	2.28	This ratio measures the availability of operating cash to service debt including interest, principal and lease payments. Consolidated: Benchmark is greater than 2. September 2021 – Favourable.
Period	Ratio : 1								
2020/21	3.04								
2021/22 (O)	2.37								
2021/22 (P)	2.28								
5. Rates, Annual Charges, Interest & Extra Charges Outstanding Percentage  <table border="1"> <caption>5. Rates, Annual Charges, Interest & Extra Charges Data</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>9.4%</td> </tr> <tr> <td>2021/22 (O)</td> <td>9.7%</td> </tr> <tr> <td>2021/22 (P)</td> <td>9.7%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	9.4%	2021/22 (O)	9.7%	2021/22 (P)	9.7%	This indicator assesses the impact of uncollected rates and annual charges on liquidity and the adequacy of recovery efforts. This percentage is based on the amount outstanding as a percentage of the amount to be collected for rates and annual charges for the current year and outstanding from previous years. The percentage will decline as the financial year proceeds and rates instalments are due and paid. Consolidated: Benchmark is less than 10%. September 2021 – Favourable
Period	Ratio %								
2020/21	9.4%								
2021/22 (O)	9.7%								
2021/22 (P)	9.7%								
6. Cash Expense Cover Ratio  <table border="1"> <caption>6. Cash Expense Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio : 1</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>12.0</td> </tr> <tr> <td>2021/22 (O)</td> <td>5.6</td> </tr> <tr> <td>2021/22 (P)</td> <td>5.6</td> </tr> </tbody> </table>	Period	Ratio : 1	2020/21	12.0	2021/22 (O)	5.6	2021/22 (P)	5.6	The liquidity ratio indicates the number of months a council can continue paying for its immediate expenses without additional cash inflow. Consolidated: Benchmark is greater than 3x September 2021 – Favourable
Period	Ratio : 1								
2020/21	12.0								
2021/22 (O)	5.6								
2021/22 (P)	5.6								

Ratio	Commentary								
7. Building & Infrastructure Renewals Ratio  <table border="1"> <caption>7. Building & Infrastructure Renewals Ratio</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>42.8%</td> </tr> <tr> <td>2021/22 (O)</td> <td>89.4%</td> </tr> <tr> <td>2021/22 (P)</td> <td>89.4%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	42.8%	2021/22 (O)	89.4%	2021/22 (P)	89.4%	This ratio is to assess the rate at which assets are being renewed against the rate at which they are depreciated. Consolidated: Benchmark is greater than 100%. September 2021 – Unfavourable The ratio is a snapshot of what is expected to be spent on renewals for the 2021/22 year only. The final ratio may be impacted due to timing of completion of budgeted works as a result of weather or realignment of priorities as a result of additional grant funding from Transport for NSW.
Period	Ratio %								
2020/21	42.8%								
2021/22 (O)	89.4%								
2021/22 (P)	89.4%								

Other

Lismore Recycling and Recovery Centre – Significant waste revenue decline

Council introduced uniform waste disposal charges at the Lismore Recycling and Recovery Centre from 1 July 2021. This change removed the historical discount provided to major commercial customers. A review of waste disposal revenues for July 2021 - September 2021 indicated that they are less than anticipated on a pro rata basis.

While this is an unfavourable financial outcome, it does prolong the life of the cell and reduce the risk of reaching capacity prior to works being completed on a new cell. Although it may represent an unfavourable cash impact to Council in 2022 year it will result in a favorable impact to Council in the Long-Term Financial Plan.

Waste disposal revenues will continue to be monitored monthly and opportunities to reduce expenses or generate additional revenues to offset this will be explored.

Capital

Council has an extensive capital works program listed for 2021/22. The delivery scheduled is being reviewed in light of available resourcing and the priorities of Council. It is anticipated that there will adjustments made to the works program with works being rescheduled for later in 2021/22 or to be completed in 2022/23. Adjustments will be reported to Council in future QBRs as information is quantified.

Borrowings

Council included in its 2021/22 Operational Plan proposed borrowings for remediation works at the Waste Facility \$500,000 and Oakes Crozier Oval development \$445,100. It is proposed that these works will be funded from Council's Internally Restricted Reserves (these were included in the Reserve report to Council 12 October 2021). This adjustment has not been included in the September QBRs report.

Unexpended grants

Council has approximately \$10 million in unexpended grant funds carried forward from 2021/22. During the 2021/22 budget process estimates were made as to what portion of project funding was available from unexpended grants and what portion related to new grants to be received in 2021/22. Staff are working towards realigning the funding sources for projects and this will be reported in the December 2021. There is no change to the project delivery but there will be a change to the Income Statement of Council (Consolidated) & Funding Sources (Consolidated).

Public consultation

Not required

Attachment/s

1. [↗](#) September 2021 Quarterly Budget Review Statement (Over 7 pages)

Report

Subject	Write Off Debt - Quarry Sundry Debtor
TRIM Record No	BP21/405:EF20/295-1
Prepared by	Rating Officer
Reason	The unpaid amount is not considered collectable or not commercially viable to pursue.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

This report provides details relating to a Quarry Sundry Debtors Account in the name of Arjuna Sayers T/As Nimbin Civil Earthworks. Debt recovery procedures have been followed to the full extent both in-house and through Council's Collection Agent (Executive Collections) without success.

Recommendation

That the full debt, \$28,729.95, be written off (Debtor Account 2407).

Background

A credit application was processed in October 2017 and resulted in a Sundry Debtor account being opened with a monthly credit limit of \$5,000.

The first transaction was recorded at the Quarry on 19 October 2017 with the subsequent invoice for \$1,432.50 issuing in late October 2017. The amount was paid within Council's normal 30-day terms.

Invoices issued in November 2017, December 2017 and February 2018 were also paid in full but outside the 30-day payment timeframe. In March of 2018 the account was allowed to go over the \$5,000 credit limit and whilst some payments were still being received this was far outweighed by the cost of new product continuing to be provided. Based on the growing debt Finance placed the account on "Stop" as at 12 July 2018. The last payment was received on 23 August 2018 and standard debt recovery procedures were initiated.

Debt Recovery Action

The account was referred to Council's Debt Recovery officer on 17 October 2018 and was immediately forward to Executive Collections (EC) to start debt recovery action. The following is a summary of the action taken:

17 October 2018	Demand letter sent
31 October 2018	Arjuna called EC requesting an arrangement of \$200.00 per week and was advised the request would be forwarded to Council for confirmation.
19 November 2018	Council advised EC that the arrangement was not acceptable as the amount was not sufficient for the size of the debt and length of time it would take to pay.

22 November 2018	EC contacted Arjuna and advised Council required an arrangement of \$500.00 per week. Arjuna advised that they could not afford that amount, Executive Collections then requested he send an email detailing his situation and that it would be forward to Council. Please note no communication was received.
19 December 2018	Statement of Liquidated Claim (SOLC) lodged.
4 February 2019	Service of SOLC was attempted at registered business address. A female person advised that debtor hadn't resided there for a "long time" and that she had no forwarding address or contact details.
20 February 2019	Service of SOLC was attempted at address as per the original credit application. The EC staff member spoke the owner of the property who advised that Arjuna moved out August 2018, leaving no forwarding address and believes he has moved to "The Coast".
28 February 2019	New mobile number located for debtor, no answer, rang out and unable to leave message.
11 July 2019	Various attempts to obtain relevant contact details failed and Council, via EC, requested and obtained an extension to the SOLC.
Current	Attempts to contact the company representative have continued at regular intervals with no success.

Comments

Finance

Council has taken all reasonable steps to recover these funds without success, therefore the recommendation is supported.

Council has also reviewed its practices around the approval of debtor's applications and the application of credit limits.

Public consultation

Not Required

Conclusion

The debtor was allowed to exceed their credit limit which played a part in the significant outstanding debt. This issue was brought to the attention of Commercial Services Management in 2018 and Finance was given assurances that credit limits would be strictly applied in the future. To date no further issues in relation to limits being exceeded without authorization have occurred.

Executive Collections has continued to attempt to find relevant contact details to allow the Statement of Liquidated Claim to be served but has been unsuccessful. Due to this no further actions are available to recover the debt.

Attachment/s

There are no attachments for this report.

Report

Subject	Investments - October 2021
TRIM Record No	BP21/663:EF21/92
Prepared by	Management Accountant
Reason	Required by Local Government Act 1993, Local Government (General) Regulations 2005 and Council's Investment Policy
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

Investments as of 31 October 2021 are estimated to be \$96,027,000.

The interest rate reported for October 2021 is estimated to be 0.46% which is above the 90 Day Bank Bill Index of 0.04%. The final interest return may vary due to actual returns achieved on investments advised after month end.

Recommendation

That the report be received and noted.

Background

The *Local Government Act, 1993* (Section 625), *Local Government (General) Regulations 2005* (Clause 212) and Council's Investment Policy requires a monthly report be submitted to Council on investments. The report is to include the source and amount of funds invested, investment portfolio performance for the period and a statement of compliance in relation to the requirements of the *Local Government Act, 1993*.

Report on Investments

- *Confirmation of Investments – at Market Value – 30 September 2021* \$ 101,377,000
- *Estimated Investments – at Market Value – 31 October 2021* \$ 96,027,000

Investments decreased from the time of writing the September Report to the end of September by \$1.93 million. This was due to the payment of creditors and staff costs at the end of the month. Investments have decreased by an additional \$5.35 million during October. The main reason for this decrease is the payment of creditors during the month of \$6.29 million along with Bulk Water payment of \$404,000, Loan Repayments of \$659,000 and staff costs, with October being a period that little income is received.

The current rate of return on investments for October 2021 is estimated to be 0.46% using actual returns where available, and estimates based on the previous period balances and interest rates. This is above the 90 Day Bank Bill Index of 0.04%.

The estimated interest earned for October 2021 is \$38,107. Estimated interest earned to date is \$160,642 which is more than the pro rata 2021/22 budget of \$151,933. This is a favourable variance of \$8,709. The current investing environment is still complicated with liquidity levels still high for many institutions.

Compliance with New Policy Requirements

A new investment policy was adopted by Council in May 2020. This policy shows a move towards the framework suggested by TCorp to comply with their borrowing requirements into the future.

A plan to move towards the new policy requirements is being followed, but as can be expected, this will take time, especially in the current COVID climate. As investments come due, wherever possible they are moved to comply with the new policy. No investment will be broken early to fit within the new framework.

The following is a summary of where Council's investments currently sit in relation to the adopted policy requirements:

Long Term Rating	Maximum Portfolio Limit	Current Holding	Divestment Required
AAA	100%		
AA+ to AA-	100%	44%	
A+ to A	100%	17%	
A-	40%		
BBB+	20%	18%	
BBB	10%	10%	
BBB- and below – Local ADIs	5%	4%	
BBB- and below - other	5%	7%	2%
TCorp	100%		

Fossil Free (Ethical) Investments

As part of the new policy framework and within the limits of prevailing Legislation, Council's investments will be made in consideration of the principals of ethical investment management.

To meet the new adopted Investment Policy requirements, the holdings in some institutions that are fossil fuel free have been divested as they do not meet the new rating criteria. Investments in institutions that are not fossil fuel free but provide green term deposits and bonds are continually being investigated and will be considered within the investment framework as they become available and fit within the policy criteria.

Council currently holds \$8 million in Commonwealth Bank Green Term Deposits.

Following is a summary of the movement:

Type of Investment	As reported for September 2021		As reported for October 2021	
	Value of Investments	% of Portfolio	Value of Investments	% of Portfolio
No Investment in Fossil Fuel Industry	\$45,000,000	44%	\$41,000,000	43%
Investment in Fossil Fuel Industry	\$58,307,000	56%	\$55,027,000	57%

The amount held in investments in the Fossil Fuel Industry has decreased on a dollar value during October but increased on a percentage basis. There has been a redemption of some investments that were held with ADI's that do not invest in the Fossil Fuel Industry with a move to further compliance with the investment policy.

The information for the assessment has been sourced from the website www.marketforces.org.au which is an affiliate project of the Friends of the Earth Australia. This is still considered the best information available to make this assessment.

Comments

Responsible Accounting Officer

All investments with various financial institutions have been made in accordance with the *Local Government Act, 1993* and *Local Government (General) Regulations 2005*. A new investment policy was adopted in May 2020 moving towards the framework suggested by TCorp to comply with their borrowing requirements. A move towards the new policy is being made, however this is taking longer than originally planned due to the current COVID climate and the high liquidity within financial markets.

Conclusion

A report on investments is required to be submitted to Council monthly. As of 31 October 2021, investments total \$96,027,000 and the annualised rate of return is estimated at 0.46%.

Attachment/s

1. [↓](#) Capital Value Movements including name of institution, purchase date and maturity
2. [↓](#) Estimated interest showing interest rate and estimated interest earned for the year
3. [↓](#) Total Investment Portfolio held by month and Weighted Average Interest Rate graphical
4. [↓](#) Investment by Type - graphical
5. [↓](#) Investment by Institution as a percentage of portfolio - graphical

Capital Value Movements
Summary of Investments held as at
31 October 2021

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Cash Based Returns					
CBA Business On Line Banking A/C	Cash Management Account	AA-	N/A	N/A	\$ 5,027,000
AMP Bank Cash Management Account	Cash Management Account	BBB	N/A	N/A	\$ 3,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	30/11/2020	26/10/2021	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	30/12/2020	30/10/2021	\$ 4,000,000
Auswide Bank Ltd	Term Deposit	BBB-	16/2/2021	15/11/2021	\$ 1,000,000
Suncorp	Term Deposit	A+	20/4/2021	16/11/2021	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	20/11/2020	19/11/2021	\$ 2,000,000
Suncorp	Term Deposit	A+	25/2/2021	22/11/2021	\$ 1,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	24/5/2021	22/11/2021	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	30/11/2020	30/11/2021	\$ 2,000,000
P & N Bank	Term Deposit	BBB	17/6/2021	14/12/2021	\$ 1,000,000
Suncorp	Term Deposit	A+	22/2/2021	20/12/2021	\$ 4,000,000
Bank of Queensland	Term Deposit	BBB+	17/6/2021	17/1/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	29/4/2021	19/1/2022	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	20/1/2021	20/1/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	22/6/2021	21/1/2022	\$ 2,000,000
P & N Bank	Term Deposit	BBB	29/7/2021	25/1/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	2/9/2021	31/1/2022	\$ 2,000,000
P & N Bank	Term Deposit	BBB	5/8/2021	1/2/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	11/2/2021	11/2/2022	\$ 2,000,000
Westpac Banking Corporation	Term Deposit	AA-	19/4/2021	19/2/2022	\$ 4,000,000
National Australia Bank	Term Deposit	AA-	26/2/2021	25/2/2022	\$ 2,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	25/2/2021	25/2/2022	\$ 1,000,000
ME Bank	Term Deposit	BBB	2/8/2021	28/2/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	8/7/2021	8/3/2022	\$ 1,000,000
Bank of Sydney Ltd	Term Deposit	Not Rated	13/9/2021	14/3/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	20/7/2021	17/3/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	25/8/2021	25/3/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	7/4/2021	7/4/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	23/6/2021	19/4/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	26/7/2021	22/4/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	28/7/2021	26/4/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	12/8/2021	9/5/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	10/5/2021	10/5/2022	\$ 1,000,000
AMP Bank	Term Deposit	BBB	17/5/2021	17/5/2022	\$ 3,000,000
ME Bank	Term Deposit	BBB	25/8/2021	23/5/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	26/5/2021	26/5/2022	\$ 2,000,000
Australian Military Bank Ltd	Term Deposit	Not Rated	9/8/2021	6/6/2022	\$ 1,000,000
ME Bank	Term Deposit	BBB	23/6/2021	23/6/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	29/6/2021	29/6/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	2/9/2021	29/6/2022	\$ 1,000,000
Bank of Sydney Ltd	Term Deposit	Not Rated	29/7/2021	29/7/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	29/7/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	21/9/2021	17/8/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	20/8/2020	18/8/2022	\$ 2,000,000
Auswide Bank Ltd	Term Deposit	BBB-	20/8/2019	23/8/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	25/8/2021	25/8/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	25/8/2021	25/8/2022	\$ 2,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	1/9/2021	1/9/2022	\$ 2,000,000

**Capital Value Movements
Summary of Investments held as at
31 October 2021**

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Commonwealth Bank of Australia - TD	Term Deposit	AA-	30/9/2021	30/9/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	20/10/2021	20/10/2022	\$ 2,000,000
Summerland Credit Union	Term Deposit	Not Rated	17/2/2021	17/2/2023	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	29/7/2021	31/7/2023	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	31/7/2023	\$ 1,000,000
Rabobank	Term Deposit	Not Rated	30/7/2018	1/8/2023	\$ 1,000,000
Rabobank	Term Deposit	Not Rated	13/12/2018	13/12/2023	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	25/8/2021	25/8/2025	\$ 1,000,000
Investment on Hand					\$ 96,027,000

Investments Redeemed from 28/09/2021 to 24/10/2021 (Note 2)

Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	30/9/2020	30/9/2021	\$ 2,000,000
Bank of Us (B & E Ltd)	Term Deposit	Not Rated	11/2/2021	8/10/2021	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	29/1/2021	20/10/2021	\$ 2,000,000
Auswide Bank Ltd	Term Deposit	BBB-	23/6/2021	21/10/2021	\$ 1,000,000

\$ 6,000,000

- Note 1: Market Value is the Capital Value of the Investment.
- Note 2: These investments were redeemed during the period. They are not part of the Balance of Investments Held.
- Note 3: These Counterparties & Products are authorised under the Minister's Investment Order. The rating is based on the entities long term S & P Rating.
- Note 4: "Indicative" Source of Funds based on the restricted/unrestricted fund balances as at reporting date.

"Indicative" Source of Funds (Note 4)

Externally Restricted - Water Fund	13,263,710
Externally Restricted - Wastewater Fund	33,691,983
Externally Restricted - Other	20,950,034
Externally Restricted - RTRL	2,391,504
Internally Restricted	25,729,769
Unrestricted	-
	\$ 96,027,000

Estimated Interest
on Investments
for October 2021

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
Cash Based Returns						
CBA Business On Line Banking A/C	Cash Management Account	AA-	0.10%	\$ 5,027,000	\$ 427	0.01%
AMP Bank Cash Management Account	Cash Management Account	BBB	0.50%	\$ 3,000,000	\$ 1,274	0.02%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.20%	\$ 1,000,000	\$ 170	0.00%
Westpac Banking Corporation	Term Deposit	AA-	0.50%	\$ 4,000,000	\$ 1,699	0.02%
Auswide Bank Ltd	Term Deposit	BBB-	0.35%	\$ 1,000,000	\$ 297	0.00%
Suncorp	Term Deposit	A+	0.50%	\$ 1,000,000	\$ 425	0.01%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.32%	\$ 2,000,000	\$ 544	0.01%
Suncorp	Term Deposit	A+	0.54%	\$ 1,000,000	\$ 459	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.30%	\$ 1,000,000	\$ 255	0.00%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.25%	\$ 2,000,000	\$ 425	0.01%
P & N Bank	Term Deposit	BBB	0.51%	\$ 1,000,000	\$ 433	0.01%
Suncorp	Term Deposit	A+	0.25%	\$ 4,000,000	\$ 849	0.01%
Bank of Queensland	Term Deposit	BBB+	0.26%	\$ 1,000,000	\$ 221	0.00%
National Australia Bank	Term Deposit	AA-	0.33%	\$ 1,000,000	\$ 280	0.00%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.45%	\$ 2,000,000	\$ 764	0.01%
Bank of Queensland	Term Deposit	BBB+	0.42%	\$ 2,000,000	\$ 713	0.01%
P & N Bank	Term Deposit	BBB	0.25%	\$ 1,000,000	\$ 212	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.34%	\$ 2,000,000	\$ 578	0.01%
P & N Bank	Term Deposit	BBB	0.24%	\$ 1,000,000	\$ 204	0.00%
Bank of Queensland	Term Deposit	BBB+	0.45%	\$ 2,000,000	\$ 764	0.01%
Westpac Banking Corporation	Term Deposit	AA-	0.40%	\$ 4,000,000	\$ 1,359	0.02%
National Australia Bank	Term Deposit	AA-	0.25%	\$ 2,000,000	\$ 425	0.01%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.30%	\$ 1,000,000	\$ 255	0.00%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 382	0.00%
Suncorp	Term Deposit	A+	0.32%	\$ 1,000,000	\$ 272	0.00%
Bank of Sydney Ltd	Term Deposit	Not Rated	0.55%	\$ 1,000,000	\$ 467	0.01%
Suncorp	Term Deposit	A+	0.32%	\$ 1,000,000	\$ 272	0.00%
Bank of Queensland	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 340	0.00%
National Australia Bank	Term Deposit	AA-	0.42%	\$ 2,000,000	\$ 713	0.01%
Suncorp	Term Deposit	A+	0.30%	\$ 2,000,000	\$ 510	0.01%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 382	0.00%
Suncorp	Term Deposit	A+	0.33%	\$ 2,000,000	\$ 561	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.25%	\$ 2,000,000	\$ 425	0.01%
Bank of Queensland	Term Deposit	BBB+	0.33%	\$ 1,000,000	\$ 280	0.00%
AMP Bank	Term Deposit	BBB	0.40%	\$ 3,000,000	\$ 1,019	0.01%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 382	0.00%
National Australia Bank	Term Deposit	AA-	0.55%	\$ 2,000,000	\$ 934	0.01%
Australian Military Bank Ltd	Term Deposit	Not Rated	0.30%	\$ 1,000,000	\$ 255	0.00%
ME Bank	Term Deposit	BBB	0.30%	\$ 1,000,000	\$ 255	0.00%
National Australia Bank	Term Deposit	AA-	0.50%	\$ 3,000,000	\$ 1,274	0.02%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.25%	\$ 1,000,000	\$ 212	0.00%
Bank of Sydney Ltd	Term Deposit	Not Rated	0.30%	\$ 1,000,000	\$ 255	0.00%
Bank of Queensland	Term Deposit	BBB+	0.45%	\$ 1,000,000	\$ 382	0.00%
Suncorp	Term Deposit	A+	0.35%	\$ 3,000,000	\$ 892	0.01%

**Estimated Interest
on Investments
for October 2021**

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
Bendigo Adelaide Bank	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,189	0.01%
Auswide Bank Ltd	Term Deposit	BBB-	1.80%	\$ 1,000,000	\$ 1,529	0.02%
Suncorp	Term Deposit	A+	0.35%	\$ 1,000,000	\$ 297	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 696	0.01%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 696	0.01%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.36%	\$ 2,000,000	\$ 612	0.01%
Bank of Queensland	Term Deposit	BBB+	0.43%	\$ 2,000,000	\$ 236	0.00%
Summerland Credit Union	Term Deposit	Not Rated	0.60%	\$ 1,000,000	\$ 510	0.01%
National Australia Bank	Term Deposit	AA-	0.55%	\$ 2,000,000	\$ 934	0.01%
Bank of Queensland	Term Deposit	BBB+	0.60%	\$ 1,000,000	\$ 510	0.01%
RaboBank	Term Deposit	Not Rated	3.45%	\$ 1,000,000	\$ 2,930	0.04%
RaboBank	Term Deposit	Not Rated	3.35%	\$ 1,000,000	\$ 2,845	0.03%
National Australia Bank	Term Deposit	AA-	0.95%	\$ 1,000,000	\$ 807	0.01%
Investment on Hand				\$ 96,027,000	\$ 37,285	0.45%

Note 1

Interest on Investments Redeemed during month to reporting date (24/10/2021)

Bank of Us (B & E Ltd)	Term Deposit	Not Rated	0.70%	\$ 1,000,000	\$ 153	0.00%
Bank of Queensland	Term Deposit	BBB+	0.40%	\$ 2,000,000	\$ 438	0.01%
Auswide Bank Ltd	Term Deposit	BBB-	0.40%	\$ 1,000,000	\$ 230	0.00%

0.46%

\$ 38,107

Investment Income Earned vs. Budget Year to Date

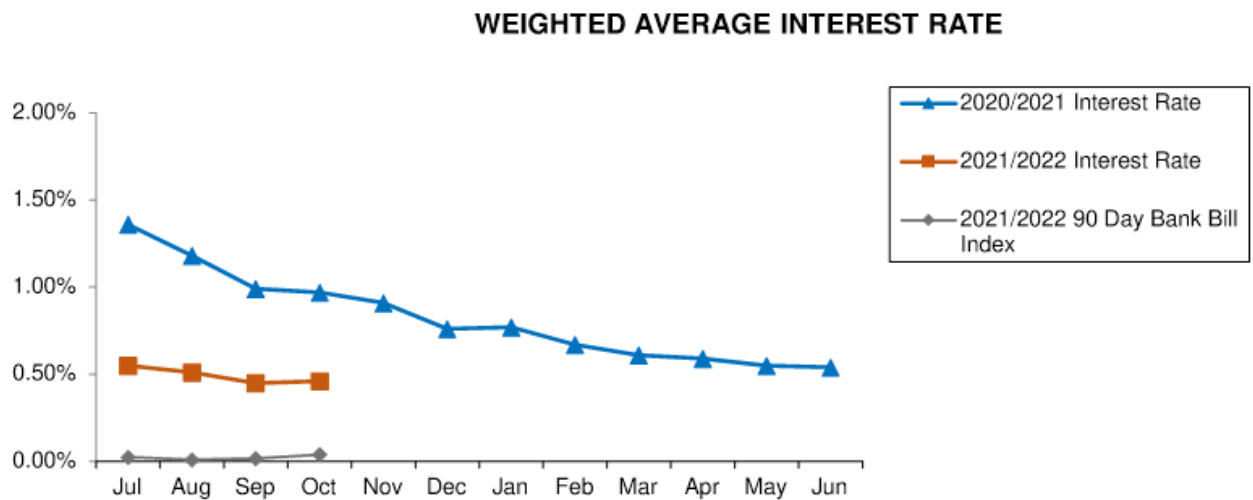
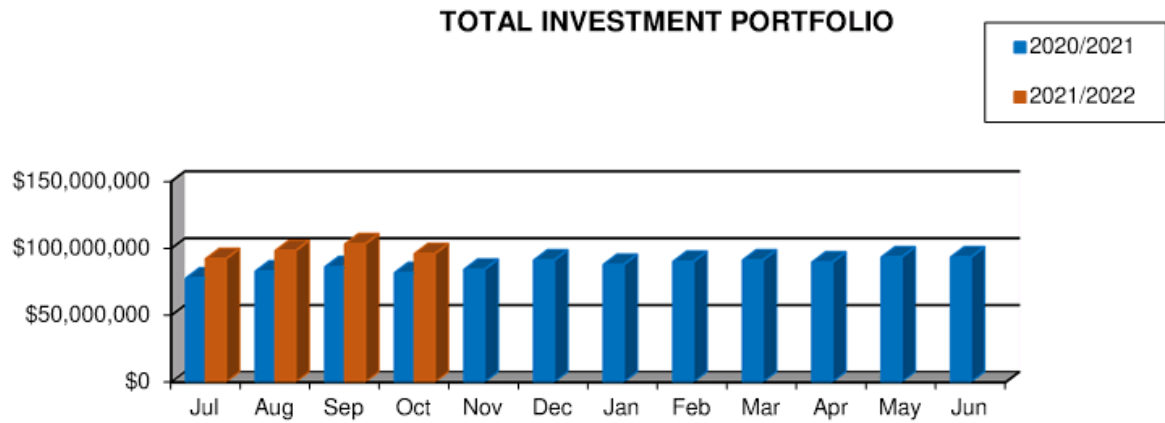
Estimated interest earned to date \$ 160,642
Pro Rata annual budget \$ 151,933

Note 1: Estimated Interest for Period is calculated by multiplying the annualised rate by the purchase price and reflects both interest accrued and received.

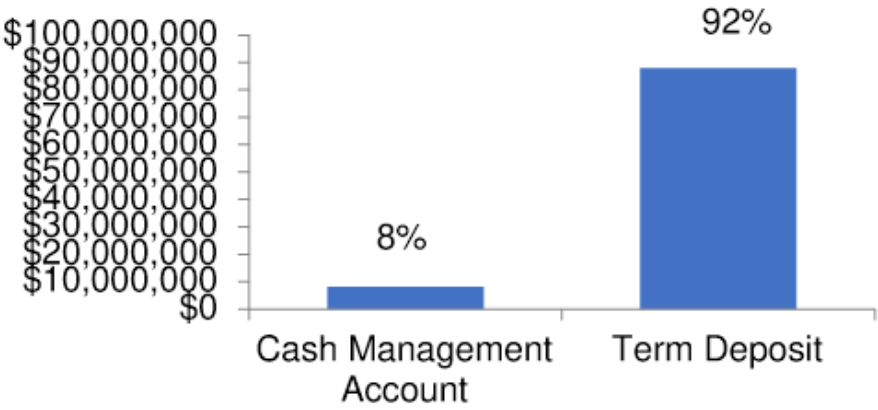
Note 4: "Indicative" Interest Earned based on the restricted/unrestricted fund balances as at reporting date.

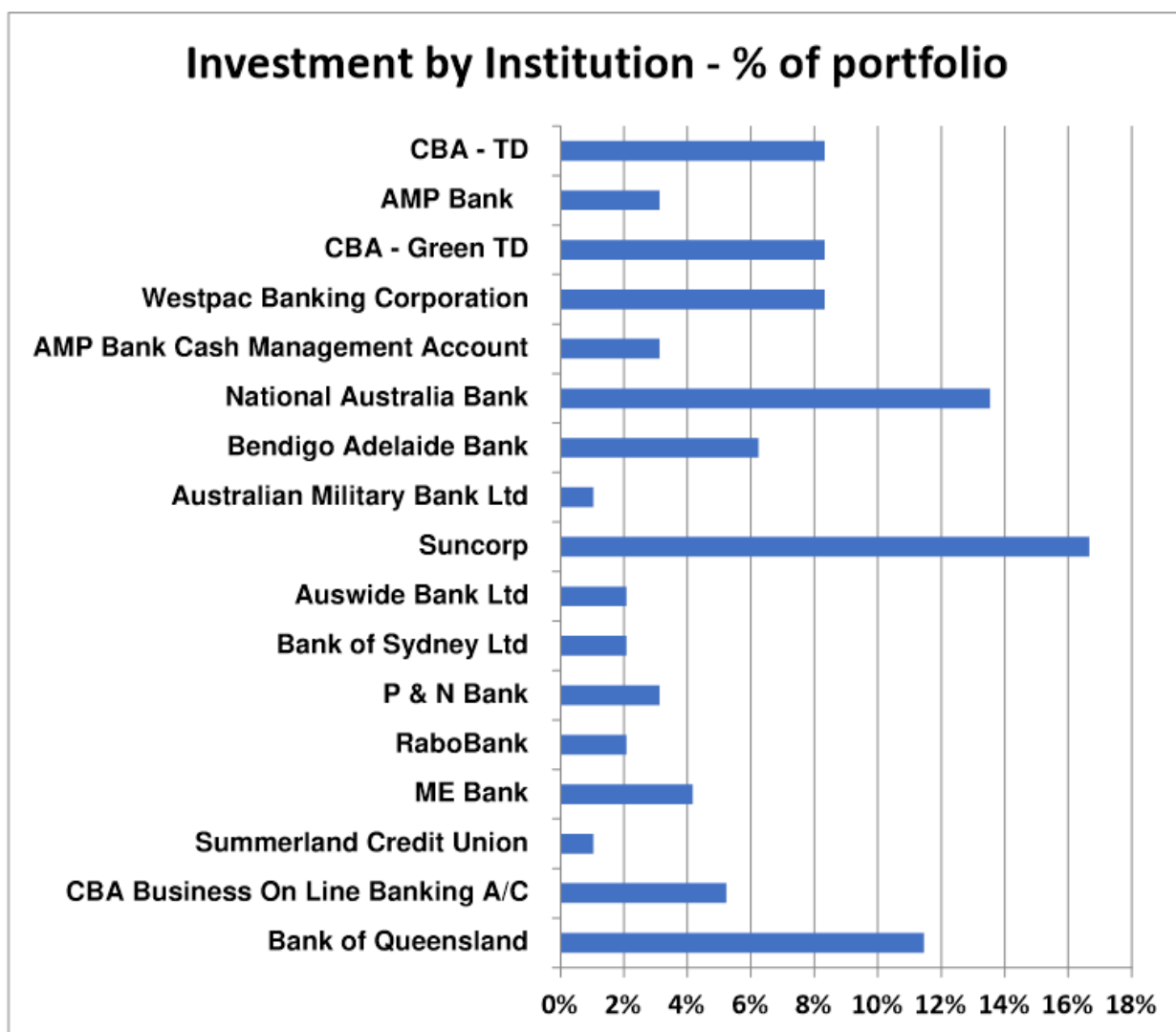
"Indicative" Interest Earned

Externally Restricted - Water Fund	\$ 5,264
Externally Restricted - Wastewater Fund	\$ 13,370
Externally Restricted - Other	\$ 8,314
Externally Restricted - RTRL	\$ 949
Internally Restricted	\$ 10,210
Unrestricted	\$ -
	\$ 38,107



INVESTMENT BY TYPE





Report

Subject	2020/21 Financial Report
TRIM Record No	BP21/664:EF20/239
Prepared by	Management Accountant
Reason	Legislative Requirement - Section 419 Local Government Act 1993
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

At the 25 October 2021 meeting, Council formed its opinion on and adopted the Audited Financial Statements for the year ended 30 June 2021.

In accordance with the *Local Government Act 1993* the audited financial reports and audit report must be presented to the public at a Council meeting. Before doing so, they must have been advertised in the approved form and submissions from the public invited. Council has complied with these requirements. Members of the public can make a written submission to Council up to seven days after the meeting (16/11/21). Council must forward a copy of any submission received to the Auditor and take any action it considers appropriate.

Recommendation

That In accordance with Section 419 of the *Local Government Act 1993*, the Audited Financial Statements for the year ended 30 June 2021 and Audit Report are presented to the public.

Background

Council resolved at the 25 October 2021 meeting that:-

1. In accordance with Section 413 (2) (c) of the *Local Government Act 1993* and clause 215 of the *Local Government (General) Regulation 2005*, adopt the Audited Financial Statements for the year ended 30 June 2021 and form an opinion based on the attached 'Statement by Councillors and Management' for both the General Purpose Financial Statements and Special Purpose Financial Statements.
2. Delegate to the Mayor and Deputy Mayor to sign the 'Statement by Councillors and Management' on behalf of Council.
3. Delegate to the General Manager to, on receipt of the Independent Audit Reports,
 - a) set the presentation date of the Audited Financial Statements and Auditors Report, and
 - b) submit the Audited Financial Statements to the NSW Office of Local Government.
4. In accordance with Section 705 of the *Local Government Act 1993* determine the public notice relating to the financial statements will be advertised on Council's website and Council's Facebook page.

Council's resolution has been implemented, but it is important to note that the public has until 16 November 2021 to make a submission. Council is to ensure that copies of all submissions received are referred to the Auditor and also take such action as it considers appropriate with respect to any submission, including the giving of notice to the Director-General of any matter that appears to require amendment of the financial reports.

A copy of the Audited Financial Statements for the year ended 30 June 2021 is available for inspection at Council's Corporate Centre and on Council's website.

Summary of Key Financial Data

The information in the summary below is consistent with the reporting requirements of the NSW Office of Local Government. In addition, information on borrowings has been added: -

Item	2020/21 (\$,000)	2019/20 Restated (\$,000)
Income Statement		
Total income from continuing operations	142,880	141,529
Total expenses from continuing operations	124,209	114,045
Operating result from continuing operations	18,671	27,484
Net operating result for the year	18,671	27,484
Net operating result for the year before grants and contributions provided for capital purposes	(14,972)	(635)
Statement of Financial Performance		
Total current assets	119,503	97,401
Total current liabilities	(39,462)	(30,025)
Total non-current assets	1,714,861	1,678,382
Total non-current liabilities	(62,348)	(65,270)
Total equity	1,732,554	1,680,488
Other Financial Information		
Operating Performance Ratio	9.93%	2.74%
Own Source Operating Revenue Ratio	64.37%	66.72%
Unrestricted Current Ratio	1.84x	2.31x
Debt Service Cover Ratio	3.04x	2.54x
Rates, Annual Charges, Interest & Extra Charges Outstanding Percentage	9.36%	9.24%
Cash Expense Cover Ratio	13.33 months	10.14 months
Building Infrastructure & Other Structures Renewal Ratio	76.90%	88.38%
Infrastructure Backlog Ratio	12.70%	10.93%
Asset Maintenance Ratio	86.09%	91.30%
External Borrowings	57,501	62,680
Internal Borrowings	-	523

Comments

Finance

All Finance comments are incorporated into the body of the report.

Public consultation

The Audited Financial Statements for the year ended 30 June 2021, in the prescribed format, have been advertised on Council's Website and Facebook page on 1 November 2021 seeking public comment.

Conclusion

In accordance with the *Local Government Act 1993* the Audited Financial Statements for the year ended 30 June 2021 and the Auditors Report must be presented to the public at a Council meeting. The report is intended to meet this requirement.

The Audited Financial Statements for the year ended 30 June 2021 have been advertised and submissions from the public invited. At the time of preparing this report, no submissions had been received.

Attachment/s

There are no attachments for this report.

Report

Subject	Recycling and Resource Recovery Strategy 2022-2032
TRIM Record No	BP21/821:EF20/194
Prepared by	Manager Commercial Services
Reason	To present the new waste strategy for consideration and gain approval to place the strategy on public exhibition for comments.
Strategic Theme	Our natural environment
Strategy	We are committed to resource recovery, waste management and recycling innovation.
Action	Provide effective and efficient waste collection and disposal services.

Executive Summary

Due to several key issues that have arisen in the waste and recycling industry, a new waste strategy has been developed for Lismore City Council following a period of focused community consultation.

The draft *2022-32 Resource Recovery and Residual Waste Strategy: Sharing the Responsibility towards a Circular Economy and Resourceful Community* provides a roadmap for the transition of the Lismore City Council area to a focus on circular economy initiatives.

It is recommended that Council exhibit the draft 2022-32 Resource Recovery and Residual Waste Strategy for a period of at least 28 days, to enable further consultation with industry and stakeholders and obtain further data that will inform financially modelling to support implementation.

Recommendation

That the:

1. draft *2022-32 Resource Recovery and Residual Waste Strategy: Sharing the Responsibility towards a Circular Economy and Resourceful Community* be placed on public exhibition for a period of at least 28 days.
2. draft strategy be reported back to Council by April 2022.

Background

Council has been committed to reducing waste to landfill for many years and offers a range of recycling services at the Lismore Recycling & Recovery Centre and the Nimbin Waste Transfer Station for this purpose.

Multiple changes in the waste and recycling industry over the last couple of years – globally, within Australia and specific to the Lismore City local government area – has resulted in a need for Council to reconsider its approach to waste management.

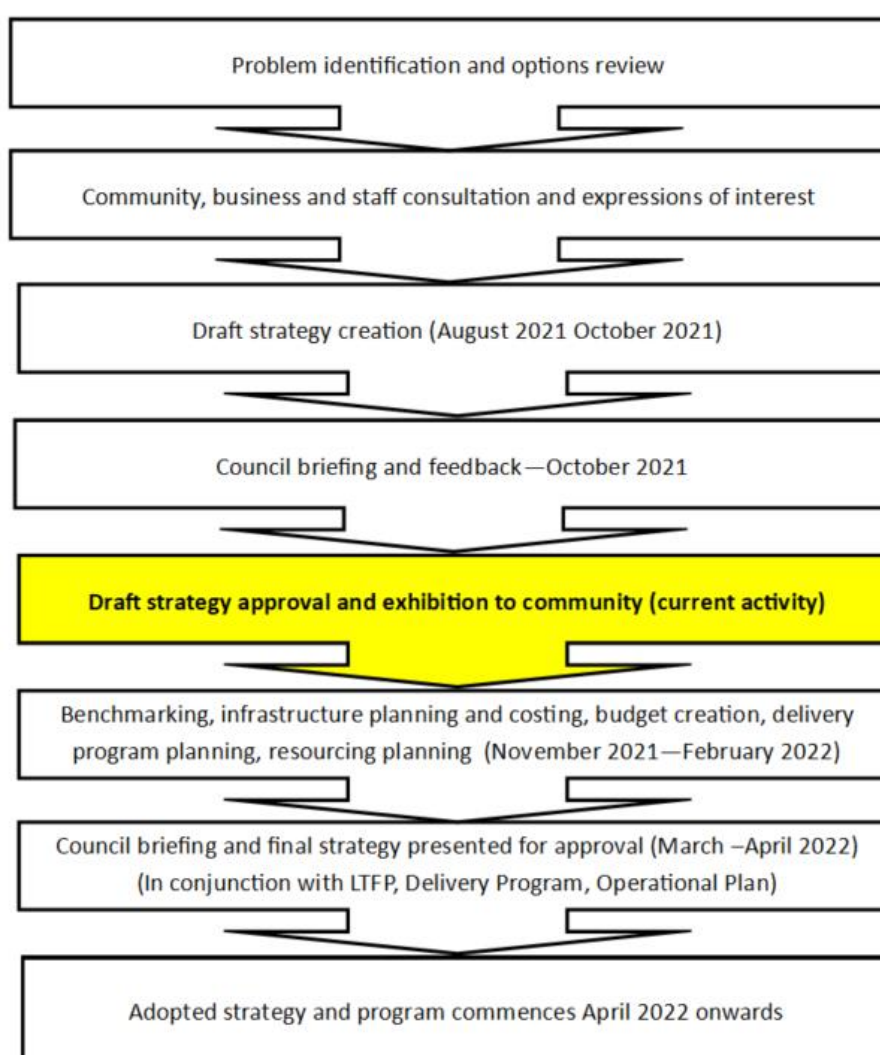
Council previously adopted a five year waste strategy in 2018 and many of these actions have either been completed or are ongoing.

Notwithstanding this however, the broader direction and priorities need to change to address several key issues, including:

- In January 2018, China introduced it's 'National Sword Policy' and new rules around contamination led to much of the world's recycling no longer being able to meet China's new import standards.
- In 2019, the Federal Government introduced a ban on the export of some waste products. The banned materials (including plastics, paper and cardboard), will financially impact Council's Materials Recovery Facility (MRF).
- The MRF is part of a national waste system and is exposed to the same volatile markets for the sale of recyclable products as all operators across Australia. Compounding this was a fire during the drought in August 2019 that caused significant damage to the MRF.
- An increased focus on compliance has resulted in Council having to make additional investments in leachate and landfill capping to address legacy compliance issues.

Council has been working on developing a new waste and recycling strategy since March 2020 and has undertaken a wide range of consultation activities with residents, businesses and industry stakeholders.

A.Prince Consulting was engaged to bring together all threads of the existing strategy, consultation information, background information and current initiatives in waste and reducing regulation and strategy to draft a new waste strategy for Lismore City Council. The process is broadly outlined, showing in yellow where the strategy development is at present.



The new strategy is titled; “**Resource Recovery and Residual Waste Strategy 2022-32: Sharing the Responsibility towards a Circular Economy and Resourceful Community**”. The strategy is focused on transitioning Lismore City Council and the Lismore community to a circular economy approach as a model for sustainable growth.

This draft Resource Recovery and Residual Waste Strategy is Lismore’s City Council’s 10 year approach to shifting from a waste attitude to one where materials and items are valued.

It is a strategy that will affect all Council policies and operations, and it is a strategy that will affect all of us in the community – Council, households, businesses and other organisations.

It starts with a roadmap that offers direction towards doing things in a different way, a direction towards a more resourceful community.

Once adopted in draft form, Council will be able to engage industry and stakeholders in identifying or clarifying opportunities under the strategy, as well as current industry issues to finalise the document. At the same, the work to align the strategy with Council’s next Delivery Program and ensure the right funding sources and resources are allocated to actions over the first 4 years of the strategy can be completed. This modelling will also help inform Council’s Long Term Financial Plan and finalizing operational plan activities for the next financial year.

Other staff comments

Not required at this stage pending adoption for exhibition and further modelling of financial and operational impacts and requirements.

Public consultation

A wide range of consultation activities has been in progress since March 2020. Further consultation and a public exhibition period is proposed as more opportunities for stakeholders and the local community to provide comment.

Conclusion

The draft *Resource Recovery and Residual Waste Strategy 2022-32: Sharing the Responsibility towards a Circular Economy and Resourceful Community* provides a 10 year approach to shifting from a waste attitude to one where materials and items are valued. The strategy is focused on transitioning the Lismore local government area to a circular economy to encourage economic development and sustainability outcomes.

It is recommended that Council publicly exhibit the draft 2022-32 Resource Recovery and Residual Waste Strategy for a period of at least 28 days, and report to the Council in March/April 2022 when further financial modelling and business and industry engagement has been undertaken.

Attachment/s

- | | |
|---|----------------|
| 1. ➡ Draft 2022-32 Resource Recovery and Residual Waste Strategy: Sharing the Responsibility towards a Circular Economy and Resourceful Community | (Over 7 pages) |
|---|----------------|

Report

Subject	Digital Signing of Council Meeting Minutes
TRIM Record No	BP21/822:EF16/181
Prepared by	Records Management Coordinator
Reason	Keeping hard copy minutes using ink signatures is an unacceptable risk.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure sound risk management practices.

Executive Summary

Official copies of minutes of Council meetings are still being kept as hard copy records that are signed with ink signatures. They should be digitally signed and kept as electronic records.

Recommendation

That Council resolve that minutes of Council meetings are to signed digitally to allow them to be kept as electronic records.

Background

Currently, official minutes of Council meetings are kept as hard copy records that are signed with ink signatures. Keeping hard copy records of minutes of Council meetings is an unacceptable risk. Hard copy records can be lost, destroyed or damaged relatively easily. Electronic records are less susceptible to these risks. Electronic records can be backed up so that they are not lost in the event of a disaster. They can be migrated between recordkeeping systems.

Printing electronic records and binding them in hard copy volumes to store them physically is inefficient. Electronic records are cheaper and easier to store. Hard copy records are difficult to access as they need to be physically secured and stored; and in person access needs to be arranged for them to be viewed. Electronic records can be made publicly available, with any necessary appropriate security controls.

The current process of signing hard copy of minutes of Council meetings is inefficient and time consuming. Using digital signatures, minutes can be signed quickly and securely to create a tamper-proof archive-quality PDF version for both recordkeeping and public access purposes.

Advice received from the Office of Local Government is that where the *Local Government Act 1993* requires a council document to be signed, such as the meeting minutes or to authenticate a document, it does not prevent the use of an electronic signature. The use of electronic signatures is ultimately a matter for each council. However, where electronic signatures are used, it is important that councils put in place appropriate safeguards to prevent their misuse.

Under the *State Records Act 1998*, record means any document or other source of information compiled, recorded or stored in written form or on film, or by electronic process, or in any other manner or by any other means. This Act doesn't appear to mention signatures; digital or otherwise. Advice received from a State Archives and Records Authority of New South Wales Project Officer Government Recordkeeping is that the Act does not present any barriers to digital signatures; so from their perspective there is no issue with council minutes being kept in a digital format.

Several other NSW councils use electronic signatures to sign the minutes of Council meetings. Those who responded to our enquiry about this are inserting images of signatures into digital copies of the minutes. These include Campbelltown City Council, Fairfield City Council, Kyogle Council, Inner West Council & Murray River Council.

Based on the above, signing minutes of Council meetings with a digital signature complies with legislation and is accepted practice amongst NSW councils.

Comments

Finance

The recommendation as printed is supported. The proposal will reduce cost and provide greater efficiency.

Public consultation

Not required.

Attachment/s

There are no attachments for this report.

Report

Subject	Annual Code of Conduct Reporting for Lismore City Council
TRIM Record No	BP21/870:EF17/487-03
Prepared by	Governance & Risk Manager
Reason	Council is required to report annual Code of Conduct statistics by the Office of Local Government
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

Under Part 11 of the Procedures for the Administration of the Model Code of Conduct (the Procedures), the Complaints Coordinator is required to report the annual Code of Conduct statistics to Council within three months of the end of September each year.

The Complaints Coordinator is also required to submit this report to the Office of Local Government.

Recommendation

That Council receive and note the attached annual report on Code of Conduct statistics for Lismore City Council, the report will be forwarded to the Office of Local Government on 10 November 2021.

Background

This report to Council fulfils Part 11 of the Procedures for the Administration of the Model Code of Conduct, which states that the Complaints Coordinator must report the annual statistics to Council within three months of the end of September each year.

This information will be lodged with the Office of Local Government on 10 November 2021.

The information relating to specific complaints reported on, remains confidential, pursuant to Part 12 of the Procedures

Attachment/s

1. [Download](#) Code of Conduct statistics

Model Code of Conduct Complaints Statistics Lismore City Council

Number of Complaints

1 a	The total number of complaints received in the period about councillors and the General Manager (GM) under the code of conduct	9
b	The total number of complaints finalised in the period about councillors and the GM under the code of conduct	19

Overview of Complaints and Cost

2 a	The number of complaints finalised at the outset by alternative means by the GM or Mayor	1
b	The number of complaints referred to the Office of Local Government (OLG) under a special complaints management arrangement	0
c	The number of code of conduct complaints referred to a conduct reviewer	4
d	The number of code of conduct complaints finalised at preliminary assessment by conduct reviewer	5
e	The number of code of conduct complaints referred back to GM or Mayor for resolution after preliminary assessment by conduct reviewer	0
f	The number of finalised code of conduct complaints investigated by a conduct reviewer	9
g	The number of finalised complaints investigated where there was found to be no breach	4
h	The number of finalised complaints investigated where there was found to be a breach	5
i	The number of complaints referred by the GM or Mayor to another agency or body such as the ICAC, the NSW Ombudsman, OLG or the Police	4
j	The number of complaints being investigated that are not yet finalised	0
k	The total cost of dealing with code of conduct complaints within the period made about councillors and the GM including staff costs	110,362

Preliminary Assessment Statistics	
3	The number of complaints determined by the conduct reviewer at the preliminary assessment stage by each of the following actions:
a	To take no action (clause 6.13(a) of the 2018 and 2020 Procedures) 0
b	To resolve the complaint by alternative and appropriate strategies (clause 6.13(b) of the 2018 and 2020 Procedures) 0
c	To refer the matter back to the GM or the Mayor, for resolution by alternative and appropriate strategies (clause 6.13(c) of the 2018 and 2020 Procedures) 0
d	To refer the matter to another agency or body such as the ICAC, the NSW Ombudsman, OLG or the Police (clause 6.13(d) of the 2018 and 2020 Procedures) 0
e	To investigate the matter (clause 6.13(e) of the 2018 and 2020 Procedures) 9
Investigation Statistics	
4	The number of investigated complaints resulting in a determination that there was no breach , in which the following recommendations were made:
a	That the council revise its policies or procedures 1
b	That a person or persons undertake training or other education (clause 7.37 of the 2018 Procedures or clause 7.40 of the 2020 Procedures) 0
5	The number of investigated complaints resulting in a determination that there was a breach in which the following recommendations were made:
a	That the council revise any of its policies or procedures (clause 7.36(a) of the 2018 Procedures or clause 7.39 of the 2020 Procedures) 1
b	In the case of a breach by the GM, that action be taken under the GM's contract for the breach (clause 7.36(h) of the 2018 Procedures or clause 7.37(a) of the 2020 Procedures) 0
c	In the case of a breach by a councillor, that the councillor be formally censured for the breach under section 440G of the Local Government Act 1993 (clause 7.36(i) of the 2018 Procedures or clause 7.37(b) of the 2020 Procedures) 5
d	In the case of a breach by a councillor, that the councillor be formally censured for the breach under section 440G of the Local Government Act 1993 and that the matter be referred to OLG for further action (clause 7.36(j) of the 2018 Procedures or clause 7.37(c) of the 2020 Procedures) 0
6	Matter referred or resolved after commencement of an investigation (clause 7.20 of the 2018 or 2020 Procedures) 0

Categories of misconduct	
7 The number of investigated complaints resulting in a determination that there was a breach with respect to each of the following categories of conduct:	
a General conduct (Part 3)	1
b Non-pecuniary conflict of interest (Part 5)	0
c Personal benefit (Part 6)	1
d Relationship between council officials (Part 7)	0
e Access to information and resources (Part 8)	5
Outcome of determinations	
8 The number of investigated complaints resulting in a determination that there was a breach in which the council failed to adopt the conduct reviewers recommendation	2
9 The number of investigated complaints resulting in a determination that there was a breach in which the council's decision was overturned following a review by OLG	0

Committee Recommendations



Committee Recommendation

Traffic Advisory Committee Minutes - Meeting of 20 October 2021

Recommendation

That the minutes be received and adopted and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) Traffic Advisory Committee Minutes - Meeting of 20 October 2021

MINUTES OF THE TRAFFIC ADVISORY COMMITTEE MEETING HELD VIA MS TEAMS ON WEDNESDAY, 20 OCTOBER 2021 AT 10.00AM

Please note: These minutes are subject to confirmation at the next Council meeting.

Present

Councillor Bill Moorhouse (Chairperson), Caleisse Dunston, Greg Aitken (Transport for NSW), Peter Ellem (on behalf of Janelle Saffin, MP).

In Attendance

Barry Goodwin (Design Services Engineer) and Elsa Whelan (Administration Officer).

Apologies

TAC89/21 Apologies for non-attendance were received on behalf of Janelle Saffin, MP (Member for Lismore) and Sgt Clint Williams (Lismore Police).

Confirmation of Minutes

The Committee was advised that the Traffic Advisory Committee minutes of 16 September 2021 were received and adopted by Council at its ordinary meeting of 12 October 2021.

Disclosure of Interest

Nil.

Part 'A' – Committee Recommendations

4.1 Request for Give Way Sign - Chelmsford Road, Rock Valley

Request received for the installation of a Give Way sign on Chelmsford Road (east), Rock Valley.

The Committee has been asked to review if a Give Way sign meets the installation criteria at the intersection of Chelmsford Road (south) and Chelmsford Road (north) and Chelmsford Road (east). The writer claims there is confusion for southbound drivers on Chelmsford Road (north) as right of way priority for vehicles heading north to north-east at the Y type intersection. Chelmsford Road (north) provides access to approximately 12 rural properties to the north of the intersection. It is sealed at the intersection which extends to the north.

TAC90/21 **RECOMMENDED** that:

1. Council support the request to install a Give Way sign on Chelmsford Road (east), Rock Valley.
2. Council's Design Services Team prepare a plan for installation.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston and Peter Ellem

Voting against: Nil.

Absent: Sgt Clint William

4.4 Traffic Guidance Scheme – Carols by Candlelight, Sunday, 12 December 2021 (Late Item)

A request was received from the organisers of the Annual Carols by Candlelight planned for Sunday, 12 December 2021 for endorsement of the Traffic Guidance Scheme (TGS) provided for the event.

The event is planned to be held at Mortimer Oval, located on the corner of Uralba Street and Brewster Street, with parking provided on adjacent fields to the south of Uralba Street and Brewster Street. Traffic controllers will manage pedestrian movements across Uralba Street.

The TGS is effective between 1pm and 9pm on 12 December 2021.

Note: The TGS was circulated to members via email for feedback after the formal meeting on 20 October.

TAC91/21 **RECOMMENDED** that Council endorse the proposed Traffic Guidance Scheme for the Carols by Candlelight event planned for Sunday, 12 December 2021, as provided.

Voting for:	Councillor Bill Moorhouse, Caleisse Dunston, and Peter Ellem
Voting against:	Nil.
Absent:	Sgt Clint William

Items for Discussion

5.2 Change to Parking Arrangements - Conway Street, Lismore CBD

This matter was considered by the Committee at its meeting on 16 September 2021.

Council has received funding under the 2021-2022 Safer Roads Program P0070642 for the installation of pedestrian safety devices including pedestrian fencing on the centre median of Conway Street, adjustment to existing kerb blisters, relocation of the existing pedestrian crossing and additional signage and pavement markings for advance warning of the formal pedestrian crossing. The funding is 100% provided by Transport for NSW for the design and installation of this project. Designs are currently in progress for the project with an anticipated project completion date by 30 December 2021.

Community consultation has been undertaken with written notices and face to face enquiries with businesses and tenants of the section of Conway Street, between Carrington Street and Molesworth Street, with no issues flagged. Further consultation with Australia Post representatives determined that the existing 15 minute parking restriction on the southern side of Conway Street should be extended to 30 minutes.

TAC92/21 **RECOMMENDED** that:

1. The proposed infrastructure changes be endorsed for Conway Street, as approved under the funding nomination and changes to parking configuration (including the introduction of a motor cycle parking bay, Refer TAC26/20).
2. The ½ hour parking on the northern side of Conway Street be changed to 1P restricted parking.
3. The ¼ hour parking on the southern side of Conway Street be converted to ½ hour restricted parking.

Voting for:	Councillor Bill Moorhouse, Caleisse Dunston, and Peter Ellem
Voting against:	Nil.
Absent:	Sgt Clint William

Part 'B' – Determined by Committee

4.2 Request for One Way Traffic Movements - Unnamed Laneway Between Esmonde Street and Esyth Street, East Lismore

Request received from Council's Development Engineer for the Committee to consider

conversion of the existing two way laneway between Esmonde Street and Esyth Street (parallel with Wyrallah Road), East Lismore, to a one-way lane.

The unnamed laneway is a two-way local access road under Council's road hierarchy. It is a sealed road, approximately 3.9m in width.

This area of East Lismore consists primarily of residential dwellings, with a soft drink factory and a number of commercial premises at the southern end of the lane requiring rear property access. Many of the residential dwellings, including a block of units, also utilise rear access to their properties from the laneway. According to Council's Development Control Plan 2012, local access requires a minimum two-way lane to be 6.0m wide.

Refuse collection is currently undertaken in a northbound direction and further feedback will be undertaken with Council's Waste staff on a preferred directional flow.

One-Way Flow Southbound – Entry via Esmonde Street

- Sight distance meets relevant Austroads Standards in both directions along Esmonde Street.
- Access onto Wyrallah Road is via the existing roundabout. However, a left-turn lane onto Wyrallah Road northbound is restricted to vehicles other than buses and trucks.

Traffic Accidents at Intersection of Wyrallah Road and Esmonde Street – 2015-2020

There have been two accidents recorded; one being a fatality during 2015-2020 and three accidents in total between the years 2000-2020. Council staff have applied for funding under the 2022/23 Safer Roads Program for the upgrade of the roundabout.

One-Way Flow Northbound – Entry via Esyth Street

- Sight distance may be impeded due to overhanging vegetation on the eastern side.
- Access onto Wyrallah Road is via a T-intersection controlled by a Stop sign treatment.
- Entering from the laneway onto Esyth Street is governed by Give Way signage treatment.
- There is a driveway and laneway directly opposite the lane, which may create confusion as right of way priority.

Traffic Accidents at Intersection of Wyrallah Road and Esyth Street – 2015-2020

One accident occurred during the period 2015-2020 and five accidents recorded in total between the years 2000-2020.

TAC93/21 **AGREED** that:

1. The Committee provide in principle support for the unnamed laneway between Esmonde Street and Esyth Street, East Lismore, to be converted to one-way traffic flow.
2. Council's Design Services Team conduct further investigation with stakeholders (including waste collection services), to determine the appropriate flow of one-way traffic.
3. The matter be listed for further discussion at the next meeting pending a site inspection by the Committee.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, and Peter Ellem

Voting against: Nil.

Absent: Sgt Clint William

4.3 Request for Convex Mirror - Caniaba Road (No. 250), Caniaba

Request received from Caniaba resident for the installation of a convex mirror opposite the driveway to 250 Caniaba Road, Caniaba.

The existing site is located approximately 2.7km west of the Bruxner Highway B60 and 2.6km east of the Village of Caniaba. Caniaba Road is a sub-arterial road under Council's road hierarchy and provides connectivity to the Village of Caniaba to the north-east continuing onto the Bruxner Highway B60. It also provides connectivity to the town of

Casino via Spring Grove Road. It is a two-way sealed rural road with a nominal 7.0m wide sealed pavement, with a speed zone of 80 kph.

Traffic volume data indicates that the average daily traffic is in the vicinity of 1,600 vehicles per day, including 4.5% of heavy vehicles. There have been no recorded accidents at the site within the 2015-2020 time period. There was an incident in 2002 involving a run off road incident, not relating to sight distance issues.

Drivers exiting the property have clear sight distance to the north of more than 400m and approximately 180m to the south, which is compliant with relevant Austroads Guidelines. Sight distance is slightly impeded to the south by the instance of vegetation near the access location, which has previously been identified. Council has received funding under the 2021/22 Australian Government Black Spot Program for this section of Caniaba Road, which includes safety treatments for this driveway and neighbouring access. This construction project is planned for December 2021.

Note: *Council has previously not supported similar requests unless in extreme circumstances as the mirror does not provide an accurate reflection of traffic and distances can be misleading. The installation of convex mirrors within the road reserve can become a hazard to through traffic.*

TAC94/21 **AGREED** that:

1. The request for installation of a convex mirror at 250 Caniaba Road, Caniaba, not be supported.
2. The writer be advised that driveway access work and removal of roadside vegetation is included in the 2021/22 Australian Government Black Spot Program for safety works within this section of Caniaba Road.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, and Peter Ellem
Voting against: Nil.
Absent: Sgt Clint William

Items for Discussion

5.1 Request for Speed Humps - Military Road, East Lismore

This matter was considered by the Committee at its meeting on 16 September 2021. The writer has advised that pedestrians, including many children, and wildlife are at risk with drivers speeding along Military Road.

Military Road is classified as a local access road under Council's road hierarchy with a 50 kph speed zone. It is two-way dual lane undivided sealed road approximately 7.0m wide and runs north-south connecting Dalley Street and Cynthia Wilson Drive. The area is urban residential on the western side of Military Road, with the Army Barracks and East Lismore Cemetery occupying the eastern side. Traffic count data (2012) indicates an average daily traffic (ADT) of approximately 920 vehicles including 5% heavy vehicle, with an 85% speed of 57 kph. It provides access for daily school bus services which circulate from Dalley Street, eastbound into Oakley Avenue westbound. It also provides commercial daily services between Walker Street and through East Lismore. The area is used by school children attending the Rivers Secondary College – Lismore High Campus, which is located on Dalley Street, at the northern end of Military Road. It is also a high recreational walkers' route including elderly residents, accessing the East Lismore Cemetery on the eastern side of the road.

Between 2015-2020, there were two accidents at the intersection and an accident north of the intersection not related to the functionality of the roundabout. Since 2000, there has been one accident recorded in this section of Military Road.

Technical Directions - Speed Humps (Road Humps)

The installation of speed humps can sometimes have a detrimental effect to the surrounding neighbourhood and as listed in Austroads Part 8 Local Area traffic Management, there are some impacts which need to be considered including if the location is on a bend, crest or at intersections; bus and designated cycle routes; designated emergency access routes, and streets with high commercial traffic content.

The disadvantages of road humps include:

- Traffic noise levels may increase just before and after the road humps due to braking, acceleration and the vertical displacement of vehicles
- Discomfort for vehicle passengers and cyclists
- They may adversely affect emergency and commercial vehicles
- They can impact on passenger comfort when used on bus routes.

The installation of speed humps will also include loss of onstreet parking in the vicinity of the speed hump and generally residents do not like the loss of parking adjacent to their residence. The technical directions and potential issues as a result of the installation of speed humps, have been discussed with the writer.

Traffic speed data was collected with 55 kph calculated as the 85th percentile speed. The 85th percentile is regarded as the speed which a motorist is travelling in accordance with the road condition and to arrive at the destination safely. It was noted that 45% of the vehicles travelled between 40-50 kph and 33% travelled between 50-60 kph. Based on this data the Committee determined to include the site for inspection by the Committee on 3 November 2021.

TAC95/21 **AGREED** that:

1. The request for installation of speed humps on Military Road, East Lismore, not be supported.
2. As agreed by the Local Police Area Command, speed patrols be conducted pending advice from the writer on local knowledge and traffic data provided by Council's Design Services Team on vehicle speeds and times.
3. The Committee inspect the site in preparation of further discussion at a future meeting.

Voting for:	Councillor Bill Moorhouse, Caleisse Dunston, and Peter Ellem
Voting against:	Nil.
Absent:	Sgt Clint William

Closure

This concluded the business and the meeting terminated at 11.30am.

Committee Recommendation

Floodplain Management Committee Minutes - Meeting of 19 October 2021

Recommendation

That the attached minutes of the Lismore Floodplain Management Committee meeting held on 19 October 2021 be received and the recommendations contained in the minutes be endorsed.

Attachment/s

1. [↓](#) FMC Minutes 19 October 2021

MINUTES OF THE LISMORE FLOODPLAIN MANAGEMENT COMMITTEE HELD IN COUNCIL CHAMBERS ON TUESDAY, 19 OCTOBER 2021 AT 2-3PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Councillor Vanessa Ekins (Chair), Councillor Elly Bird, Councillor Bill Moorhouse, Jeremy Stewart, Caroline Sullivan, Chad Ellis, Scott Jones, Toong Chin, Graham Askey and Lindy Margan.

In Attendance

Paula Newman, LCC Strategic Planning Coordinator
Sandra Campbell, LCC Administration
Mark Page, Consultant, ENGEMY Water Management
Observers: Richard Trevan, Beth Trevan, Big Rob, Ross Lander

Apologies

Andrew Logan, Ed Bennett, Scott Turner

Non Attendance

Nil

Confirmation of Minutes

That the Minutes from the meeting dated 20 July 2021 be confirmed

MOVED by Cr Bird
(Unanimous)

SECONDED by Graham Askey

Disclosure of Interest

Nil

4.1 Project Plan for Update of Lismore Flood Risk Management Plan

That the Floodplain Management Committee receive and note the verbal report by Mark Page, Engeny Water Management, on the works program for the preparation of the Lismore Flood Risk Management Plan.

MOVED by Cr Ekins

SECONDED by Cr Bird

With the following actions:

1. Mark to adjust the timelines for the project
2. Paula to provide monthly updates to the Committee

Closure

This concluded the business and the meeting terminated at 4.05 pm.

Committee Recommendation

Planning Review Committee Meeting Minutes 26 October 2021

Recommendation

That the minutes be received and adopted and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) Planning Review Committee minutes

**MINUTES OF THE PLANNING REVIEW COMMITTEE HELD IN COUNCIL CHAMBERS ON
TUESDAY, 26 OCTOBER 2021 AT 6PM**

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Ekins; Councillors Bird, Casson, Cook, Guise, Lloyd, Marks, Moorhouse, together with the General Manager, Director Partnerships Planning & Engagement, Manager Built Environment, Governance & Risk Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies

Nil

Disclosure of Interest

Nil

Items for Discussion

4.1 117 Upper Tuntable Falls Road

PRCCC4/21 **RESOLVED** that this matter be determined under Delegated Authority.

(Councillors Cook/Bird) (BP21/866)

Voting for: Councillors Bird, Casson, Cook, Ekins, Marks and Moorhouse

Voting against: Councillors Guise and Lloyd

4.2 DA21/340 - 1 Rugby Road

PRCCC5/21 **RESOLVED** that this matter be determined under Delegated Authority.

(Councillors Moorhouse/Bird) (BP21/884)

Voting for: Councillors Bird, Casson, Cook, Ekins, Lloyd, Marks and Moorhouse

Voting against: Councillor Guise

4.4 DA21/452 - 1112 Bruxner Highway, McKees Hill

PRCCC6/21 **RESOLVED** that this matter be called up for determination by Council

(Councillors Lloyd/Bird) (BP21/886)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise and Lloyd

Voting against: Councillors Marks and Moorhouse

At this point Councillor Lloyd disclosed a non-pecuniary, significant interest in DA21/352 as her son attends the Living School.

Councillor Eddie Lloyd left the meeting, the time being 9.05PM.

4.3 DA21/352 - 20 McLennan Lane

PRCCC7/21 **RESOLVED** that this matter be determined under Delegated Authority.

(Councillors Bird/Moorhouse) (BP21/885)

Voting for: Councillors Bird, Casson, Cook, Ekins, Guise, Marks and Moorhouse

Voting against: Nil

Absent: Councillor Lloyd

Closure

This concluded the business and the meeting terminated at 9.15pm.

Committee Recommendations

Audit Risk and Improvement Committee Meeting - 23 August 2021

Recommendation

That the unconfirmed minutes of the 23 August 2021 and the extra ordinary 22 October 2021 meeting be received and noted, and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) ARIC Minutes 23 August 2021
2. [↓](#) ARIC Minutes 22 October 2021

MINUTES OF THE AUDIT RISK AND IMPROVEMENT COMMITTEE HELD IN COUNCIL CHAMBERS ON MONDAY, 23 AUGUST 2021 AT 9.00AM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mr Stephen Coates (Chair), Mr Richard Jones, Mr Brian Wilkinson, Councillor Darlene Cook, Councillor Elly Bird.

In Attendance

Mr Michael Donnelly Mr John Hartley (Manager Finance), Mr Geoff Dwyer (TNR), Ms Jody Carter (TNR), Reiky Jiang (NSW Audit Office), Mr Jarrod Lean (Grant Thornton), Mr Eber Butron (Director Partnerships Planning and Engagement), Mr Chris Watts (Manager Built Environment), Ms Christine Cotterill (Manager Governance & Risk), Ms Deborah McLean (Acting Audit Risk & Improvement Coordinator),

Apologies

There were no apologies

Confirmation of Minutes

ARIC151/21 **RESOLVED** that the Committee adopt the minutes from the previous Audit Risk and Improvement Meeting held on 18 June 2021
(Councillor Cook/Member Wilkinson)

Disclosure of Interest

No Disclosures of Interest were identified for any item on the agenda.

NOTE: Member Richard Jones informed the committee that he has been appointed Director of Trinity Catholic College Ltd and that this role may at times be relevant.

Business

4.1 General Managers Report

ARIC152/21 **NOTE:** The General Manager advised that since writing the report a potential legal matter involving land sales in North Lismore has arisen and provided a briefing to the Committee.
RESOLVED that the Committee receives the report of the General Manager and notes the matters raised.
(Member Jones/ Councillor Bird) (BP21/641)

4.2 External Audit Report

ARIC153/21 At this time Geoff Dwyer from Thomas Noble Russell and Reiky Jiang from the NSW Audit Office provided the Committee with a verbal update as follows:

Geoff Dwyer – Thomas Noble Russell verbal report

The Interim phase of the Audit has now been completed and there were no matters that needed to be reported through a management letter. Mr Dwyer reported that this is a good finding enabling council staff to focus on matters that are still outstanding from previous audits.

He also advised that the Final Management letter which will complete after year end phase of the audit will include an update on prior year matters. If outstanding they will be re-raised and those that are completed will be closed off.

Mr Dwyer brought to the attention of committee the year end matters that will be focused on as reported in the Audit Plan.

Reiky Jiang from the NSW Audit Office verbal report

Update on the Annual Work Program recently published by the Auditor General.

The Annual Work Program 2021-2024 is available on the Audit Office of NSW website and covers the NSW Audit Office Financial and Performance Audit Plan for the year ahead and the three-year Audit Performance Plan for State and Local Government sectors. The Auditor General acknowledges that the program was published at a very challenging time as the sectors are trying to respond to the impact of the COVID pandemic alongside the consequence of other emergency events, such as the 2019/20 bush fires and subsequent flood, and also understands that cyber security remains a key risk for the government sector. The audit program is very much focussed on how the government continue to respond to all the emergencies including the administration of relevant grants and also the management of cyber risks. In developing the plan the Audit Office has consulted very broadly with different stakeholders and welcomes additional feedback.

RESOLVED that the Committee receive and note the verbal update on the External Audit program.

(Councillors Cook/Bird) (BP21/642)

4.3 Financial Management Update

ARIC154/21 **RESOLVED** that the report be received and noted.

(Councillors Wilkinson/Jones) (BP21/643)

At this time Chris Watts and Eber Butron joined the meeting

4.4 Internal Audit Report

ARIC155/21] **RESOLVED** that :

1. The Committee receive and approve the Final Development Assessment Review Report
2. The actions arising from the Development Assessment Review Report be

included in the outstanding audit action report and presented to the next meeting.

(Councillors Bird/Cook) (BP21/644)

4.5 Report Showing Trends on Audit Items

ARIC156/21 **RESOLVED** that the Committee receives the progress report on the status of audit items as at 30 June 2021 and the committee requests that the report be brought up to date for the next meeting.

(Councillors Wilkinson/Jones) (BP21/645)

At this time Chris Watts and Christine Cotterill left the meeting.

4.6 Audit Risk and Improvement Committee Appraisal

ARIC157/21 **RESOLVED** that :

1. The Committee note the Chair's report on the performance of the committee and the results of the self-assessment questionnaire.
2. The Committee present the Chair's report for Information to the Council at the next Council meeting.

(Councillors Bird/Jones) (BP21/649)

At this time Geoff Dwyer, Jody Carter and Reiky Jiang left the meeting.

4.7 Partnerships Planning and Engagement Report

ARIC158/21 **RESOLVED** that the Committee receives and notes the presentation by the Director Partnerships Planning and Engagement.

(Councillors Wilkinson/Bird) (BP21/648)

At this time Eber Butron left the meeting.

4.8 Governance and Risk Update

ARIC159/21 **RESOLVED** that the committee receive and note the report.

(Councillors Jones/Cook) (BP21/646)

4.9 Legal Matters Report

ARIC160/21 **RESOLVED** that the committee receive and note the current legal matters underway to the period ended 30 June 2021.

(Councillors Wilkinson/Cook) (BP21/640)

4.10 ARIC action tracker, schedule of topics for next meeting and any other business

ARIC161/21 **RESOLVED** that :

1. The committee has reviewed and endorses the progress of the status of actions arising from previous meetings.
2. The committee confirms topics as identified in the schedule for the next meeting.
(Councillors Jones/Wilkinson) (BP21/647)

Closure

This concluded the business and the meeting terminated at 12.05 pm.

MINUTES OF THE EXTRA ORDINARY AUDIT RISK AND IMPROVEMENT COMMITTEE HELD IN ZOOM ON FRIDAY, 22 OCTOBER 2021 AT 1.00PM

Please note: These minutes are subject to confirmation at the next ARIC meeting.

Present

Stephen Coates (chairman) Richard Jones, Brian Wilkinson, Cllr Darlene Cook

In Attendance

Aveley McCann, John Hartley, Christine Cotterill, Michael Donnelly, Geoff Dwyer, Jarrod Lean, Jodie Carter, Kevin Franey, Reiky Jiang

Apologies

Cllr Elly Bird

Disclosure of Interest

Nil

4.1 Audited Financial Statements for the year ended 30 June 2021

ARIC160/21 **RESOLVED** that

- the Committee has received and reviewed the Audited Financial Statements for the year ended 30 June 2021.
- the committee notes the NSW Audit Office Report on the Conduct of the Audit
- the committee notes the NSW Audit Office Engagement Closing Report

(Councillors Cook/Jones) (BP21/863)

Voting for: Members Coates, Jones, Wilkinson, Councillor Cook,

Voting against: Nil

Closure

This concluded the business and the meeting terminated at 1.55 pm.

Documents for Signing and Sealing



Document for Signing and Sealing

The following documents have been prepared in accordance with previous resolutions of the Council and/or the provisions of the *Local Government Act*, 1993 and other relevant statutes.

It is now proposed that the Council authorise the execution these documents.

Executive Summary

At Council's ordinary meeting of 13 April 2021, it was resolved that a report be brought back to the May 2021 Council meeting to review the General Manager's delegations with the intent of restoring a previous practice of reporting all land occupancy agreements to Council under the heading, *Documents for Signing & Sealing*.

The purpose of this report is to notify Council of those occupancy agreements that have already been substantially negotiated and may be ready for execution prior to the General Manager's delegations being updated and adopted to reflect the above intent. This report does not recommend the Council seal be affixed to these documents as this would be inconsistent with:

- a) Council Corporate Procedure 1.1.36, which purpose is to limit use of the Council seal to documents required by law to be signed under seal; and
- b) the General Manager's delegations to grant leases and licenses at the time these agreements were negotiated.

This report recommends the following agreements be signed by the General Manager under existing delegations to avoid commercial disadvantage to Council and the proposed occupiers that could suffer if agreements were required to be reported to Council prior to being agreed.

It is noted the 28-day statutory notification period for the below listed agreements and easement on community land has commenced. The proposal has been published on Council's website, exhibited on the land to which the proposal relates and given to persons who own or occupy adjoining land (or considered to be affected by the proposal). Council staff do not expect any submissions of objection to be received. However, at the end of the notice period, should a submission of objection be received that cannot be resolved, Council staff will bring the matter back to Council for review and determination.

NEW AGREEMENT

Item A: AF21/3714 New Outdoor Dining Licence Agreement for Café Capello

New outdoor dining license agreement for a period of six (6) months to Mr Che Fung Lo of Sparkle LL Pty Ltd trading as Café Capello comprising an area of approximately 45.9m² of improved road reserve (blister) in front of 24 Carrington Street, Lismore (Lot 1 DP 1030966).

Premises:

45.9m² of improved road reserve (blister) in front of Café Capello, 24 Carrington Street, Lismore (Lot 1 DP 1030966).

Licensee:

Mr Che Fung Lo of Sparkle LL Pty Ltd T/A Café Capello (ABN 17 654 027 068)

Licence Fee:

In November 2020 Council adopted the NSW Outdoor Dining Policy (the Policy) which removed fees for outdoor dining. Council staff are in the process of handing over outdoor dining licenses to Service NSW. Part of this process involves developing a fee structure, for improved outdoor dining areas that extend beyond the standard footpath (such as at Café Capello). This outdoor dining license is for a period of six months to allow for the fee structure to be developed and if approved, adopted by Council.

Permitted Use:

Outdoor dining as per Council's existing Outdoor Dining Policy and the Policy.

Item B: P14630 New Grazing Agreement to Tregeagle Landcare Group

Land:

Crown Reserve No. 33732: Part of 820 Tregeagle Road, Tregeagle (582 DP 728646)

Licensees:

Tregeagle Landcare Group (ABN 96 238 710 264)

License Fee:

Peppercorn rent.

Staff comments:

Document for Signing and Sealing

Council's Parks and Open Spaces Coordinator has advised Council recently spent approximately \$5,000 in maintenance on the reserve to slash the grass to get it down to a respectable standard. Staff are not able to attend to maintenance of the entire reserve (due to rocks and landscape). Tregagle Landcare Group is currently awaiting the outcome of a grant funding application made for maintenance of the reserve and expects to receive this outcome in December. In anticipation of receiving grant money, the grazing of cattle will assist the Group in keeping on top of weeds.

Term:

Six (6) months (no options).

Permitted Use:

Cattle grazing.

RENEWAL AGREEMENTS

Item C: AF17/1581 Renew License to Lismore and District Financial Counselling Service

Premises:

Crown Reserve No. 540207: Part of Old Municipal Building, being Suite 1, Suite 2, Suite 4, Suite 4A and Suite 5A of 165 Molesworth Street, Lismore (Lot 1 DP 118542).

Licensees:

Lismore and District Financial Counselling Services Incorporated (ABN 12 177 965 157)

License Fee:

\$1,766.53 incl. GST per month.

Term:

One (1) year (no options)

Permitted Use:

Office space used for purpose of community, training, education, meetings, sales and storage.

Item D: AF19/2458 Renew License to Sigrid Macdonald and Hilary McPherson

Premises:

Crown Reserve No. 540207: Part of Old Municipal Building, being Suite 3A of 165 Molesworth Street, Lismore (Lot 1 DP118542).

Licensees:

Sigrid Macdonald and Hilary McPherson

License Fee:

\$93.17 incl. GST per week.

Term:

Two (2) year (no options)

Permitted Use:

Office space used for purpose of community, training, education, meetings, sales and storage.

Item E: AF17/1536 Renew License to Lismore Croquet Club Incorporated

Premises:

Crown Reserve No. 85348: Spinks Park Croquet Court, 115 Molesworth Street, Lismore (Lot 2 DP 1235498).

Licensees:

Lismore Croquet Club Incorporated (ABN 22 483 195 191)

License Fee:

Continuation of current rent + CPI (Market value)

Term:

Five (5) years (no options)

Permitted Use:

Sporting and organised recreational activities, meetings and storage.

GRANTING OF EASEMENT

Item F: CDR21/1766 Easement for Tullera Community Hall

Burdened Council Land: Spinaze Park, 686 Dunoon Road, Tullera (Lot 32 DP 856398)

Benefited land: Tullera Community Hall, 682 Dunoon Road, Tullera (Lot 1 DP 320291)

Owned by: Tullera Community Hall Inc (ABN 85 128 008 001)

Purpose: Easement to drain sewerage 3m wide

Location: Refer to Images 1 and 2 below. Plumber has recommended due to root barriers of fig tree, survey plan be amended to roadside of amenity block.

Compensation: Market value

Costs: Council's legal, valuation and administration costs to be paid by applicant.

Staff Comment: Council's recently upgraded onsite sewerage management system at Spinaze Park amenity block was designed to allow connection of services from Tullera Hall. This granting of easement forms part of the last stages of an approval process and may be granted by Council under s46 of the *Local Government Act, 1993*.

Image 1: Site plan showing Tullera Hall connection to Spinaze Park amenity block

Note: Plumber recommends due to root barriers of fig tree, connection be amended to roadside of toilets.

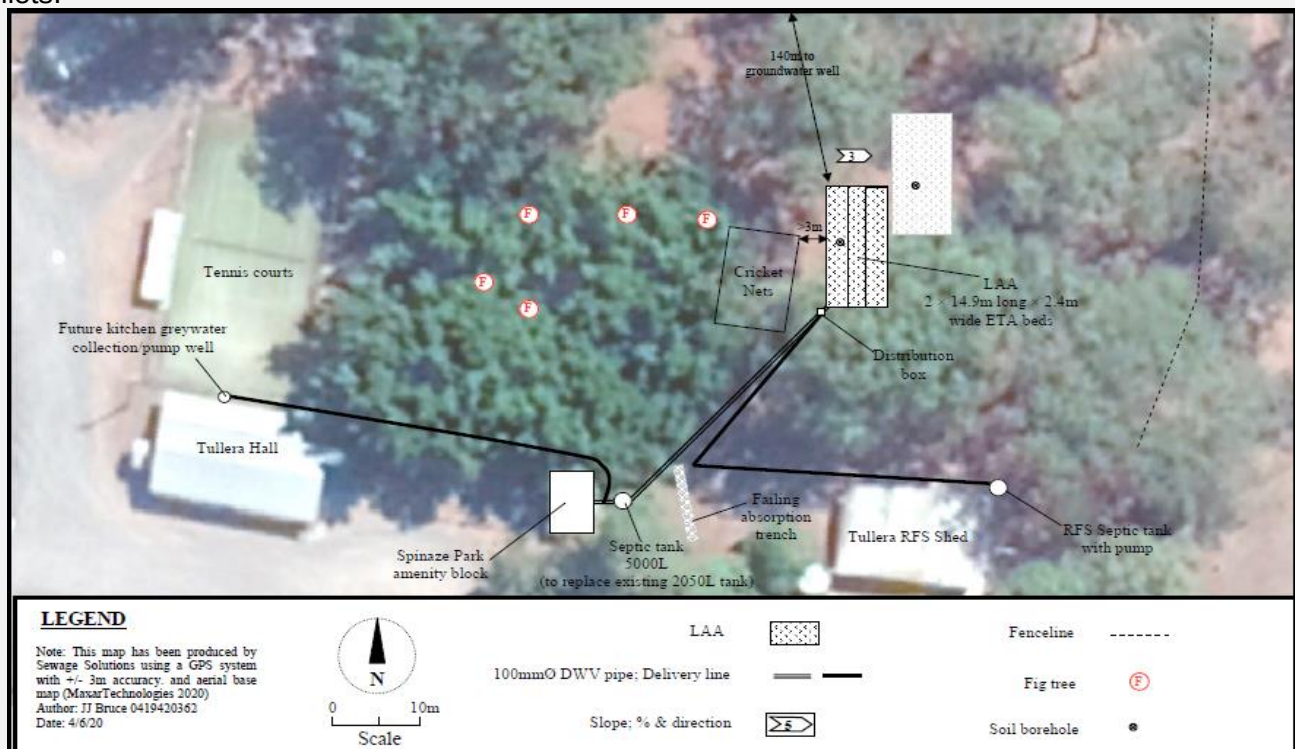
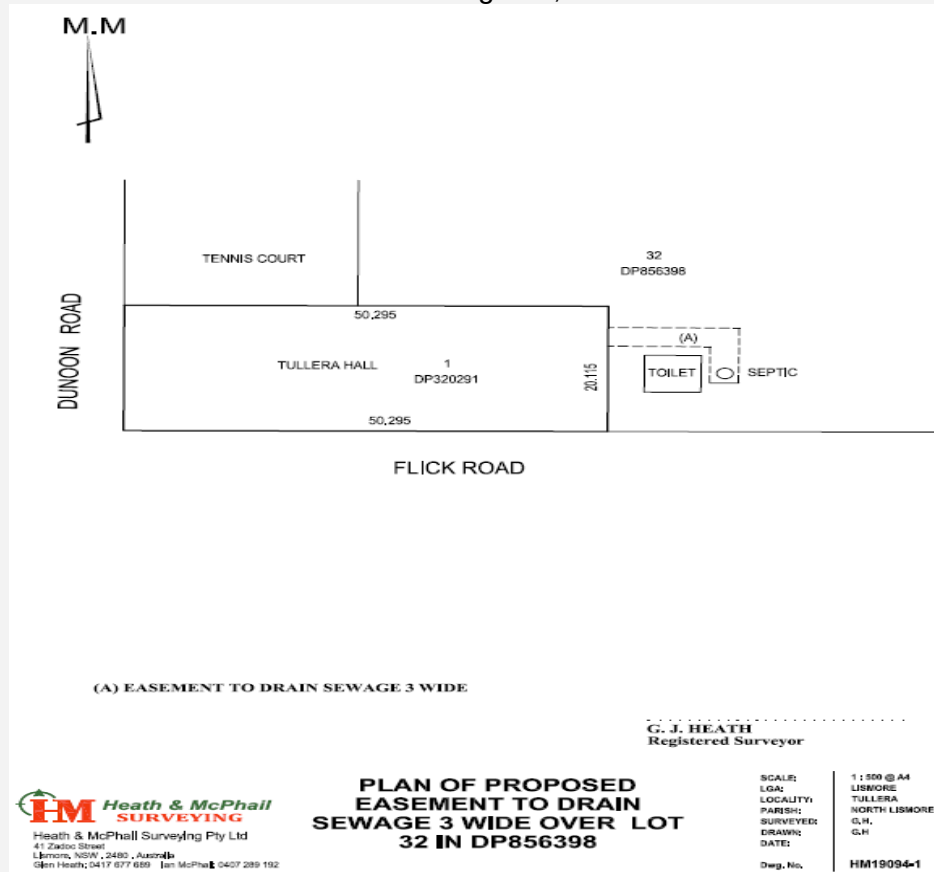


Image 2: Draft Plan of Proposed Easement

Note: Plumber recommends due to root barriers of fig tree, easement be amended to roadside of toilets.



GENERAL MANAGER'S DELEGATION

Item G As noted in the introduction of this report, at Council's ordinary meeting of 13 April 2021, it was resolved that a report be brought back to the May 2021 Council meeting to review the General Manager's delegations with the intent of restoring a previous practice of reporting all land occupancy agreements to Council under the heading, *Documents for Signing & Sealing*.

It is acknowledged this November 2021 Council meeting will be the last meeting available to report agreements until Council's February 2022 meeting.

It is recommended Council provide support, during this said period when Council does not meet, for the General Manager to sign substantially negotiated and ready for execution agreements under existing delegations. This is to avoid commercial disadvantage to Council that could suffer if agreements were required to be reported to Council prior to being agreed.

Recommendation

That Council note the following tenure be executed under delegated authority by the General Manager:

- A. **New Outdoor Dining License with Mr Che Fung Lo of Sparkle LL Pty Ltd T/A Café Capello (ABN 17 654 027 068)** over the improved road reserve (blister) in front of 24 Carrington Street, Lismore (Lot 1 in DP 1030966). (ref AF21/3714)
- B. **New Grazing License to Tregeagle Landcare Group (ABN 96 238 710 264)** for Crown Reserve No. 33732: Part of 820 Tregeagle Road, Tregeagle (582 DP 728646) for a six (6) month term (no options). (ref P14630)
- C. **Renew License to Lismore and District Financial Counselling Service (ABN 12 177 965 157)** for Crown Reserve No. 540207: Part of Old Municipal Building, being Suite 1, Suite 2, Suite 4, Suite 4A and Suite 5A of 165 Molesworth Street, Lismore (Lot 1 DP118542) for a one (1) year term (no options). (ref AF17/1581)
- D. **Renew License to Sigrid Macdonald and Hilary McPherson**
Crown Reserve No. 540207: Part of Old Municipal Building, being Suite 3A of 165 Molesworth Street, Lismore (Lot 1 DP118542) for a two (2) year term (no options). (ref AF19/2458)
- E. **Renew License to Lismore Croquet Club Incorporated (ABN 22 483 195 191)** for Crown Reserve No. 85348: Spinks Park Croquet Court, 115 Molesworth Street, Lismore (Lot 2 DP1235498) for a five (5) year term (no options). (ref AF17/1536)
- F. **Easement for Tullera Community Hall Inc (ABN 85 128 008 001)**
Burdened Council Land: Spinaze Park, 686 Dunoon Road, Tullera (Lot 32 DP 856398)
Benefited land: Tullera Community Hall, 682 Dunoon Road, Tullera (Lot 1 DP 320291)
Owned by: Tullera Community Hall Inc (ABN 85 128 008 001)
Purpose: Easement to drain sewerage 3m wide
Location: To be determined by survey
Compensation: Market value
Costs: Council's legal, valuation and administration costs to be paid by applicant. (ref CDR21/1766)
- G. **General Manager Delegation**
Effective for the period from 10 November 2021 until 8 February 2022, Council delegate authority to the General Manager to sign substantially negotiated and ready for execution agreements under existing delegations, subject to regular updates being provided to Councillors on executed agreements during this period.

Attachment/s

There are no attachments for this report.

Confidential Business



Confidential Matters–Closed Council Meeting

A Council may close to the public only so much of its meeting as comprises the receipt or discussion of any of the following:

Section 10A(2) – Local Government Act 1993:

- a) personnel matters concerning particular individuals;
- b) the personal hardship of any resident or ratepayer;
- c) information that would, if disclosed, confer a commercial advantage of a person with whom the Council is conducting (or proposes to conduct) business;
- d) commercial information of a confidential nature that would, if disclosed:
 - i) prejudice the commercial position of the person who supplied it, or
 - ii) confer a commercial advantage on a competitor of the Council, or
 - iii) reveal a trade secret;
- e) information that would, if disclosed, prejudice the maintenance of law;
- f) matters affecting security of the Council, Councillors, Council staff or Council property;
- g) advice concerning litigation, or advice, that would otherwise be privileged from production in legal proceedings on the grounds of legal professional privilege;
- h) information concerning the nature and location of a place or an item of Aboriginal significance on community land.

Clause 34 of Council Code of Meeting Practice

Representations from the public as to whether part of the meeting should be closed to the public can be made after the motion to close the meeting has been moved and seconded for a period of 10 minutes.

Recommendation

That the Council exclude members of the press and public from the meeting and move into Closed Council Meeting to consider the following matters:

Item	18.1 Sundry Debtors Accounts Write Off
Grounds for Closure	Section 10A(2) (b):
Public Interest	Discussion of this matter in an open meeting would on balance be contrary to the public interest because it relates to:the personal hardship of any resident or ratepayer.

MINUTES OF THE ORDINARY MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON TUESDAY, 12 OCTOBER 2021 AT 6PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Ekins; Councillors Bird, Cook, Guise, Lloyd, Marks, Moorhouse, together with the General Manager, Director Corporate Services, Director Infrastructure Services, Director Partnerships, Planning & Engagement, Manager Finance, Manager Built Environment, Manager Technology and Innovation, Strategic Planning Coordinator, Planning Coordinator, Coordinator Regulatory Services, Development Assessment Officer (Planning), Technology Support Officer, Governance & Risk Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies and Leave of Absence

53/21

RESOLVED that:

1. an apology be accepted for Cr Casson
2. a leave of absence be accepted for Cr Bird for 21-25 October 2021

(Councillors Marks/Lloyd)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Confirmation of Minutes of Previous Meeting

54/21

RESOLVED that the minutes of the following meetings be confirmed:

- Ordinary Meeting held on 14 September 2021
- Confidential Meeting held on 14 September 2021

(Councillors Marks/Bird)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Disclosure of Interest

55/21

RESOLVED that:

Cr Cook declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 16.1 Documents for Signing

Nature: item B Cr Cook rented a car parking space from the lessors more than 5 years ago

Cr Guise declared a Non-Pecuniary, Significant Conflict of Interest for the following item: 13.2 Lismore Base Hospital Precinct – Parking Controls and COVID-19

Nature: Cr Guise works for NSW Health

(Councillors Cook/Moorhouse)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Public Access Session on Agenda Items

Prior to dealing with the circulated reports and associated information, a Public Access Session was held at which Council was addressed by the following:

Notice of Rescission Motion

9.1 Notice of Rescission - DA5.2020.488.1 - 92 Lot Subdivision at 805 and 811 Ballina Road, Goonellabah

FOR	John McMahon, Goonellabah Developments P/L
	Alex Greig, Goonellabah Developments P/L
	Wade Fletcher, CivilTech Consultation Engineers
	Douglas Blythe, Goonellabah Tucki Creek Landcare
	Paul King, Strata Title Management
	Bill Knobel, Goonellabah Developments P/L
	Graham Meineke, Goonellabah Developments P/L

Notice of Motion

10.1 Draft Browns Creek Naturalisation

AGAINST	Big Rob
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Councillor Adam Guise left the meeting, the time being 6:52PM

Matters Arising

13.2 Lismore Base Hospital Precinct – Parking Controls and COVID-19

AGAINST	Big Rob
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Councillor Adam Guise returned to the meeting, the time being 6:53PM

14.2 DA21/57 - 135 Union Street South Lismore 2480 - To undertake the erection of a service station and associated works

AGAINST	Kevin Handcock
	Phillip Terry
	Cath Piltz
	Beki Davies
FOR	Youil Adam, Spectrum Retail Group
	Greg Peddie, Spectrum Retail Group

14.3 DA20/78 - 30 Crawford Road - Telecommunications Facility

AGAINST	Sean O'Shannessy, North East Forest Alliance
FOR	Michael Marom, Telstra
	Kuda Dzino, Service Stream

At this point the meeting adjourned for a short recess, the time being 7.44PM.

The meeting resumed at 7.50PM.

Mayoral Minute(s) and Condolence Motions

Notice of Rescission Motions

9.1 Notice of Rescission - DA5.2020.488.1 - 92 Lot Subdivision at 805 and 811 Ballina Road, Goonellabah

56/21 **DEFEATED** that Council rescind its decision on Item 14.1 from 14 September 2021 meeting.

(Councillors Marks/Bird) (BP21/777)

Voting for: Councillors Bird, Cook and Marks

Voting against: Councillors Ekins, Guise, Lloyd and Moorhouse

Notice of Motions

10.1 Draft Browns Creek Naturalisation

57/21 **RESOLVED** that Council:

1. affirms its commitment and high prioritisation of the naturalisation of Browns Creek as Stage 1 of Lismore Park redevelopment and that allocated funds are retained for this purpose in any review of the Urban Stormwater Management Plan (USMP).
2. provides a possible timeline for the project, design options and breakdown of construction and maintenance costs at a Council workshop this financial year.

(Councillors Ekins/Guise) (BP21/810)

Voting for: Councillors Bird, Cook, Ekins, Guise and Lloyd

Voting against: Councillors Marks and Moorhouse

10.2 Infrastructure Contributions

58/21 **RESOLVED** that Council:

1. calls on the NSW State Government to:
 - a) withdraw the *Environmental Planning and Assessment Amendment (Infrastructure Contributions) Bill 2021* (the Bill) from the NSW Parliament.
 - b) undertake further consultation with the local government sector on any proposed reforms to the infrastructure contributions system.
2. writes to the local State Member Janelle Saffin MP, the Premier Dominic Perrottet MP, Treasurer Matt Kean MP, Minister for Planning and Public Spaces Rob Stokes MP and Minister for Local Government Shelley Hancock MP seeking them to withdraw the Bill.

3. alerts the local media to the threat of future ratepayer funds being expended rather than developer levies for new infrastructure brought about by increased development under the proposed legislation and shares and promotes these messages via its digital and social media channels and its networks.
4. affirms its support to LGNSW and requests LGNSW continue advocating on our behalf to protect local government from any amendments to infrastructure contributions which leaves councils and communities exposed to expending ratepayer funds on new infrastructure made necessary by new development, currently the responsibility of developers.

(Councillors Ekins/Bird) (BP21/812)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Councillor Adam Guise left the meeting, the time being 8:53PM

Councillor Adam Guise returned to the meeting, the time being 8:55PM

Matter of Urgency

59/21 MOTION moved that the following issue be considered as a matter of urgency.

That Council urgently write to Janelle Saffin MP, Premier Dominic Perrottet and Deputy Premier Paul Toole seeking urgent changes to the NSW Government roadmap to reopening for regional communities who have not achieved the same rates of vaccination as metropolitan communities;

1. Change access requirements to restricted premises to allow access for people with one dose of a vaccine;
2. Extend the date for repeal of clause 4 (a) to allow workers with one dose to be able to work beyond 1st November;
3. Delay regional travel until at least 1st November or when regional communities consistently reach 80% double dose;
4. Retain financial support for impacted businesses until 1st December;
5. Request that the Member for Lismore consider making a Private Members Statement to Parliament on this matter

(Councillor Bird)

At this time the Mayor ruled that this is a matter of urgency due to the timeframe involved.

60/21 **RESOLVED** that Council urgently write to Janelle Saffin MP, Premier Dominic Perrottet and Deputy Premier Paul Toole seeking urgent changes to the NSW Government roadmap to reopening for regional communities who have not achieved the same rates of vaccination as metropolitan communities;

1. Change access requirements to restricted premises to allow access for people with one dose of a vaccine;

2. Extend the date for repeal of clause 4 (a) to allow workers with one dose to be able to work beyond 1st November;
3. Delay regional travel until at least 1st November or when regional communities consistently reach 80% double dose;
4. Retain financial support for impacted businesses until 1st December;
5. Request that the Member for Lismore consider making a Private Members Statement to Parliament on this matter

(Councillors Bird/Ekins)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Altering Order of Business (Consideration of altering the order of business to debate matters raised during Public Access Session)

61/21 **RESOLVED** that the order of business be altered to debate the following matters raised during Public Access:

- 13.2 Lismore Base Hospital Precinct - Parking Controls and COVID – 19
- 14.2 DA21/57 - 135 Union Street South Lismore 2480 - To undertake the erection of a service station and associated works
- 14.3 DA20/78 - 30 Crawford Road - Telecommunications Facility

(Councillors Marks/Lloyd)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Councillor Adam Guise left the meeting, the time being 8:59PM

13.2 Lismore Base Hospital Precinct - Parking Controls and COVID-19

62/21

RESOLVED that Council:

1. acknowledges the valuable contribution of our frontline workers at our hospitals and their ongoing efforts to keep our community safe during the COVID-19 pandemic.
2. continues the current free parking on Hunter St and Dalziel St in the Hospital precinct and waives restrictions on parking on Weaver St, Laurel Ave, and McKenzie St.
3. brings this matter back to Council at the April 2022 meeting for a further decision.
4. writes to the Premier, the Minister for Health, and the Member for Lismore, requesting financial reimbursement for Council's loss of revenue incurred by our support for state government employees and requests immediate implementation of the Stage 2 development of NSW Health's parking station.

(Councillors Cook/Marks) (BP21/809)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Councillor Adam Guise returned to the meeting, the time being 9:06PM

14.2 DA21/57 - 135 Union Street South Lismore 2480 - To undertake the erection of a service station and associated works

MOTION moved that Development Application No. 2021/57 to undertake demolition of existing structures, removal of 6 trees, filling of the site and the erection of a service station and convenience store and associated works be **approved** subject to the imposition of draft conditions as found in *Attachment 1 - Proposed Conditions of Consent*.

(Councillors Marks/Moorhouse)

FORESHADOWED MOTION that DA21/57 - 135 Union Street South Lismore 2480 be refused on the following grounds of Section 4.15 of the *Environment Planning & Assessment Act 1979*:

- the impact on the environment
- social & economic impacts
- the public interest

(Councillor Guise)

63/21

On submission to the meeting the motion was **DEFEATED** that Development Application No. 2021/57 to undertake demolition of existing structures, removal of 6 trees, filling of the site and the erection of a service station and convenience store and associated works be **approved** subject to the imposition of draft conditions as found in *Attachment 1 - Proposed Conditions of Consent*.

(Councillors Marks/Moorhouse) (BP21/668)

Voting for: Councillors Cook, Marks and Moorhouse

Voting against: Councillors Bird, Ekins, Guise and Lloyd

On submission to the meeting the foreshadowed motion became the motion and was amended that it is proposed the Development Application be determined by **refusing** Consent.

The reasons for the refusal are:

1. The likely impacts of the development on the locality, as it has not been adequately demonstrated that the proposed Service Station will not have an adverse effect on the road network, and or the amenity of the area;
2. Insufficient information has been provided in terms of likely environmental impact (EP&A Act CI 4.15), inclusive of impacts upon Hollingsworth creek;
3. The site is not suitable for the proposed development and therefore does not comply with CI 4.15, of the Environmental Planning and Assessment Act 1979; and
4. The proposed development is not in the public interest (EP&A Act CI 4.15) because of the risk to the safety of the customers/occupants, adjoining owners, pedestrians and vehicles.

(Councillors Guise/Bird)

Voting for: Councillors Bird, Ekins, Guise and Lloyd

Voting against: Councillors Cook, Marks and Moorhouse

Councillor Elly Bird left the meeting, the time being 9:35PM

Councillor Elly Bird returned to the meeting, the time being 9:37PM

14.3 DA20/78 - 30 Crawford Road - Telecommunications Facility

That the Development Application 20/78 be determined by **refusing** of Consent.

The reasons for the refusal are:

1. The likely environmental impacts of the development on the koala population and the koala corridor they depend on as it has not been adequately demonstrated that the proposed Telecommunications Facility will not have an adverse effect on the koalas that traverse the site pursuant to s 4.15(1)(b) of the Environmental Planning and Assessment Act 1979;
2. The potential impact on sites of cultural significance for the traditional custodians pursuant to s 4.15(1)(b) of the Environmental Planning and Assessment Act 1979;
3. The site is not suitable for the proposed development pursuant to s 4.15(1)(c) of the Environmental Planning and Assessment Act 1979; and
4. The granting of consent would not be in the public interest in accordance with the provisions of s4.15(1)(e) of the Environmental Planning & Assessment Act 1979.

(Councillors Lloyd/Guise)

FORESHADOWED MOTION that Development Application No. 2020/78 for the installation of a telecommunications facility comprising of a 35-metre-high monopole with equipment shelter, access track and associated works be **approved** subject to the imposition of draft conditions as found in *Attachment 1 - Proposed Conditions of Consent*.

(Councillor Cook)

64/21

RESOLVED that the Development Application 20/78 be determined by **refusing** of Consent.

The reasons for the refusal are:

1. The likely environmental impacts of the development on the koala population and the koala corridor they depend on as it has not been adequately demonstrated that the proposed Telecommunications Facility will not have an adverse effect on the koalas that traverse the site pursuant to s 4.15(1)(b) of the Environmental Planning and Assessment Act 1979;
2. The potential impact on sites of cultural significance for the traditional custodians pursuant to s 4.15(1)(b) of the Environmental Planning and Assessment Act 1979;
3. The site is not suitable for the proposed development pursuant to s 4.15(1)(c) of the Environmental Planning and Assessment Act 1979; and
4. The granting of consent would not be in the public interest in accordance with the provisions of s4.15(1)(e) of the Environmental Planning & Assessment Act 1979.

(Councillors Lloyd/Guise) (BP21/37)

Voting for: Councillors Bird, Ekins, Guise and Lloyd

Voting against: Councillors Cook, Marks and Moorhouse

Matters Arising

13.1 Reclassification of Riverview Park from Operational to Community

65/21 **RESOLVED** that pursuant to Sections 27 and 33 of the *Local Government Act 1993*, Council resolve to reclassify the parcels listed below from Operational land to Community land:

- Lot 1 in DP 1269893 - 210A Union Street, South Lismore (part of closed road)
- Lot 3 in DP 1269893 - 182A Union Street, South Lismore (main part of Riverview Park)
- Lot 6, Section 2 in DP 1691 – 208B Union Street, South Lismore (thin strip along southern boundary of Riverview Park)

(Councillors Bird/Moorhouse) (BP21/571)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Reports of the General Manager

14.1 Nimbin Special Business Rate Variation Levy - Fund Acquittal

66/21 **RESOLVED** that:

1. Council confirms the financial report provided by the Nimbin Chamber of Commerce for the expenditure of the Nimbin Special Business Rate Variation Levy for the period 1 July 2019 to 30 September 2021.
2. Council releases the 2021/2022 Nimbin Special Business Rate Variation Levy amount of \$16,500 (excluding GST) to the Nimbin Chamber of Commerce.
3. the Nimbin Chamber of Commerce is to provide an annual report to Council on the acquittal of said funds for the period 1 October 2021 to 30 September 2022.

(Councillors Moorhouse/Marks) (BP21/776)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

14.4 Sixth Round of General Amendments to the Lismore Environmental Plan 2012

67/21

RESOLVED that:

1. Council supports the Planning Proposal for general amendments to the Lismore Local Environmental Plan 2012 as described in Attached 1 of this report and itemised below:

Item 1 - Land Use Table 'School Based Childcare' in industrial zones
Item 2 - Clause 4.2B dwelling entitlement issue
Item 3 - 7 Engine Street, South Lismore - Heritage classification
Item 4 - 450 Alphadale Road, Tregagle – include in Schedule 5 and Heritage Map
Item 5 – 2 Cassia Crescent, Goonellabah – rezoning
Item 6 – 10 Eden Street, Girards Hill – part rezoning
Item 7 – 182A Union Street, South Lismore – part rezoning
Item 8 – 210A Union Street, South Lismore – part rezoning
Item 9 – 210 Union Street, South Lismore – part rezoning
Item 10 – 13 Spurfield Road, McLeans Ridges – rezoning
Item 11 – 15 Holland Street, Goonellabah – part rezoning
Item 12 – Archibald Place, South Lismore - rezoning
2. the Planning Proposal at Attachment 1 is forwarded to the Department of Planning, Industry and Environment for a Gateway Determination;
3. Council confirms that staff are to proceed to public exhibition of the planning proposal and government agency consultation based on the Gateway Determination and report back to Council with any issues as part of post-exhibition reporting of submissions.

(Councillors Marks/Cook) (BP21/767)

Voting for: Councillors Bird, Cook, Ekins, Marks and Moorhouse

Voting against: Councillors Guise and Lloyd

14.5 Investments - September 2021

68/21

RESOLVED that the report be received and noted.

(Councillors Cook/Moorhouse) (BP21/662)

Voting for: Councillors Bird, Cook, Marks and Moorhouse

Voting against: Councillors Ekins, Guise and Lloyd

14.6 2021/22 Capital Works and Fleet Replacement Program - Delegations to General Manager

69/21

RESOLVED that for project/s included in the 2021/22 Capital Works Program and Fleet Replacement Program which are subject of a tender process to deliver all or part of the project scope:

1. In accordance with Section 377(1) of the *Local Government Act*, 1993 delegated authority be given to the General Manager to determine the tender/s up until 1 March 2022.
2. In accordance with Section 393B(2) of the *Local Government (General) Regulation* 2005, in the event that a capital works tender requires determination within the Council caretaker period, the General Manager is authorised to write to the Minister for Local Government seeking consent to exercise its functions relating to the award of contracts.
3. Upon acceptance of a suitable tender and consent from the Minister (if applicable), the General Manager be authorised to execute a contract for the specific package of work.
4. The General Manager report to Councillors via *City Notes* the details of the successful tenderers and provide progress updates throughout the delivery of the projects under this delegation.

(Councillors Moorhouse/Bird) (BP21/797)

Voting for: Councillors Bird, Cook, Ekins, Guise, Marks and Moorhouse

Voting against: Councillor Lloyd

14.7 Council Financial Report - September 2021

70/21

RESOLVED that Councillors note the contents of the report and the potential impact on Council's 2021/22 Operational Plan.

(Councillors Bird/Cook) (BP21/807)

Voting for: Councillors Bird, Cook, Ekins, Marks and Moorhouse

Voting against: Councillors Guise and Lloyd

14.8 2020/21 Reserves (Internally Restricted)

- 71/21 **RESOLVED** that Council adopts the 2020/21 Reserves (Internally Restricted) annual report which has reserves of \$23,890,800 as at 30 June 2021.
- (Councillors Bird/Cook) (BP21/808)
- Voting for:** Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse
- Voting against:** Nil

14.9 Annual Pecuniary Interest Returns

- 72/21 **RESOLVED** that the report be received, and the tabled Pecuniary Interest Returns be acknowledged.
- (Councillors Marks/Cook) (BP21/818)
- Voting for:** Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse
- Voting against:** Nil

Committee Recommendations

15.1 Traffic Advisory Committee Minutes - Meeting of 15 September 2021

- 73/21 **RESOLVED** that the minutes be received and adopted and the recommendations contained therein be adopted.
- (Councillors Moorhouse/Marks) (BP21/811)
- Voting for:** Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse
- Voting against:** Nil

15.2 Planning Review Committee Meeting Minutes 28 September 2021

- 74/21 **RESOLVED** that the minutes be received and adopted and the recommendations contained therein be adopted.
- (Councillors Marks/Cook) (BP21/816)
- Voting for:** Councillors Bird, Cook, Ekins, Lloyd, Marks and Moorhouse
- Voting against:** Councillor Guise

Documents for Signing and Sealing

16.1 Documents for Signing

- 75/21 **RESOLVED** that Council note the following tenure be executed under delegated authority by the General Manager:
- A. **New License to Far North Coast Baseball Association Inc (ABN 94 592 254 686) and to Far North Coast Softball Association Inc (ABN 35 536 592 339)** over part of the Crown Community land known as Albert Park Reserve situated at 338 Keen Street, Lismore (Lot 237 in DP 755718), with the term of each license being for five (5) years (no options) - Baseball from 1 October to 31 March each year (summer season) and Softball from 1 April to 30 September each year (winter season). (Ref. AF19/3192)
- B. **New Lease to Lismore City Council from Susan Cuthbertson, Mark Hargreaves and Jueves Pty Ltd** over outdoor area forming part of 11 County Lane, Lismore (Lot 3 in DP 817930), for outdoor public green space for passive recreation, activation and utilisation, with the lease term being for one (1) year with an option to renew for a further period of two (2) years. (Ref. CDR21/1223)
- C. **New Airspace Access License Agreement to Ooh!media Regional Pty Ltd** (ACN 062 090 653) to use and access a small section of airspace over road reserve in King Street, Lismore (adjacent to 123 Woodlark Street, Lot 12 in DP 1125348) to display third party advertising on a digital advertising sign, with the license term being ten (10) years commencing on the date which advertising is first displayed on the digital screen. Options to renew this license will be considered in the context of the Main Agreement between oOh!media and landowners of 123 Woodlark Street, Lismore. (Ref. AF19/3029)
- (Councillors Marks/Bird) (BP21/803)
- Voting for:** Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse
- Voting against:** Nil

Continuation of Meeting

76/21 **RESOLVED** that the time being 10.32pm the meeting continue to the end of the business paper.

(Councillors Marks/Bird)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Financial Assistance – Section 356

Confidential Matters – Closed Council Meeting

77/21 **RESOLVED** that Council now exclude the press and public and meet in Closed Council to consider the following matters;

Item	18.1 Land Acquisition for Lismore Employment Lands Mandatory Environmental Compensatory Works
Grounds for Closure	Section 10A(2) (c):
Public Interest	Discussion of this matter in an open meeting would on balance be contrary to the public interest because it relates to: information that would, if disclosed, confer a commercial advantage on a person with whom the Council is conducting (or proposes to conduct) business.
Item	18.2 Tender T2021-20 Provision of Vegetation Services
Grounds for Closure	Section 10A(2) (d i):
Public Interest	Discussion of this matter in an open meeting would on balance be contrary to the public interest because it relates to: commercial information of a confidential nature that would, if disclosed prejudice the commercial position of the person who supplied it.

(Councillors Bird/Moorhouse)

Voting for: Councillors Bird, Cook, Ekins, Marks and Moorhouse

Voting against: Councillors Guise and Lloyd

Resumption of Open Council

When the Council had resumed its former sitting, the Mayor reported that Council, meeting in Closed Session, had RECOMMENDED:

18.1 Land Acquisition for Lismore Employment Lands Mandatory Environmental Compensatory Works

1. Council note the mandatory environmental compensatory requirements in the REF for the Lismore Employment Lands project.
2. Council endorse Option 1 as outlined in the report as the preferred option to meet the environmental compensatory requirements in the REF for the Lismore Employment Lands project.
3. The General Manager be delegated authority to negotiate the acquisition of the identified portion of land in Option 1 and sign all documents necessary to transfer the land to Lismore City Council.

18.2 Tender T2021-20 Provision of Vegetation Services

1. Council accept the list of suppliers included in the Tender Submission section of this report, to form an un-ranked panel of approved providers for Tender T2021-20 Provision of Vegetation Services.
2. The panel be awarded for an initial one (1) year period, plus one (1) year with an option to extend for an additional one (1) year at Council's absolute discretion.
3. Council implements the engagement of Tender 2021-20 Provision of Vegetation Services in line with the schedule of rates stated within the tender submissions.
4. The General Manager be authorised to approve purchases without a fixed upper limit of expenditure from an approved budget source for Tender 2021-20 Provision of Vegetation Services.
5. Council delegate authority to the General Manager to exercise the options when required to extend the contract/s subject to the satisfactory performance of the suppliers.
6. Council delegate authority to the General Manager to add new contractors during the life of the contract, starting from six (6) months after the initial engagement. The new contractors will also be required to complete all compliance requirements and be approved for inclusion by the assessment panel.

Closure

This concluded the business and the meeting terminated at 10.45pm.

CONFIRMED this > > 2021 at which meeting the signature herein was subscribed.

MAYOR

MINUTES OF THE CONFIDENTIAL MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON TUESDAY, 12 OCTOBER 2021 AT 6PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Ekins; Councillors Bird, Cook, Guise, Lloyd, Marks, Moorhouse, together with the General Manager, Director Infrastructure Services, Director Partnerships, Planning & Engagement, Governance & Risk Manager and Executive Assistant to the General Manager & Mayor and Councillors.

18.1 Land Acquisition for Lismore Employment Lands Mandatory Environmental Compensatory Works

54/21

RESOLVED that:

1. Council note the mandatory environmental compensatory requirements in the REF for the Lismore Employment Lands project.
2. Council endorse Option 1 as outlined in the report as the preferred option to meet the environmental compensatory requirements in the REF for the Lismore Employment Lands project.
3. The General Manager be delegated authority to negotiate the acquisition of the identified portion of land in Option 1 and sign all documents necessary to transfer the land to Lismore City Council.

(Councillors Marks/Cook) (BP21/804)

Voting for: Councillors Bird, Cook, Ekins, Guise, Marks and Moorhouse

Voting against: Councillor Lloyd

18.2 Tender T2021-20 Provision of Vegetation Services

55/21

RESOLVED that:

1. Council accept the list of suppliers included in the Tender Submission section of this report, to form an un-ranked panel of approved providers for Tender T2021-20 Provision of Vegetation Services.
2. The panel be awarded for an initial one (1) year period, plus one (1) year with an option to extend for an additional one (1) year at Council's absolute discretion.
3. Council implements the engagement of Tender 2021-20 Provision of Vegetation Services in line with the schedule of rates stated within the tender submissions.
4. The General Manager be authorised to approve purchases without a fixed upper limit of expenditure from an approved budget source for Tender 2021-20 Provision of Vegetation Services.
5. Council delegate authority to the General Manager to exercise the options when required to extend the contract/s subject to the satisfactory performance of the

suppliers.

6. Council delegate authority to the General Manager to add new contractors during the life of the contract, starting from six (6) months after the initial engagement. The new contractors will also be required to complete all compliance requirements and be approved for inclusion by the assessment panel.

(Councillors Bird/Moorhouse) (BP21/817)

Voting for: Councillors Bird, Cook, Ekins, Lloyd, Marks and Moorhouse

Voting against: Councillor Guise

Resumption of Open Council

56/21 **RESOLVED** that Council reopen the doors to the public and return to open session.

(Councillors Marks/Bird)

Voting for: Councillors Bird, Cook, Ekins, Guise, Lloyd, Marks and Moorhouse

Voting against: Nil

Closure

This concluded the business and the meeting terminated at 10.42pm.

CONFIRMED this > > 2021 at which meeting the signature herein was subscribed.

MAYOR

MINUTES OF THE EXTRA ORDINARY MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON MONDAY, 25 OCTOBER 2021 AT 6PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Ekins; Councillors Bird, Casson, Cook, Guise, Lloyd, Marks, together with the General Manager, Director Corporate Services, Director Infrastructure Services, Director Partnerships, Planning & Engagement, Manager Finance, Principal Accountant, Management Accountant, Technology Support Officer, External Auditor (TNR), Manager Governance & Risk and Executive Assistant to the General Manager & Mayor and Councillors.

Disclosure of Interest

Nil

At this time the External Auditor made a presentation to Council on the Audited Financial Statements.

Reports of the General Manager

12.1 Audited Financial Statements for the year ended 30 June 2021

78/21

That:

1. In accordance with Section 413 (2) (c) of the *Local Government Act 1993* and clause 215 of the *Local Government (General) Regulation 2005*, adopt the Audited Financial Statements for the year ended 30 June 2021 and form an opinion based on the attached 'Statement by Councillors and Management' for both the General-Purpose Financial Statements and Special Purpose Financial Statements.
2. Delegate to the Mayor and Deputy Mayor to sign the 'Statement by Councillors and Management' on behalf of Council.
3. Delegate to the General Manager to, on receipt of the Independent Audit Reports,
 - a) set the presentation date of the Audited Financial Statements and Auditors Report, and
 - b) submit the Audited Financial Statements to the NSW Office of Local Government.
4. In accordance with Section 705 of the *Local Government Act 1993* determine the public notice relating to the financial statements will be advertised on Council's website and Council's Facebook page.

(Councillors Bird/Cook) (BP21/826)

Voting for:	Councillors Bird, Casson, Cook, Ekins, Guise, Lloyd and Marks
Voting against:	Nil

Closure

This concluded the business and the meeting terminated at 7.30pm.

CONFIRMED this > > 2021 at which meeting the signature herein was subscribed.

MAYOR